सत्यमेव जयते

ANNUAL REPORT 2019-2020

INTELLECTUAL PROPERTY **INDIA**

THE OFFICE OF THE CONTROLLER GENERAL OF PATENTS, DESIGNS, TRADEMARKS AND GEOGRAPHICAL INDICATIONS

GOVERNMENT OF INDIA

MINISTRY OF COMMERCE & INDUSTRY DEPARTMENT OF INDUSTRIAL POLICY AND PROMOTION

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PREFACE

During the year 2019-20, the office of CGPDTM continued efforts to strengthen the IPR framework in the country and provide a balanced and transparent IPR ecosystem as per global standards. Steps were taken for effective implementation of National IPR Policy objectives, nurturing bilateral cooperation at the international level, ensuring ease of access to IP information, and making IP system more transparent and user-friendly. IP procedures have been further simplified and technical manpower in Patents and Trade Marks has been augmented to reduce backlog and improve the timelines for processing IP applications.

The Patents Rules have been amended further with effect from 17-09-2019. The amended Patents Rules have widened the scope of Expedited Examination (hitherto allowed for Start-ups and applications where the Applicant has selected Indian Patent Office as ISA/IPEA for his corresponding PCT applications), by extending it to 8 more categories. These include SME, when a natural person or in the case of joint applicants, all the applicants are natural persons, then the applicant or at least one of the applicants is a female, Government Departments, institutions established by central, provincial or state Act, Government Company, institutions wholly or substantially financed by the Government and applicants who are eligible for processing a patent application pursuant to an arrangement between the Indian Patent office and the Foreign Patent office.

During the year, Indian Patent Office has integrated WIPO Digital Access Services (DAS) and WIPO Centralized Access to Search and Examination (CASE) in its examination modules to access the information available in the WIPO CASE during examination of the national phase applications to reduce burden on applicants for filing such documents. Indian Patent Office has started WIPO DAS services, which is an electronic system allowing priority documents to be securely between India and other participating countries.

The office has made remarkable achievements in performance, delivery of IP services and IT-enabled functioning during 2019-20. Training of 181 Examinersof Patents & Designs in different fields, out of 220 recruited last year, has been completed and they are inducted in the respective examination groups.

The office has set up process for prompt redressal of stakeholders' grievances/ complaints. Regular stakeholder meetings were conducted at different IPO locations in order to receive feedback/suggestions on procedural and technical issues and immediate action was taken to resolve them promptly. The facility of Online Feedback Mechanism available in the website is increasingly utilized by stakeholders for providing suggestions to IPO and seeking relief in case of any difficulties.

The improvement in IP administration, digital reforms and reengineering of IP procedures has resulted in improved performance, decreased pendency and higher rate of disposal of IP applications. Though because of lockdown due to COVID-19 pandemic, the performance during March 2020 was affected, requisite steps were taken for reviving IPO functions for efficient online activities, extending procedural timelines and implementing work from home system for officers and staff. It enables them to conduct online examination, hearings, grant and essential administrative functions without any disruption.

During the year, filing of patent application has increased by 11.1%, domestic filing has increased to 37.05% from 33.6% in 2018-19 while grant and disposal in patent increased by 63.16% and 9.95% respectively.

In trademarks, pendency in examination continued to be less than 1 month despite increase in filing. Procedural reforms brought into by amendment in rules and process re-engineering has resulted in increased acceptance of trademark applications at the initial stage to about 50%.

In Designs, examination time required for new applications continued to be less than one month. During 2019-20, filing of design applications has shown 13.55% increase over the last year and Examination has increased by 7.76%, whereas Registration and Disposal of design applications has increased by 29.2% and 28.8%, respectively, as compared to last year.

Copyright Office continued to show improved performance due to computerization and reengineering of process. During the year, examination of new applications continued to be done immediately after one month, which is the mandatory waiting period for inviting objections in respect of new applications. Filing of copyright applications has increased by 20.02% and Registration of Copyright increased by 9.6%.

Performance of Indian Patent Office as International Searching Authority (ISA) and Trademarks Registry under Madrid Protocol System has substantially increased during the year while adhering to PCT timelines in almost all applications referred for ISR/IPER.

In order to further strengthen bilateral cooperation between India and Japan, a pilot programme of Patent Prosecution Highway (PPH) between two countries has been implemented from December 2019. India has also made proposal in PCT Working Group of WIPO for including India's Traditional Knowledge Digital Library (TKDL) as part of Minimum Documentation under PCT Regulations.

Details of activities performed during the year 2019-20 are provided in subsequent chapters of this report. The updated IP laws, highlights of various functions and other useful information are available on the official web-site (http://www.ipindia.nic.in).

The office of Controller General of Patents, Designs & Trade Marks endeavours to ensure timely delivery of IP services in transparent and applicant-friendly manner while simultaneously simplifying IP procedures, creating digital environment and resolving public grievances effectively.

(Rajendra Ratnoo, IAS)
Controller General of Patents, Designs and Trademarks

CHAPTER- I

Trends in IPR – At a Glance

Introduction

Filing of applications for protection of various Intellectual Property Rights (IPRs) in IP offices under the administrative control of Controller General of Patents, Designs and Trade Marks (CGPDTM) has been showing consistent growth over the years. This year, overall filing of applications for various IPRs (**427309**) has been higher as compared to the previous year (**405324**), exhibiting an overall increase of 5.42%. The increasing trend in filing of applications for patents, designs, trademarks, copyright and geographical indications has been observed during this year as compared to last year.

Trends in last five years with respect to filing of IP applications:

Application	2015-16	2016-17	2017-18	2018-19	2019-20
Patent	46904	45444	47854	50659	**56267**
Design	11108	10213	11837	12585	**14290**
Trade mark	283060	278170	272974	323798	**334805**
Geographical Indication	14	32	38	32	**42**
Copyrights	Copyright administration shifted to DIPP/ CGPDTM in 2016-17	16617	17841	18250	**21905**
Semiconductor Integrated Layout Designs (SCILD)	SCILD administration shifted to DIPP/ CGPDTM in 2016-17	NIL	02	NIL	Nil
Total	**355898**	**350467**	**350546**	**405324**	**427309**

Trends in respect of IP activities:

A. Patents: During this year, a total of **56267** patent applications were filed exhibiting an increase of about 11.1% as compared to previous year. Domestic filing of patents applications has also increased to 20843, which is 37.05% of total filing as compared to 33.6% in 2018-19.

The trends of last five years in respect of patent applications filed, examined, granted and disposed are given below. Disposal of applications includes patents granted and refused by the patent office, as also, applications abandoned and withdrawn by the applicants.

TRENDS IN PATENT APPLICATIONS

Year	2015-16	2016-17	2017-18	2018-19	2019-20
Filed	46904	45444	47854	50659	**56267**
Examined	16851	28967	60330	85426	**80080**
Granted	6326	9847	13045	15283	**24936**
Disposal	21987	30271	47695	50884	**55945**

B. Designs: During this year, a total of 14290 design applications were filed showing 13.55% increase over the last year. The number of design applications examined was **13642** showing the increase of 7.76%, whereas registration and disposal of design applications during 2019-20 increased by 29.2% and 28.8%, respectively, as compared to last year.

Trends in Design Applications

Year	2015-16	2016-17	2017-18	2018-2019	2019-20
Filed	11108	10213	11837	12585	**14290**
Examined	9426	11940	11850	12661	**13642**
Registered	7904	8276	10020	9483	**12256**
Disposal of Applications	8023	8332	10788	11414	**14701**

C. Trademarks: During this year, **334805** applications for registration of trademarks were filed. The number of applications examined is more than applications filed during this period and pendency in examination has been brought down to less than a month. The number of trademark registrations and disposals are less during this year as compared to last year due to the fact that old pendency has been cleared during last 3 years.

Trends in Trade Marks Applications

Year	2015-16	2016-17	2017-18	2018-19	2019-20
Filed	283060	278170	272974	323798	**334805**
Examined	267861	532230	306259	337541	**338551**

Registered	65045	250070	300913	316798	**294172**
Disposal	116167	290444	555777	519185	**419566**

D. Geographical Indications: During the reporting year, **42** applications were filed, **51** applications were examined and **22** Geographical Indications were registered. The trends in GI applications filed, examined and registered during the last five years are given below.

Trends in Geographical Indication Applications

Year	2015-16	2016-17	2017-18	2018-19	2019-20
Filed	17	32	38	32	**42**
Examined	200	28	18	43	**51**
Registered	26	34	**25**	23	**22**

E. Copyrights: A total number of **21905** applications were received for copyright registration during the year. Total **29670** applications were examined and **16029** registrations of Copyright (ROC) were done, whereas a total number of applications disposed was 22516.

Trends in Copyright Applications

Year	Total applications received	Total application examined	Register Of Copyright (ROC) generated	Total Disposal
2016-17	16617	16584	3596	5444
2017-18	17841	34388	19997	39799
2018-19	18250	22658	14625	25943
2019-20	**21905**	**29670**	**16029**	**22516**

F. Trend of IPRs granted/registered:

A comparative trend of IPRs granted/registered during the last 5 years is given below. The figures in brackets give the total disposal of applications.

Comparative Trends of IPRs granted/registered (and disposed)

IPR/Year	2015-16	2016-17	2017-18	2018-19	2019-20
Patents	6326 (20429)	9847 (30271)	13045 (47695)	15283 (50884)	**24936 (55945)**

Designs	7904 (8023)	8276 (8332)	10020 (10788)	9483 (11332)	**12256 (14701)**
Trade Marks	65045 (116,167)	250070 (290444)	300913 **(555777)**	316798 (519185)	**294172 (419566)**
Geographical Indications	26	34	25	23	**22**
Semiconductor Integrated Layout Design	Transfer of Semiconductor Integrated Layout Design to DIPP/ CGPDTM in 2016-17	NIL	NIL	NIL	**NIL**
Copyrights	Transfer of Copyrights to DIPP/ CGPDTM in 2016-17	3596	19807 (39799)	14625 (25943)	**16029 (22516)**

G. Publication and Pre-grant opposition:

During the reporting year, a total of 50823 patent applications were published under section 11A and 800 pre-grant oppositions were filed under section 25(1) of the Patents Act, 1970, which is about 1.6% of the total published applications. The details of the applications published and pre-grant oppositions filed are given below:

Year	Publication	Pre-grant opposition
2015-16	41752	290
2016-17	86766	206
2017-18	46899	260
2018-19	41776	426
2019-20	**50823**	**800**

H. Revenue and Expenditure: During the year 2019-20, total revenue generated was Rs. 981.35 Crore, which is about 13.7% higher than that of the previous year, while total expenditure was only Rs. 212.59 Crore.

The total revenue generated by Patent Office was Rs. 621.77 Crore (including Rs. 0.49 Cr. received from IB as ISA fees), while that of Designs Office was Rs. 6.9 Crore. Trade Marks Registry generated revenue of Rs. 352.30 Crore (including Rs. 31.66 Cr. received from IB

as fee for international registration under the Madrid System), while that of GIR was Rs. 0.13 Crore. PIS & RGNIIPM generated revenue of Rs. 0.24 Crore.

Details of revenue received and expenditure with regard to Intellectual Property (IP) administration for the year 2019-20 as compared to the last year are given below in table:

(i) Comparison of Revenue (2017-18, 2018-19 and 2019-20)

Year	2017-18 (Rs. Lakh)	2018-19 (Rs. Lakh)	2019-20 (Rs. Lakh)
Patents	47706.62	51518.03	62177.00
Designs	615.92	605.77	690.00
Trade Marks	28611.35	34119.17	35230.95
GIR	8.31	7.31	13.73
PIS/RGNIIPM	30.91	42.70	24.15
Total	**76973.12**	**86292.98**	**98135.83**

Details of Refund of Request for Examination Fee under Rule 7(4A) of the Patents Rulesduring the last fouryears of the commencement of provision for refund are as follows:

F.Y.	2016-17	2017-18	2018-19	2019-20
Refund amount (Rs. in Lakh)	176.30	456.50	472.94	**434.41**

(ii) Comparison of expenditure for 2017-18, 2018-19 and 2019-20:

Year	2017-18 (Rs. lakh)			2018-19 (Rs. lakh)			2019-20 (Rs. lakh)		
Office	Plan	Non-Plan	Total	Plan	Non-Plan	Total	Plan	Non-Plan	Total
CGPDTM	9561.51	5417.49	14979.00	10867.45	7526.48	18393.9	12254.29	8484.94	20739.23
PIS/ RGNIIPM	122.49	199.89	322.38	178.78	189.89	368.67	253.68	202.82	456.5
GI Registry	-	57.42	57.42	-	68.74	68.74	-	63.95	63.95
Total	9684.00	5674.80	15358.80	11046.2	7785.12	18831.4	12507.97	8751.71	**21259.68**

CHAPTER-II

Public Service Delivery-Efficiency & Transparency

During the year 2019-20, the office of CGPDTM has taken initiatives to further improve computerised work-flow, dissemination of IP information, productivity and online IP-related services with the objective of strengthening IP-system and keeping pace with global developments on IPRs. A gist of steps taken during the year for streamlining public service delivery, improving efficiency and transparency in the functioning of IP Offices is elaborated in following paragraphs:

1. **PATENTS:**

1.1.Amendments in the Patents Rules:

(i) In continuation with the Patents (Amendment) Rules implemented in 2016, which have resulted in several positive changes in the functioning of Patent Office leading to improvement and simplification of patent procedures and IT enablement, the Patents Rules have been further amended on December 1, 2017 to provide the revised definition of Startup.

(ii) During the year, further amendments in the Patents Rules have been introduced by the Patents (Amendment) Rules, 2019 to extend the facility of Expedited Examination to following categories of applicants in addition to the existing two:

- that the applicant is a startup; or
- that the applicant is a small entity; or
- that, if the applicant is a natural person or, in the case of joint applicants, all the applicants are natural persons, then the applicant or at least one of the applicants is a female; or
- that the applicant is a department of the Government; or
- that the applicant is an institution established by a Central, Provincial or State Act, which is owned or controlled by the Government; or
- that the applicant is a Government company as defined in clause (45) of section 2 of the Companies Act, 2013 (18 of 2013); or

- that the applicant is an institution wholly or substantially financed by the Government; or
- that the application pertains to a sector which is notified by the Central Government on the basis of a request from the head of a department of the Central Government, provided that public comments are invited before any such notification; or
- that the applicant is eligible under an arrangement for processing a patent application pursuant to an agreement between Indian Patent Office and a foreign Patent Office.

(iii) Transmittal fee for international application (for e-PCT filing) and fee for preparation of certified copy of priority document and e-transmission through WIPO DAS were proposed to be waived.

(iv) Proposal for further amending the Patents Rules is at the final stage, which includes revising the statement of working of patents (i.e. Form 27) and incorporating the provision for timely submission of English translation of priority document to ascertain the date of priority as per the PCT Regulations.

1.2. Procedural improvements:

During the year, the Office continued with its mission of streamlining the functioning of Patent Office by reengineering procedures, incorporating more digital initiatives, improving transparency and user-friendliness.

Procedural improvements brought during the year include:

- The office started periodic publication of list of First Examination Reports (FER) issued by the Patent Office;
- Electronic delivery of Certificate of grant for patent to applicant's e-mail has been implemented;
- The mechanism to lodge feedback/suggestions/complaints in respect of issues related to functioning of the office has been set up in IPO website for the benefit of stakeholders;
- Video-Conferencing: During the year, the facility for Video-conferencing for hearing was further upgraded to facilitate the hearing directly from applicant's/agent's location to Patent Office. Additionally, the Controller can

now conduct the hearing through Video Conferencing himself from his own desktop/laptop; and

- The Manual of Patent Office Practice and Procedure was updated and published in IPO website on November 26, 2019.

1.3. Effects of procedural reforms and amendments of rules in the patent framework of India:

- During 2019-20, patenting activities in India witnessed improvement as compared to 2018-19. While filing of patent applications increased by 11.1%, domestic filing of patents applications in 2019-20 increased to 37.05% as compared to 33.6% in 2018-19. Grant and Disposal of patent applications increased by 63.16% and 9.95%, respectively, as compared to last year.

- Systematic efforts have been made during the year 2019-20 for reducing the pendency of patent applications by increasing output with the help of updated electronic work-flow and augmentation of technical manpower. As a result, the pendency in examination of patent applications has been brought down to about 12 months in certain fields of technology and to about 24-30 months in majority of other fields of technology as compared to 36-52 months from the date of filing of request for examination during the last year and the same is intended to be further reduced to 12 months in all fields of technology by the end of next financial year.

- Strict adherence to the prescribed time lines was maintained for issuance of high quality international search and preliminary examination reports (ISRs and IPERs) in respect of International Patent applications filed under the Patent Cooperation Treaty (PCT) selecting Indian Patent Office as International Searching Authority (ISA) and International Preliminary Examination Authority (IPEA). In more than 99% applications, the timelines has been achieved in issuing International Search Reports (ISRs).

2. TRADE MARKS:

2.1. Procedural improvements:

- Online Search Facility for Classification of Goods and Services for Trade marks has been updated during the year to further streamline the search system.

- Allotment of applications for examination is made automatically in order of date of filing of applications.

2.2. Automation of process for registration:

- To avoid pendency with respect to dispatch of registration certificates by manual process earlier, trademark registration process has been automated. As a result, after completion of the prescribed time after publication, the Registration Certificates are automatically processed and dispatched to designated email-ids of applicants and also get uploaded in Electronic Register maintained by Trade Marks Registry (TMR). This change has helped to reduce the pendency at this stage to less than one month and also substantially helped the applicants.
- The **Process of Renewal** has also been automated, where renewal request (filed in the prescribed time) gets processed and validity date gets updated.
- Online Publication of details of trademark applications filed as well as registered in TMR Journal on every Monday in the official website, www.ipindia.nic.in, was further streamlined during this year.

3. DESIGNS:

- E-filing facility for new design applications was upgraded to facilitate better functioning.
- Pendency in examination of new applications has been brought down to one month from the filing date.
- Measures have been taken to substantially bring down the pendency of amended applications during the year.

4. GEOGRAPHICAL INDICATIONS:

- Necessary steps were taken during the year to clear the pendency in examination and registration. Consequently, 51 GI applications were examined and 22 GIs have been registered during the year.

5. COPYRIGHT:

- During the year, pendency of examination for new applications continued to be one month, which is mandatory waiting period for inviting objections to new applications.

- Steps have been taken to strengthen the functioning of Copyright Office through digitization, re-engineering of registration processes, augmentation of manpower and updating the website.

- **Improving the public interface and updating website-**In order to further increase transparency and stakeholder participation and to enable the applicants to track the status of their applications online, Copyright Office has started displaying applications received during the month and disposal and pendency on office website. A dashboard has been prepared to provide status of applications filed, registrations granted and provides facility to search registered work.

- Copyright Office has introduced the provision to upload soft copies of Literary/ Dramatic and Artistic works along with other related documents on its online portal to facilitate seamless registration of works

- **Notification of Draft Copyright (Amendment) Rules-**The daft amendment to the Copyright Rules was notified on May 30, 2019 seeking comments from the stakeholders. The objective of amendments is to give effect to the changes introduced by the Finance Act, 2017, to adopt electronic means of communication, to introduce provisions related to accountability, transparency and smooth functioning of Copyright Societies and to improve or ease the process of registration of computer programs.

6. ICT INFRASTRUCTURE AND FUNCTIONAL IMPROVEMENT IN IPO:

6.1. Upgradation of IT Services:-

- During the year, physical and IT infrastructure related services were upgraded at all IPO locations to cope up with the need of increased manpower and computerisation, IT-enablement of IP Offices in order to speed up the processing of IP applications.

- During the COVID pandemic period, the office has revamped ICT infrastructure to enable IPO officials to work from home, ensuring uninterrupted online transactions and e-communication with stakeholders through e-mails and other means.

6.2. Comprehensive E-filing facilities:-

- Comprehensive e-filing facility is available on 24x7 bases for patent trademark and design applications with the payment gateway facility.
- 10% concession in fees has been made available for Trademarks through the Trade Marks Rules, 2017 in line with Patents.
- Efficient online filing services of IPO have enabled the Offices to improve the performances. The online filing in patents and trade marks is more than 90%.

6.3. Dynamic Website and Information dissemination:-

- IPO website has been redesigned to improve contents and ease of access and make it more interactive, informative and easy to navigate. IP data on real-time basis is available in respect of filing and processing of Patents, Designs, Trademarks and GI applications.
- IPO website provides login-free Search facility for retrieving information on filing, examination, grant/registration, publication of applications, etc.
- e-journalscontaining information in respect of published and granted/registered IP applications are published weekly on the website.
- IPO website also contains IP-related useful information such as IP Acts, Rules, Manuals, Guidelines, FAQs and dynamic utilities information.

7. Stakeholder Consultation Meetings:

- Regular meetings with the Stakeholders are conducted at different IPO locations so as to understand and resolve procedural and technical issues related to amendments in IP rules, reengineering of procedures, module-based work-flow, systemic upgradation, communication with stakeholders and public grievances.

8. FEEDBACK MECHANISM:

Feedback Mechanism has been set up in IPO website to enable stakeholders to lodge feedback and suggestions in respect of issues related to functioning of IP offices, complaints and general queries. A specialized team acts promptly on stakeholders' suggestions/grievances and communicate appropriate response through e-mail.

9. AWARENESS IN IPRs:

- IP offices are regularly engaged in the dissemination of information and knowledge on IPRs to actual and potential IP stakeholders regarding IP procedures by way of participation in awareness and public outreach activities in IPRs in association with CIPAM (DPIIT) and industry Associations such as CII, FICCI, ASSOCHAM, PHD Chambers of Commerce, CWEI, etc. in the country.
- IPO officials regularly participate as resource persons in these programs and also in workshops/seminars organized for schools, universities, enforcement agencies and other stakeholders.
- IPR help-desks and online guidance system through e-mail is also available at each IPO location.

10. INITIATIVES FOR STARTUP INDIA PROGRAM:

- The Startup applicants are provided substantial fee concession in respect of their IP applications. Through recent amendments in the Patents and Trade Marks Rules, 80% fee concession is made available for patent applications and 50% for trademark applications in filing and all subsequent procedures.
- In line with the Startup Initiative of Government of India, the DPIIT, launched "Scheme for Facilitating Startups Intellectual Property Protection (SIPP)" to encourage IPR protection amongst Startups. The scheme includes providing facilitators to startups for filing/processing of their applications for patents, designs and trademarks and reimbursement of professional charges to facilitators by the Government. An updated list of facilitators for patents, designs and trademark has been uploaded on the website. The office of CGPDTM has taken necessary steps for effective implementation of the SIPP scheme.
- Necessary assistance is provided through e-mails and help-desks in order to resolve the queries raised by Startups.

11. FACILITIES FOR INTERNATIONAL PATENT FILING:

Electronic payment gateway for PCT application fees has been introduced to avoid delay in transmission of fees for PCT applications to International Bureau and International Searching Authorities.

12. WIPO CASE &WIPO DAS:

- Both WIPO CASE and WIPO DAS are now functional for IPO. Indian Patent Office has become an Accessing and Depositing Office for WIPO Centralized Access to Search and Examination system (WIPO CASE) and WIPO Digital Access Service (DAS) under the WIPO-INDIA Cooperation agreement.
- WIPO Digital Access Service (DAS) facilitates easy, secure, quick and inexpensive procedure for submission of certified copies of priority documents submitted by applicants from participating Patent Offices, which will benefit the applicants, stakeholders and public in general, besides the Patent Office. Some of the salient features of WIPO DAS are as under:
    - Applicants can request the office of first filing to deposit/add the priority document into WIPO DAS system and request offices of second filing to use the service for obtaining access of such documents,
    - Use of an access code provided by WIPO DAS to authorize access,
    - Documents are exchanged via secure channels,
    - DAS Service is hosted and administered by WIPO,
    - No need to provide a certified copy of priority documents separately to each office of second filing,
    - No need to pay for multiple copies of paper form of priority documents.

  Accordingly, IPO as a depositing Office uploads certified copies of patent and industrial design applications as priority documents, including International Patent applications under PCT filed at the Office (RO/IN) on and after January 31, 2018 for which the applicant specifically requests to make such priority documents available to WIPO DAS.

13. ISR/IPER REPORTS:

- Almost all International Searching Reports are issued within the prescribed time lines set by the PCT Regulations of WIPO.
- Patent Office as International Searching Authority (ISA) has started sharing full Search Strategies along with the International Search Reports (ISRs) established since January 1, 2018 for publication on Patent-scope

(www.wipo.int/patentscope); thus, reinforcing its commitment to quality as ISA. The IPO is only seventh among 23 ISAs under the PCT to start this service.

14. INTERNATIONAL AGREEMENTS:

The office has taken important steps for strengthening the bilateral cooperation with other IPOs.

- During the year, the Department for Promotion of Industry and Internal Trade (DPIIT) and the Office of CGPDTM has signed bilateral Action Plan/Work Plan with Japan Patent Office, Swedish IPO and the Intellectual Property Office of the United Kingdom (UKIPO).
- During the year, the Union Cabinet has approve accession to the WIPO Copyright Treaty and WIPO Performers and Phonograms Treaty, which extend coverage of copyright to the internet and digital environment. Both the treaties provide framework for creators and right owners to use technical tools to protect their works and safeguard information about their use, i.e. Protection of Technological Protection Measures (TPMs) and Rights Management Information (RMI).
- Further, during the year, the Union Cabinet has approved the proposal for accession of India to the Nice, Vienna and Locarno Agreements, which will help the IPO India to harmonize the classification systems for examination of trademark and design applications in line with the classification systems followed globally.

15. RIGHT TO INFORMATION:

The Office of CGPDTM remained committed to effective implementation of the Right to Information Act, 2005. In order to achieve utmost transparency in the functioning of IP offices, all relevant information with regard to various activities has been made available on the official website for proactively providing information to the public and stakeholders. Besides, prompt actions were taken on all applications received under the Act in strict conformity with the legislative intent and mandate of the RTI Act.

CHAPTER-III

PATENTS

INTRODUCTION:

This chapter presents the 48th report under section 155 of the Patents Act, 1970 (as amended) on the activities performed by Patent Office during the year 2019-20. The Patent Office is located at Kolkata, New Delhi, Mumbai and Chennai having specific jurisdictions for patent administration in the country. However, all the four Patent Offices work as a virtual single office. The Patent Office implements provisions of the Patents Act, 1970 (as amended) concerning the protection of inventions in the country under the superintendence and administrative control of the Controller General of Patents, Designs and Trade Marks (CGPDTM). A gist of major activities executed under the Patents Act and Rules made there under by the Patent Office is given in the following paragraphs.

1. PATENT APPLICATIONS:

Total number of patent applications filed in 2019-20 is 56,267showing an increase of 11.1% over the filing figure of 50659 in 2018-19. During the year, filing of applications in almost every field of inventions has shown a modest to high growth, especially in the field of Bio-Chemistry, Bio-Medical Engineering, Bio-technology, Chemical, Communication, Computer Science, Electronics, Food, Metallurgy and Polymer Technology that exhibited growth of 15-25%. Details of filing trend of applications, segregated in different fields are shown in **Appendix-E and E1.**

(a) Applications filed by Indian Applicants:

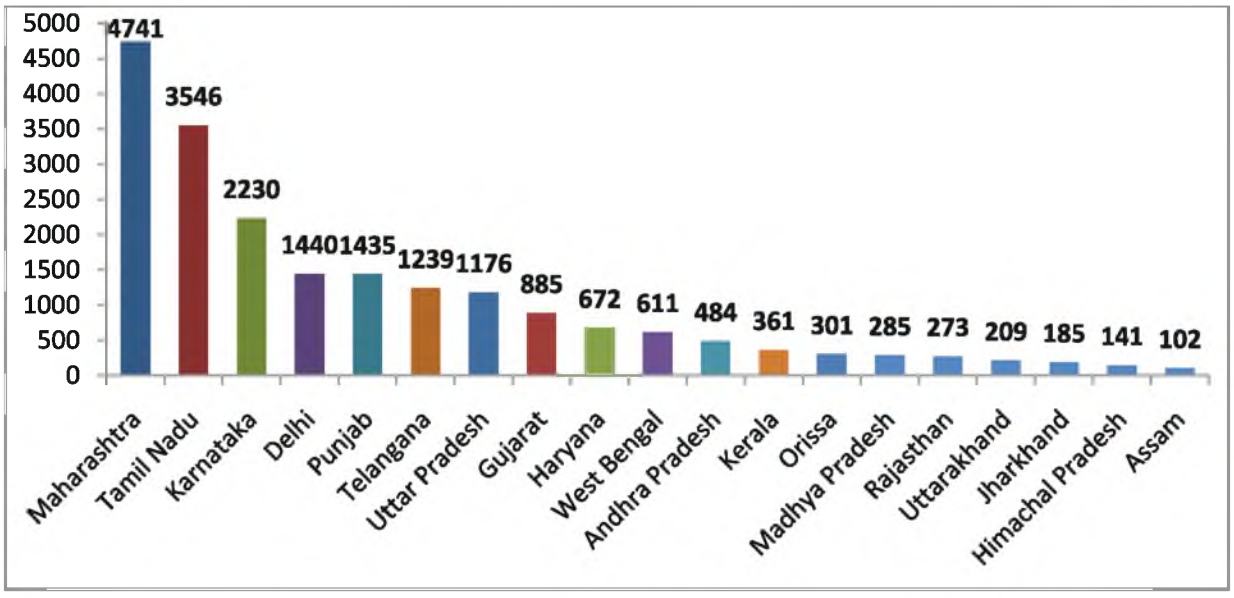
Out of total 56267 applications filed, a number of applications filed by Indian applicants was 20843, which shows 22.6% increase over the last year's figure of 17005. Domestic filing is 37.05% of the total applications filed as compared to 33.6% during last year. Thus, in consistent with the growth trend in past years, this year too, applications filed by Indian applicants have shown remarkable increase. The number of applications filed by foreign applicants during the year (35424) has also shown an increase of 5.3% as compared to the number of applications (33654) filed during 2018-19.

(b) State-wise Filing of Patent applications by Indian Applicants:

Out of total number of ordinary applications filed by Indian applicants during 2019-20, Maharashtra continued to occupy the first position registering an increasing of about 12.9% over its own filing during previous year. While Tamil Nadu continued to occupy second position in the list. Like previous year, this year also, Punjab showed a huge jump in filing with 1435 applications filed during the year as compared to 660 during last year. Another States/ UT with noteworthy jump in filing during the year are Chandigarh, Chhattisgarh, Odisha and North Eastern States, which collectively exhibited tremendous increase as compared with the applications filed during 2018-19.

Top filing States/Union Territories are (number of applications in brackets) Maharashtra (4741), Tamilnadu (3546), Karnataka (2230), Delhi (1440), Punjab (1435), Telangana (1239), Uttar Pradesh (1176), Gujarat (885), Haryana (672), West Bengal (611), Andhra Pradesh (484), Kerala (361), Orissa (301), Madhya Pradesh (285), Rajasthan (273), Uttarakhand (209), Jharkhand (185), Himachal Pradesh (141) and Assam (102). The State/Union Territory wise break up is shown in **Appendix B.**

Applications filed by Indian Applicants (State-wise)



(c) Distribution of applications category-wise:

Following are details of applications filed by applicants of various categories such as Natural Person (NP), Startups (SU), Small Entity (SE) and Other than Natural

Persons(ONP) during the year 2016-17, 2017-18,2018-19 and 2019-20. It may be noted that applications filed by all these categories are increasing every year.

Year	Natural Person (NP)		Startups (SU)		Small Entity (SE)		Other than Natural Persons		Total		Grand Total
	Indian	Foreign	Indian	Foreign	Indian	Foreign	Indian	Foreign	Indian	Foreign	
2016-17	5918	1622	160	3	412	120	6729	30480	13219	32225	45444
2017-18	6811	1444	511	4	491	131	7737	30725	15550	32304	47854
2018-19	7250	1193	801	10	607	75	8347	32376	17005	33654	50659
2019-20	**8792**	**1182**	**1650**	**2**	**576**	**272**	**9825**	**33968**	**20843**	**35424**	**56267**

(d)Top 5 Indian applicants for patents in the field of Information Technology:

Sl. No.	Name of Companies	Applications filed
1	MESBRO TECHNOLOGIES PRIVATE LIMITED	425
2	LOVELY PROFESSIONAL UNIVERSITY	175
3	TATA CONSULTANCY SERVICES LIMITED	162
4	INDIAN INSTITUTE OF TECHNOLOGY (Collectively)	156
5	WIPRO LIMITED	110

(e) Top 10 Indian Applicants for Patents from Scientific Research & Development Organizations:

Sl. No.	Name of Scientific and Research & Development Organizations.	Applications filed
1	COUNCIL OF SCIENTIFIC AND INDUSTRIAL RESEARCH	169
2	CHAIRMAN, DEFENCE RESEARCH & DEVELOPMENT ORGANISATION	89
3	INDIAN COUNCIL OF AGRICULTURAL RESEARCH	40
4	MERIL LIFE SCIENCES PVT. LTD.	22
5	SREE CHITRA TIRUNAL INSTITUTE FOR MEDICAL SCIENCES AND TECHNOLOGY	19
6	VEL TECH RANGARAJAN DR. SAGUNTHALA R&D INSTITUTE OF SCIENCE AND TECHNOLOGY	18
7	TRANSLATIONAL HEALTH SCIENCE AND TECHNOLOGY INSTITUTE	15
8	INDIAN SPACE RESEARCH ORGANISATION	14
9	SOLARA ACTIVE PHARMA SCIENCES LIMITED	13
10	CENTRE OF EXCELLENCE IN WIRELESS TECHNOLOGY	10
10	INDIAN COUNCIL OF MEDICAL RESEARCH	10
10	JAWAHARLAL NEHRU CENTRE FOR ADVANCED SCIENTIFIC RESEARCH	10

In this category, Council of Scientific & Industrial Research continued to occupy top position while Defence Research & Development Organisation and Indian Council of Agricultural Research were on the second and third position, respectively.

(f)Top 10 Indian Applicants for Patents from Academic Institutes and Universities:

Sl. No.	Name of Institutes/Universities	Applications filed
1	INDIAN INSTITUTE OF TECHNOLOGY (Collectively)	664
2	LOVELY PROFESSIONAL UNIVERSITY	442
3	CHANDIGARH UNIVERSITY	400
4	BHARATH INSTITUTE OF HIGHER EDUCATION AND RESEARCH	251
5	CHANDIGARH GROUP OF COLLEGES	210
6	AMITY UNIVERSITY	179
7	SANSKRITI UNIVERSITY	150
8	SIKSHA 'O' ANUSANDHAN (DEEMED TO BE UNIVERSITY)	101
9	SHOOLINI UNIVERSITY OF BIOTECHNOLOGY AND MANAGEMENT SCIENCES	80
10	SRM INSTITUTE OF SCIENCE AND TECHNOLOGY	56

This year, Indian Institute of Technology collectively occupied the first position while, Lovely Professional University and Chandigarh University occupied the second and third place, respectively.

2. APPLICATIONS FILED BY FOREIGN APPLICANTS:

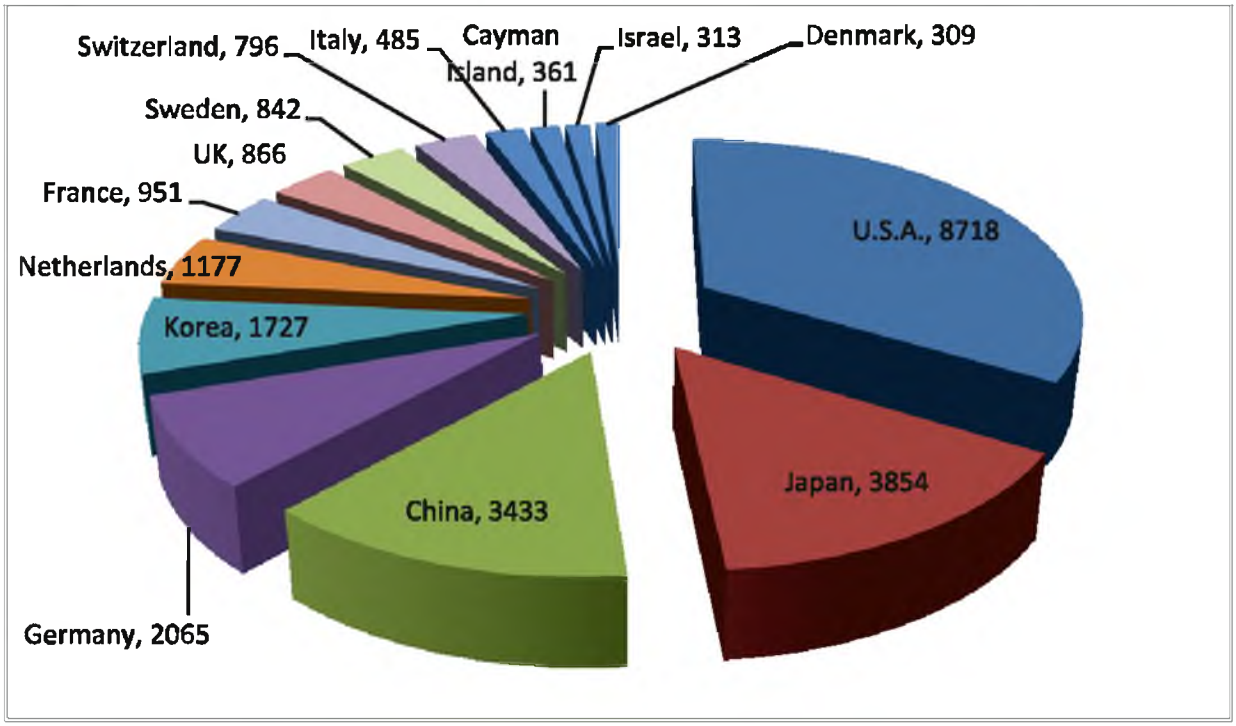
(a) Convention Applications:

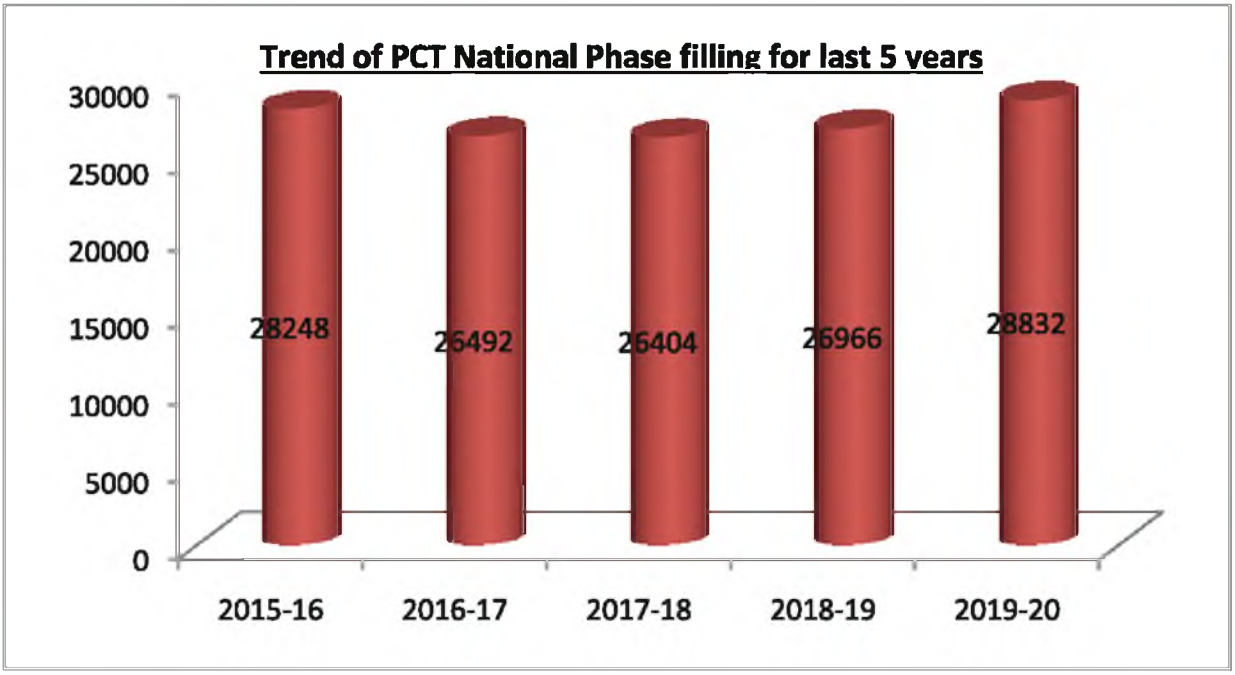
The total number of applications filed claiming priority under the Paris Convention during the year was **3637** as compared to previous year figure of **3911.** This shows decrease of about 7% in number of convention applications filed during the year.

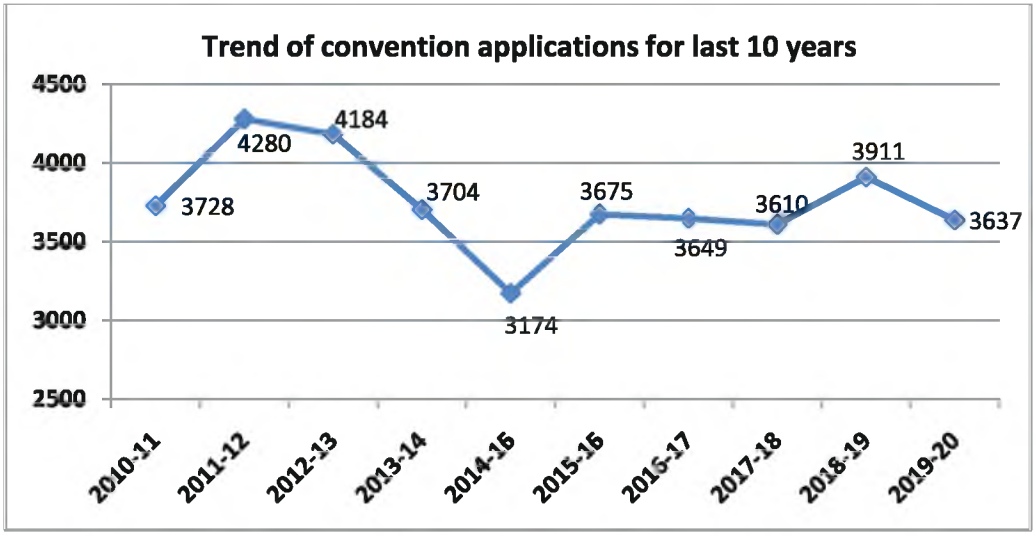
(b) PCT National Phase Applications:

The majority of foreign applications were filed through the PCT National Phase route. The number of such applications filed during the reporting year was **28832,** which show a modest increase of **7%** as compared to the previous year figure of **26966.** The top filing County was USA (8718). The country wise break-up is shown in **Appendix B1**.

Top Applicants for PCT National Phase Applications (Country-wise)







(c) Top 10 foreign resident applicants:

Following table provides a list of **top 10 foreign resident applicants** who filed patent applications in India during 2019-20. It is observed that Huawei Technologies Co., Ltd. tops the list.

Top 10 Foreign Resident Applicants

Sl. No.	Name of Organisation	Number of Applications
1	HUAWEI TECHNOLOGIES CO., LTD.	1448
2	QUALCOMM INCORPORATED	1410
3	SAMSUNG ELECTRONICS CO., LTD.	1300
4	GUANGDONG OPPO MOBILE TELECOMMUNICATIONS CORP. LTD.	779
5	TELEFONAKTIEBOLAGET LM ERICSSON (PUBL)	508
6	MICROSOFT TECHNOLOGY LICENSING, LLC	505
7	KONINKLIJKE PHILIPS N.V.	397
8	HONDA MOTOR CO., LTD.	391
9	ALIBABA GROUP HOLDING LIMITED	352
10	SIGNIFY HOLDING B.V.	273

Filing details of applications for patents during 2019-20 as compared to the last year, received through various routes, are shown in **Appendix–B** (classified according to the state of origin in India) and **Appendix–B1 (**classified according to the country of origin).

The number of applications for patents received from Indian residents and non-residents through various routes during the period from 2010-11 to 2019-20 is shown in **Appendix-C.**

A table showing the distribution of applications filed subject wise on Chemical, Electrical, Mechanical, Biotechnology, Food, Computer/Electronics, etc. during the period from 2015-16 to 2019-20 is shown in **Appendix-E and E1.**

3. TOTAL NUMBER OF APPLICATIONS EXAMINED:

During the year, the Patent Office examined **80080** patent applications as compared to 85426 applications examined during the previous year. There is around 6% decrease, which was mainly due to non-availability of new 181 Examiners for examination work during the first half of year and hampering of IPO working due to COVID-19 pandemic.

4. TOTAL DISPOSAL OF REQUEST FOR EXAMINATION (RQ):

During this year, **55945** Requests for examination (RQ) were disposed of as compared to 50884 in the previous year; thus showing 9.95% increase in disposal, which includes applications granted, refused, abandoned under section 21(1) and withdrawn.

5. PATENTS GRANTED AND PATENTS IN FORCE:

Total number of patents granted during the year was **24936** out of which **4003** were granted to Indian applicants. The patents granted during the year are 63.16% more than those granted during 2018-19 (15283).

The number of patents in force was 81279 as on March 31, 2020, out of which 12181 patents belonged to Indians.

The number of applications filed, requests for examination received, applications deemed to have been abandoned and applications on which patents were granted and the number of patents in force from the year 2010-11 to 2019-20 is shown in **Appendix-D.**

The number of patents granted during the last five years, i.e. from 2015-16 to 2019-20, under various fields of inventions are shown in **Appendix-F** and **F1.**

6. EXPEDITED EXAMINATION STATUS:

Expedited Examination facility was initially provided for Startups and patent applications where the applicants have selected Indian Patent Office as ISA/IPEA for their corresponding PCT international applications. It has been extended to 8 more categories of applicants from September 17, 2019 by amending the Patents Rules. New categories of applicants include SME, Female applicants, Government Departments, institutions established by a Central, Provincial or State Act, which is owned or controlled by the

Government, Government company, an institution wholly or substantially financed by the Government and for applications filed under Patent Prosecution Highway (PPH).

Filing of requests for expedited examination is increasing every year, which is due to the fact that the applications under this category are examined and processed expeditiously so that in majority of cases grant/final disposal is within an average time of one year from the date of receipt of request for expedited examination, as compared to the period of few years required in case of normal examination route.

Details of Requests for Expedited Examination received, examined and their disposals are given in the following Table where New categories are designated commutatively as "Others".

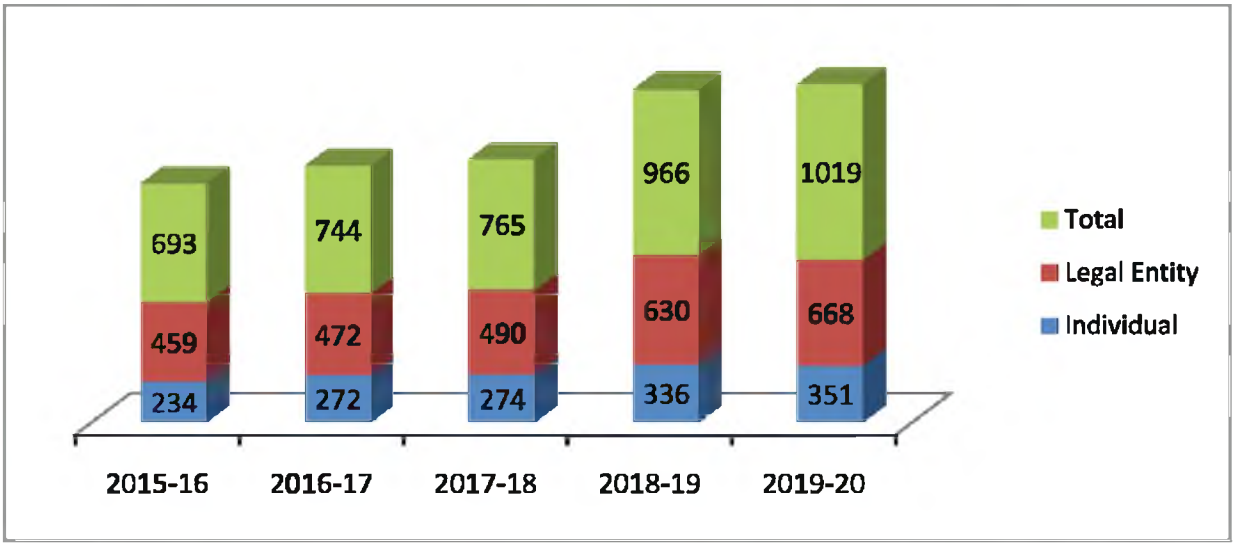
Year	Requests for Expedited Examination filed				Patent Granted				Refused			
	Start ups	Applicants for ISR	Others	Total	Start ups	Applicants for ISR	Others	Total	Start up	Applicants for ISR	Others	Total
2016-17	45	90	NA	135	1	8	NA	9	0	0	NA	0
2017-18	136	162	NA	298	17	39	NA	56	8	1	NA	9
2018-19	294	318	NA	612	102	187	NA	289	34	23	NA	57
2019-20	**408**	**311**	**304**	**1023**	**189**	**235**	**5**	**429**	**53**	**57**	**0**	**110**
Total	883	881	304	2068	309	469	5	783	95	81	0	176

7. PCT INTERNATIONAL APPLICATIONS FILED BY INDIAN APPLICANTS:

Total number of international applications under the Patent Cooperation Treaty (PCT) filed by Indian applicants in Indian Patent Office as Receiving Office (RO/IN) during the last five years is given below (this number does not include the number of international applications that are directly filed by Indian applicants in the International Bureau of WIPO as Receiving Office-RO/IB):

Year	Individual	Legal Entity	Total
2015-16	234	459	**693**
2016-17	272	472	**744**
2017-18	274	490	**765**
2018-19	336	630	**966**
2019-20	**351**	**668**	**1019**

Trend of International applications for the last five years



The Council of Scientific & Industrial Research, Indian Institute of Technology (IIT Madras), Hero Motocorp Limited, MSN Laboratories Private Limited and Cipla Limited were the major Indian contributors towards filing of PCT international applications during 2019-20.

8. MISCELLANEOUS PROCEEDINGS UNDER THE PATENTS ACT & RULES:

(a) Inventions in the field of Atomic Energy: Under section 4 of the Patents Act, the Patent Office referred **178** applications to the Department of Atomic Energy (DAE) during the year, out of which **1** application was found to be related to Atomic Energy, **20** applications were allowed to proceed under the normal course of official action and **157** applications remained pending at the end of the year with DAE for its opinion.

(b) Publication of patent applications under section 11A: During the year 2019-20, **50823** applications were published under section 11A of the Patents Act, which includes **6526** applications for which requests for early publication were received. The year-wise details of number of patent applications published during last five years are given below:

Year	2015-16	2016-17	2017-18	2018-19	2019-20
Publication u/s 11A	41752	84300	43402	42281	**44297**
Early Publication	2316	2466	3497	4064	**6526**
Total	44068	86766	46899	46345	**50823**

(c) Pre-grant Opposition [under Section 25(1)]: By way of representations, 800 pre-grant oppositions were received in the office and 67 pre-grant oppositions were disposed during the year.

(d) Post-grant Opposition [under Section 25(2)]: Total **28** post-grant oppositions were filed during the year. Seven (**7**) post-grant oppositions were disposed during the year and **99** cases remained pending for disposal at the end of reporting year.

(e) Secrecy direction (under Section 35): During the year, **111**patent applications were referred to Defence Research &Development Organisation (DRDO) under the Ministry of Defence, Government of India for their consideration as to whether the inventions are relevant for defence purposes. During the year, **43** applications were cleared to proceed in the normal course of action, whereas 2 applications were refused to proceed by DRDO, while **68** applications remained pending with DRDO at the end of the year.

(f) Permission for filing patent applications outside the country (under Section 39): During the year, the office received **6005** requests on Form 25 seeking permission for filing patent applications outside India, while permissions in respect of **5837** applications were granted.

(g) Restoration of lapsed Patents (under Section 60):126 applications for restoration of patents were received during 2019-20 and **97** patents were restored.

(h) Assignment, mortgage, license, etc. (under Section 68 and 69): 1714 cases were received for registration of documents under this section and **1158** applications were disposed of during the year.

(i) Working of Patents (under Section 146): 57192 statements on working of patents were received in Form 27during the year and **16181** patents were reported as working. The details of information received during last five years are given in table below:

	2015-16	2016-17	2017-18	2018-19	2019-20
Patents in force	44524	48765	56764	64686	**81279**
Form-27 received	39507	42870	46618	51104	**57192**
Reported as working	8589	11318	12246	14277	**16181**

(j) Compulsory license (under Section 84, Section 92 & 92A): No application for compulsory license was received during the year.

(k) Information (under Section 153): The Patent Office received **50** requests during the year for supply of information relating to patents under various provisions of the Act, as provided in rule 134 of the Patents Rules, 2003 (as amended).

(m) Registration of Patent Agents: 1293 new patent agents were registered during the year. Total number of registered patent agents as on March 31,2020 was **4122**

9. REVENUE:

Patent Office generated revenue of about **Rs. 621.77 Crore** by way of fees for various proceedings under the Act and Rules. The details of revenue by way of collection of fees on patents are shown in **APPENDIX-G.**

10. GENERAL INFORMATION:

Scientific & Technical Libraries of the Patent Office at Kolkata, Mumbai, Delhi and Chennai provided facilities to the public for consultation and reference work. A large number of inventors of different research and industrial organizations and other members of public as well as research scholars of different universities availed the facilities.

Presently, the Patent Office, in addition to CD-ROMS, Books and Journals, subscribes to scientific and technical e-journals. Thousands of interested persons visit the libraries of the Patent Office every year in order to conduct searches through the patent specifications and other publications of the Patent Office in India and abroad.

Free online search facility provided by Patent Office on its website www.ipindia.nic.in was also widely utilised by stakeholders and public at large.

11. INFORMATION UNDER THE RIGHT TO INFORMATION ACT, 2005:

During the year, 221 requests were received for providing information under the RTI Act, and appropriate actions were taken on all the requests as per the time lines provided under the Act.

APPENDIX-A

Subject wise distribution of Examiners of Patents

Sl. No.	Subject	No. of Examiners
1	Biochemistry	09
2	Biotechnology	24
3	Biomedical Engineering	19

4	Chemistry	110
5	Civil Engineering	09
6	Computer & IT Engineering	61
7	Electrical, Electronics & Communication Engineering	167
8	Food Technology	05
9	Mechanical Engineering	126
10	Metallurgical Engineering	11
11	Physics	45
12	Polymer	19
13	Textile	06
	Total	**611**

APPENDIX–B

APPLICATIONS FOR PATENT FILED INTHE YEAR 2019-20 AS AGAINST 2018-19 ACCORDING TO STATE OF ORIGIN

State/Union Territory	Ordinary Application		Conventional Application		National Phase Application	
	2019-20	2018-19	2019-20	2018-19	2019-20	2018-19
Andaman & Nicobar	**4**	2	**0**	0	**0**	0
Andhra Pradesh	**482**	321	**1**	1	**1**	1
Arunachal Pradesh	**9**	5	**0**	0	**0**	0
Assam	**102**	109	**0**	0	**0**	0
Bihar	**50**	48	**0**	0	**0**	1
Chandigarh	**170**	76	**0**	0	**1**	0
Chhattisgarh	**77**	38	**0**	4	**0**	0
Dadra and Nagar Haveli	**1**	2	**0**	0	**0**	0
Daman & Diu	**5**	2	**0**	0	**0**	0
Delhi	**1428**	1300	**3**	4	**9**	18
Goa	**36**	44	**1**	0	**0**	0
Gujarat	**867**	858	**1**	0	**17**	10
Haryana	**663**	507	**3**	7	**6**	6
Himachal Pradesh	**141**	193	**0**	0	**0**	0
Jammu & Kashmir	**45**	40	**0**	0	**0**	0
Jharkhand	**185**	158	**0**	1	**0**	2
Karnataka	**2192**	2138	**9**	16	**29**	31
Kerala	**359**	272	**0**	1	**2**	4
Madhya Pradesh	**284**	194	**1**	0	**0**	1
Maharashtra	**4689**	4197	**10**	6	**42**	54

Manipur	**12**	7	**0**	0	**0**	0
Meghalaya	**16**	6	**0**	0	**0**	0
Mizoram	**11**	25	**0**	0	**0**	0
Nagaland	**3**	5	**0**	0	**0**	0
Orissa	**301**	164	**0**	0	**0**	0
Pondicherry	**59**	55	**0**	0	**0**	0
Punjab	**1433**	660	**1**	0	**1**	1
Rajasthan	**269**	305	**3**	0	**1**	0
Sikkim	**6**	4	**0**	0	**1**	0
Tamil Nadu	**3523**	2382	**9**	1	**14**	8
Telangana	**1210**	1011	**6**	1	**23**	33
Tripura	**20**	9	**0**	0	**0**	0
Uttar Pradesh	**1172**	967	**0**	0	**4**	5
Uttaranchal	**209**	154	**0**	0	**0**	1
West Bengal	**610**	522	**1**	2	**1**	5
TOTAL	**20642**	16780	**49**	44	**152**	181

APPENDIX - B 1

APPLICATIONS FOR PATENT FILED INTHE YEAR 2019-20 AS AGAINST 2018-19 CLASSIFIED ACCORDING TO COUNTRY OF ORIGIN

COMMONWEALTH COUNTRIES

Country	Ordinary Application		Convention Application		National Phase Application	
	2019-20	2018-19	2019-20	2018-19	2019-20	2018-19
U.K.	**56**	25	**37**	47	**866**	1025
Australia	**3**	19	**4**	8	**309**	263
Canada	**10**	5	**16**	17	**291**	292
Sri Lanka	**0**	0	**0**	0	**0**	3
Ireland	**91**	119	**68**	55	**98**	70
New Zealand	**3**	1	**0**	0	**39**	51
Samoa	**0**	0	**1**	2	**2**	2
TOTAL	**163**	169	**126**	129	**1605**	1706

NORTH & SOUTH AMERICA

Country	Ordinary Application		Convention Application		National Phase Application	
	2019-20	2018-19	2019-20	2018-19	2019-20	2018-19
U.S.A.	**1337**	1192	**509**	568	**8718**	8199
Mexico	**0**	0	**1**	0	**27**	36
Brazil	**1**	0	**9**	5	**48**	30

Bermuda	**0**	0	**0**	0	**8**	10
Cayman Island	**1**	3	**2**	3	**361**	178
Virgin Islands	**0**	0	**0**	0	**8**	10
Cuba	**0**	0	**0**	0	**1**	2
Columbia	**0**	0	**0**	1	**4**	4
Argentina	**2**	0	**0**	0	**1**	6
Chile	**0**	0	**1**	0	**13**	14
Bahamas	**0**	0	**1**	0	**0**	2
Barbados	**0**	0	**0**	1	**9**	9
Peru	**0**	0	**0**	0	**3**	3
Uruguay	**0**	0	**0**	0	**1**	3
Costa Rica	**0**	0	**0**	0	**1**	0
Panama	**0**	0	**0**	0	**1**	0
Saint Kitts and Nevis	**0**	0	**0**	0	**3**	0
Other North and South American Countries	**1**	0	**0**	7	**49**	41
TOTAL	**1342**	1195	**523**	585	**9256**	8547

APPENDIX - B1 (contd.)

EUROPE

Country	**Ordinary Application**		**Convention Application**		**National Phase Application**	
	2019-20	**2018-19**	**2019-20**	**2018-19**	**2019-20**	**2018-19**
Italy	11	12	73	67	485	507
Germany	326	236	309	367	2065	2099
Belgium	7	3	9	2	247	305
France	80	70	145	194	951	949
Spain	1	3	20	18	142	164
Switzerland	138	180	138	167	796	983
Finland	63	70	24	18	191	237
Austria	0	1	20	40	237	234
Netherlands	53	39	22	12	1177	1079
Sweden	58	28	13	8	842	1008
Denmark	18	18	14	9	309	329
Portugal	0	0	0	0	13	14
Hungary	0	0	1	1	24	26
Luxembourg	0	0	4	4	99	83
Russia	0	0	1	4	79	61
Romania	0	0	0	0	3	2

Turkey	1	1	3	0	43	32
Slovenia	0	0	0	0	12	4
Norway	0	0	6	2	77	123
Cyprus	0	0	1	0	4	10
Poland	1	0	6	9	30	44
Bulgaria	1	0	1	0	7	4
Ice Land	0	0	0	0	1	2
Czech Republic	3	0	4	0	15	17
Liechtenstein	0	0	2	0	13	8
Ukraine	2	0	0	0	7	10
Slovakia	0	0	0	1	22	8
Greece	1	1	0	0	21	14
Malta	21	4	0	1	14	12
Estonia	0	0	1	0	1	4
Monaco	0	0	0	1	0	4
Belarus	0	0	0	0	5	0
British Isles	0	0	0	0	3	0
Gibraltar	0	0	0	0	1	0
Latvia	0	0	0	0	1	0
San Marina	0	0	0	0	1	0
Other European Countries	0	0	9	2	15	28
TOTAL	**785**	666	**826**	927	**7953**	8404

APPENDIX - B1 (contd.)

AFRICA

Country	Ordinary Application		Convention Application		National Phase Application	
	2019-20	2018-19	2019-20	2018-19	2019-20	2018-19
South Africa	3	0	4	1	27	38
Mauritius	12	6	0	0	4	3
Seychelles	0	0	0	0	1	1
Swaziland	0	0	0	1	1	1
Kenya	1	0	0	0	0	3
Egypt	0	0	0	0	8	5
Sao Tome and Principe	0	1	0	0	0	0
Zambia	0	0	0	0	1	1
Moracco	0	0	0	0	2	5
Namibia	0	0	0	0	1	0
Other African Countries	0	2	0	0	8	5
TOTAL	**16**	9	**4**	2	**53**	62

ASIA

Country	Ordinary Application		Convention Application		National Phase Application	
	2019-20	2018-19	2019-20	2018-19	2019-20	2018-19
Japan	88	66	966	1025	3854	3607
Afghanistan	3	2	0	0	1	1
Azerbaijan	0	0	0	0	0	1
Kazakhstan	0	0	0	0	4	1
Nepal	0	1	1	2	0	0
Oman	1	3	0	0	2	1
Bahrain	0	0	0	0	4	2
Republic of Korea	582	498	500	416	1727	1492
China	35	58	320	424	3433	2601
Israel	21	13	20	21	313	310
Taiwan	42	48	263	340	28	33
Indonesia	0	0	0	0	1	1
Vietnam	0	0	0	0	1	3
Singapore	46	39	10	9	144	91
Malaysia	5	1	6	5	17	20
U.A.E.	10	5	1	2	17	12
Thailand	5	2	6	3	32	41
Hong Kong (China)	2	1	3	16	14	15
Saudi Arabia	6	0	0	0	21	7
Iran	0	1	0	0	5	0
Brunei Darussalam	0	0	0	0	1	0
Pakistan	0	0	5	0	0	0
Phillipines	0	0	0	0	4	0
Uzbekistan	0	0	0	0	1	0
Other Asian Countries	2	0	8	5	188	8
TOTAL	**848**	738	**2109**	2268	**9812**	8247
GRAND TOTAL	**23798**	19557	**3637**	3955	**28832**	27147

APPENDIX-C

APPLICATIONS FILED BY RESIDENTS AND NON–RESIDENTS THROUGH VARIOUS ROUTES FOR LAST 10 YEARS

Applicants	2010-11	2011-12	2012-13	2013-14	2014-15	2015-16	2016-17	2017-18	2018-19	2019-20
Residents	8312	8921	9911	10941	12071	13066	13219	15550	17005	**20843**
Non Residents										
Ordinary	816	1031	1144	1228	1461	1915	2084	2290	2777	**3156**
Convention	3728	4280	4184	3704	3174	3675	3649	3610	3911	**3588**
National Phase Applications under PCT	26544	28965	28435	27078	26057	28248	26492	26404	26966	**28680**
GRAND TOTAL	**39400**	**43197**	**43674**	**42951**	**42763**	**46904**	**45444**	**47854**	**50659**	**56267**

APPENDIX-D

MISCELLANEOUS INFORMATION RELATING TO PATENT DURING THE PERIOD FROM 2010-11TO 2019-20

Year	No. of Applications filed	Number of requests for examination	No. of applications deemed to have been abandoned due to non-filing of complete specification Under Sec. 9(1)	No. of applications deemed to have been abandoned due to non - compliance Under Sec. 21(1)	Number of Patents granted		Number of Patents in force	
					Indian Patentee	Foreign Patentee	Indian Patentee	Foreign Patentee
1	2	3	4	5	6	7	8	9
2010-11	39400	31493	185	5186	1273	6236	7301	32293
2011-12	43197	33811	698	3800	699	3682	7545	32444
2012-13	43674	36247	361	4559	716	3410	8308	35612
2013-14	42951	37474	224	6418	634	3592	7464	35168
2014-15	42763	34958	12	6970	684	5294	7561	35695
2015-16	46904	35960	1226	12782	918	5408	7306	37218
2016-17	45444	38578	4357	10408	1315	8532	7660	41105
2017-18	47854	37208	184	24992	1937	11108	8830	47934
2018-19	50659	38665	3779	30458	2511	12772	9787	54899
2019-20	**56267**	**42007**	**3761**	**23291**	**4003**	**20933**	**12181**	**69098**

APPENDIX-E

NUMBER OF PATENT APPLICATIONS FILED FROM 2015-16 TO 2019-20 UNDER MAJOR FIELDS OF INVENTIONS

Field of Invention/ Year	Chemical	Pharma-ceuticals	Polymer Science & Technology	Computer/ Electronics	Communi-cation	Electrical	Physics	Bio-Medical	Mechanical	Other fields (See Appendix- El)	Total
2015-2016	6463	2966	1230	5988	5770	4102	2852	1579	10164	5790	46904
2016-2017	5911	2122	1158	6443	5315	4141	2693	1048	10715	5898	45444
2017-2018	6343	2741	1116	6089	5486	4278	2996	1095	11573	6137	47854
2018-2019	6560	2683	1100	5540	6308	4703	3659	812	12414	6880	50659
2019-2020	**5198**	**5622**	**1309**	**11126**	**6862**	**4587**	**2646**	**3508**	**10359**	**5050**	**56267**

APPENDIX-E1

NUMBER OF PATENT APPLICATIONS FILED FROM 2015-16 TO 2019-20 UNDER VARIOUS OTHER FIELDS OF INVENTIONS

Field of Invention/ Year	Bio-technology	Bio-Chemistry	Food	Micro-Biology	Metallurgy & Material Science	Textile	Civil	General Engineering	Agro-chemicals	Agriculture Engineering	Traditional Knowledge
2015-2016	887	372	387	316	727	734	749	757	479	268	114
2016-2017	876	258	283	253	777	837	741	1225	319	245	84
2017-2018	992	331	344	297	713	795	779	1032	429	338	87
2018-2019	882	282	430	301	734	881	956	1537	392	411	74
2019-2020	**1065**	**442**	**1111**	**17**	**836**	**693**	**816**	**27**	**19**	**13**	**11**

Total- APPENDIX- E1: 5050

APPENDIX-F

NUMBER OF PATENTS GRANTED FROM 2015-16TO 2019-20 UNDER MAJOR FIELDS OF INVENTIONS

Field of Invention/ Year	Chemical	Pharma-ceuticals	Polymer Science & Technology	Computer/ Electronics	Communi-cation	Electrical	Physics	Bio-Medical	Mechanical	Other fields (See Appendix -El)	Total
2015-2016	1683	370	279	810	414	362	175	69	1414	750	6326
2016-2017	2673	551	562	1049	805	579	260	167	1939	1262	9847
2017-2018	3376	733	747	1028	1031	818	568	150	2514	2080	13045
2018-2019	4242	761	701	1074	1414	1253	703	290	2857	1988	15283
2019-2020	**4848**	**1930**	**923**	**2141**	**2692**	**2451**	**1349**	**565**	**5301**	**2736**	**24936**

APPENDIX-F1

NUMBER OF PATENT APPLICATIONS GRANTED FROM 2015-16 TO 2019-20 UNDER VARIOUS OTHER FIELDS OF INVENTIONS

Field of Invention/ Year	Bio-technology	Bio-Chemistry	Food	Micro-Biology	Metallurgy & Material Science	Textiles	Civil	General Engineering	Agro-chemicals	Agriculture Engineering
2015-2016	185	52	32	44	94	94	60	142	45	2
2016-2017	333	73	71	81	182	93	100	228	97	4
2017-2018	546	142	106	108	429	179	124	297	125	24
2018-2019	457	161	76	104	272	212	155	**303**	215	33
2019-2020	**357**	**188**	**114**	**152**	**363**	**493**	**280**	**446**	**289**	**54**

TOTAL APPENDIX-F1: 2736

APPENDIX - G

FEES RECEIVED DURING 2019-20 IN RESPECT OF VARIOUS PROCEEDINGS UNDER THE ACT AND THE RULES

Sl. No.	Fees collected in respect of	Total amount received (Rs.)
1	1-New Application For Patent With Provisional /Complete Specification Check For No.Of Pages & Claims	1866154900
2	2-Complete After Provisional Specification - Form 2 Check For No. OF Pages & Claims	28284650
3	4(i)-On Request For Extension Of Time U/S 53(2) and 142(4), Rule 13(6),80(1A) and 130-Form 4	8138410
4	4(ii)-On Request For Extension Of Time Under Sub Rule(5) of Rule 24B-Form 4	75371100
5	6-Application For Post Dating	1782960
6	8(i)-Substitution/Change Of Applicant - Form 6	15955360
7	8(ii)-Request To Proceed In The Name Of Survivors/Other Parties	70960
8	9-Notice Of Opposition - Form 7 (POST GRANT)	363800
9	10-Notice For Attending Hearing - No Form	280450
10	11-Mention Of Inventor As Such In A Patent - Form 8	2430640
11	12-Request For Early Publication - Form 9	38035500
12	Renewal Of Patents	2878849490
13	18(i)-Amendment Of Application Before Grant - Form 13	39356760
14	18(ii)-Amendment Of Application After Grant - Form 13	363200
15	18(iii)-Changing Name/Address/Nationality/Address For Service - Form 13	26016570
16	19-Opposition To Amendment/Restoration/Surrender - Form 14	60000
17	20-Restoration Of Patent - Form 15	1205400
18	21-Additional Fee For Restoration	1958500
19	22-Offer To Surrender A Patent	1000
20	24-For Entry In The Register Of Patent - Form 16	14185550
21	25-For Alteration Of Entry In The Patent Register	4433950
22	26-For Entry Of Additional Address For Service	8000
23	28(i)-Request For Examination After 18 months Publication - Form 18	703842200
24	28(ii)-Request For Express Examination - Form 18	51559200
25	32-Registration As a Patent Agent - Form 22	1322500
26	33-Request For Appearing In The Agent Exam	5097600
27	34(i)-Continuance Of Agent Name In The Register - 1st Year	330960
28	34(ii)-Continuance Of Agent Name In The Register - From 2nd Year	4723920
29	35-Duplicate certificate For Patent Agent	3350

30	36-Restoration Of Agent Name In The Register - Form 23	101550
31	37-Correction Of Clerical Errors	2462000
32	38-Application For Review Of Decision Of Controller Form 24	1199750
33	39-PermissionFor Applying Patent Outside India - Form 25	21848300
34	41-CERTIFIED COPIES U/S 72 OR FOR CERTIFICATE U/S-147AND RULE 133(1)	24675205
35	42-For Certifying Office Copies, Printed Each	108800
36	43-Request For Inspection Of Register	72620
37	44-Request For Information	86750
38	46-Petition For Delay In Filing Priority Documents/For Condoning Irregularity/Condoning Delay	283223050
39	47-Supply Of Photocopies Of Documents	65070
40	48-Transmittal Fee For Intl Application	5902900
41	49-Preparation Of Certified Copy Of Priority Document	8846085
42	Miscellaneous - Form 30	728596
43	4(iii) REQUEST FOR EXTENSION OF TIME UNDER SUB-RULE(11) OF RULE 24(C) Form 4	256000
44	CONVERSION OF REQUEST FOR EXAMINATION FILED UNDER RULE 24 B FOR EXPEDITED EXAMINATION FORM 18A	17144002
45	REQUEST FOR ADJOURNMENT OF HEARING UNDER RULE 129A	24221200
46	CERTIFIED COPIES U/S 72 OR FOR CERTIFICATE U/S-147AND RULE 133(2)	4552460
47	Balance fee w.r.t. Change in Applicant Type	10079918
48	Fee w.r.t. addition of claims, pages, sequence listing upon amendment	35020276
49	1. Written statement and evidence of opponent (fee as payable in fourth schedule entry no. 6 to be paid)/2. Affidavit (fee as payable in fourth schedule entry no. 6 to be paid)	15640
50	1. Written statement and evidence of patentee (fee as payable in fourth schedule entry no. 6 to be paid)/2. Affidavit (fee as payable in fourth schedule entry no. 6 to be paid)	73000
51	Response to office action (Mandatory)	2024235
52	ISA fee received from IB	4888938
	TOTAL	**6217783225**

CHAPTER-IV

PATENT COOPERATION TREATY

INTRODUCTION

On September 7, 1998, India deposited instrument of accession to two international treaties with WIPO in Geneva. These two treaties, namely, the Paris Convention for the Protection of Industrial Property and the Patent Cooperation Treaty (PCT) became functional in India from December 7, 1998.

PCT provides for filing of a single international applicationhaving effect in each of the member countries to the PCT that are designated by applicant in his international application for patent. Simplified procedures and reduced costs for patent protection in multiple countries is great advantage offered by the PCT.

PCT is administered by WIPO, which provides for the applicants of member countries, a facility for filing a single international application for grant of a patent in 153 countries. It also has additional benefits of providing an International Search Report (ISR) and International Preliminary Examination Report (IPER) before entering national phase in each individual country. The ISR and IPER are established according to internationally regulated high quality standards by one of the Patent Offices of the world that are highly experienced in examining patent applications and have been specially appointed by WIPO to carry out International Search and Preliminary Examination.

1. Indian Patent Office as Receiving Office under the PCT:

India became a member of PCT and Indian Patent Office (IPO) started functioning as Receiving Office since 1998. Under the PCT, a national resident applicantof India can file an international application under the PCT either through Receiving Office– India (RO/IN) or through Receiving Office of the International Bureau (RO/IB) of WIPO.

a) Filing trend of international applications by nationals/residentsof India through RO/IN and RO/IB:

	RO/IN			RO/IB			Grand Total
Year	Type of Applicant		Total	Type of Applicant		Total	(RO/IN and RO/IB)
	Individual	Legal entity		Individual	Legal entity		
2015-16	234	459	693	226	485	711	1404

2016-17	472	272	744	276	523	799	1543
2017-18	274	490	765	360	577	937	1701
2018-19	336	630	966	503	558	1061	2027
2019-20	**351**	**668**	**1019**	**325**	**540**	**865**	**1884**

b) Filing of applications through ePCT:

RO/IN provides the facility to file an international application either on paper at the counters of Patent Offices at Delhi, Chennai, Mumbai and Kolkata or electronically through ePCT filing portal offered by WIPO. Filing through RO/IB can also be made on paper or electronically using ePCT.

International Applications filed to RO/IN electronically through ePCT:

Year	Number	Share of total filing at RO/IN
2015-16	308	44%
2016-17	473	64%
2017-18	669	88%
2018-19	916	95%
2019-2020	**976**	**98%**

c) Electronic Processing and timeliness:

RO/IN utilizes the ePCT for further processing of International Applications and sends the Record Copies and Search Copies electronically through ePCT. These functions have been centralized at IPO Delhi since April 2017. eSearch Copies are being sent to 6 out of 7 ISAs declared competent by RO/IN for Indian applicants. The timeliness in sending Record Copies to the International Bureau of WIPO within the prescribed time limit of 4 weeks from the International Filing Date improved remarkably from 66% in 2016-17, 96% in 2017-18 and 100% in 2018-2019 and 2019-2020.

Top 10 PCT filings by Indian applicants (RO/IN) in 2019-20

Sl. No.	Applicant Name	Total filing
1	INDIAN INSTITUTE OF TECHNOLOGY (Collectively)	56
2	TVS MOTOR COMPANY LIMITED	37
3	TELEFONAKTIEBOLAGET LM ERICSSON (PUBL)	32
4	HERO MOTOCORP LIMITED	26
5	COUNCIL OF SCIENTIFIC AND INDUSTRIAL RESEARCH	20

6	MSN LABORATORIES PRIVATE LIMITED, R&D CENTER	11
7	MYLAN LABORATORIES LIMITED	11
8	STERLITE TECHNOLOGIES LIMITED	10
9	SLING MEDIA PVT LTD.	9
10	TATA CONSULTANCY SERVICES LIMITED	8

2. Indian Patent Office as ISA and IPEA under the PCT:

Indian Patent Office has been recognized by the WIPO to function as International Searching and Preliminary Examining Authority (ISA/IPEA) under the PCT and started functioning from October 15, 2013. Currently, the IPO receives Search Copies and Demands from PCT applicants who are nationals/residents of India and Iran. With respect to number of Search Copies received, the IPO continued to maintain the 9th position among the 23 Patent Offices functioning as ISA/IPEA under the PCT during the year 2019-20. As per the WIPO IP Statistics Database, 82% of Indian applicants chose the IPO as ISA during the year, even though the RO/IN has declared 6 other ISA/IPEAs as the competent ISA/IPEA for Indian applicants.

a) Year-wise details of Search Copies received in ISA/IN:

Year	Filed	Disposed	Withdrawn	Remained Pending during the year
2013-14	135	18	1	116
2014-15	519	502	4	129
2015-16	711	621	1	218
2016-17	940	983	0	175
2017-18	1213	1156	1	231
2018-19	1738	1639	3	327
2019-20	**1654**	**1640**	**2**	**339**

b)Year-wise details of Demands received in IPEA/IN:

Year	Filed	Disposed	Withdrawn	Remained Pending during the year
2013-14	0	0	0	0
2014-15	11	0	1	10
2015-16	24	14	1	19
2016-17	30	28	1	20
2017-18	49	29	0	40
2018-19	61	54	1	46
2019-20	**65**	**87**	**1**	**23**

c) Quality Management System in ISA/IPEA:

Indian Patent Office (IPO) has established a Quality Management System for ISA/IPEA as prescribed by the International Search and Preliminary Examination Guidelines under the PCT. During the year 2019-20, IPO further strengthened the functions to ensure better quality and timeliness of the reports. A Quality Cell of ISA/IPEA, comprised of Examiners and Controllers of different subject specialization, checks the quality of the reports before they are established and sent to applicant and WIPO.

d) Timeliness:

The timeliness in establishing the reports was 100% during the current year. All 1640 reports during 2019-20 were established within the time limit prescribed by WIPO. The IPO sends the International Search and Examination Reports by email if provided by the applicants and transmits the reports to WIPO through PCT-EDI, the secure transmission channel established with WIPO. The reports were communicated to the applicants immediately on the date of establishment of the reports.

e) Publication of Search Strategies:

IPO started sharing the Search Strategies for publication on Patentscope Search Portal of WIPO for international applications, for which reports are established since January 1, 2018. India is the seventh International Authority among 23 Authorities to start this service. This is an important step by IPO towards transparency and accountability, which gives confidence to the applicants about the services provided by IPO. The full Search Strategies are useful for applicants as well as Examiners of other offices to assess the level of effort taken by the Examiner in ISA to find the citations.

f) Applicants opting IPO as ISA/IPEA:

Applicants of PCT international applications who are nationals/residents of India and Iran can select the Indian Patent Office as ISA/IPEA. Indian applicants choosing the IPO as ISA/IPEA include individual inventors, Startups, premier research institutions, universities, Indian multi-national conglomerates, Indian units of foreign multi-national firms and foreign firms with Indian inventors or Indian companies as co-applicants.

Top 10 Companies opting IPO as ISA/IPEA (ISA/IN) during 2019-20

S. No.	Name of applicant	No. of applications
1	INDIAN INSTITUTE OF TECHNOLOGY (Collectively)	65
2	TELEFONAKTIEBOLAGET LM ERICSSON (PUBL)	39
3	COUNCIL OF SCIENTIFIC & INDUSTRIAL RESEARCH	29
4	HERO MOTOCORP LIMITED	25
5	TVS MOTOR COMPANY LIMITED	24
6	RELIANCE Group	23
7	DR. REDDY'S LABORATORIES LIMITED	19
8	GLENMARK Group	16
9	INDIAN INSTITUTE OF SCIENCE	14
10	STERLITE TECHNOLOGIES LIMITED	11

g) Search Copies and Demands received from Iran:

During the year 2019-20, ISA/IN received 149 Search copies and IPEA/IN received 6 Demands from applicants who are residents/nationals of Iran.

Search copies received FromIRAN in ISA (IN) during last five years	
Year	**Total**
2015-16	34
2016-17	24
2017-18	86
2018-19	138
2019-20	**149**

3) PCT Roving seminars during 2019-2020:

Indian Patent Office in collaboration with WIPO and in association with Industry Associations and academic institutions organized eight Roving Seminars in the month of June and November/December of 2019 as part of WIPO's on-going support to promote the awareness in respect of protecting the intellectual property and innovations globally through PCT.

The first round of four PCT Roving Seminars was conducted in June, 2019 at Dehradun, Lucknow, Kolkata and Bhubaneshwar and the Second round of 4 Roving Seminars was

conducted in November/December, 2019 at Ahmdabad, Visakhapattnam, Indore and Kochi.More than 100 participants attended the seminars at each location. The seminars were a huge success and this was reflected in the increased filings in the PCT applications as well as WIPO-DAS cases during the year.

The WIPO's Roving Seminars were designed to help innovators in their efforts to obtain protection for their innovations in cost-effective and efficient way.

PCT Roving Seminar at Dehradun on June 20, 2019





PCT Roving Seminar at Lucknow on June 24, 2019





PCT Roving Seminar at Kolkata on June 26, 2019





PCT Roving Seminar at Bhubaneshwar on June 28, 2019





PCT Roving Seminar at Ahmedabad on November 25, 2019





PCT Roving Seminar at Vishakhapatnam on November 27, 2019





PCT Roving Seminar at Indore on November 29, 2019





CHAPTER-V

DESIGNS

INTRODUCTION:

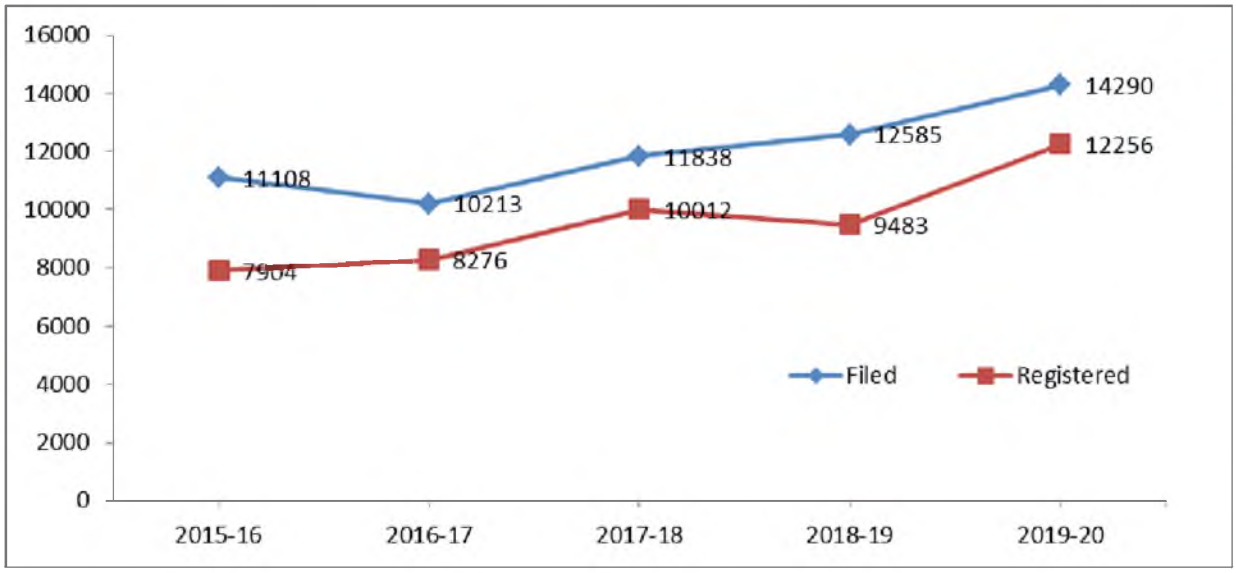
Registration and protection of industrial designs in India is administered by the Designs Act, 2000 and the corresponding Designs Rules, 2001. The Designs Rules, 2001 were amended in 2008 and 2014. The amendment in the Designs Rules with effect from December 30, 2014 incorporated 'Small Entity' as a new category of applicant in addition to natural person and other than small entity.

The applications for registration of designs applied to articles are classified according to the Third Schedule of the Designs Rules, 2001, which is mainly based on the International Classification System for Industrial Designs known as the Locarno Classification. India formally became a member state of Locarno system during the current year.

1. Design Applications Filed and Registered:

The number of applications filed for registration of designs was 14290 and the number of designs registered was 12256 during the reporting year.

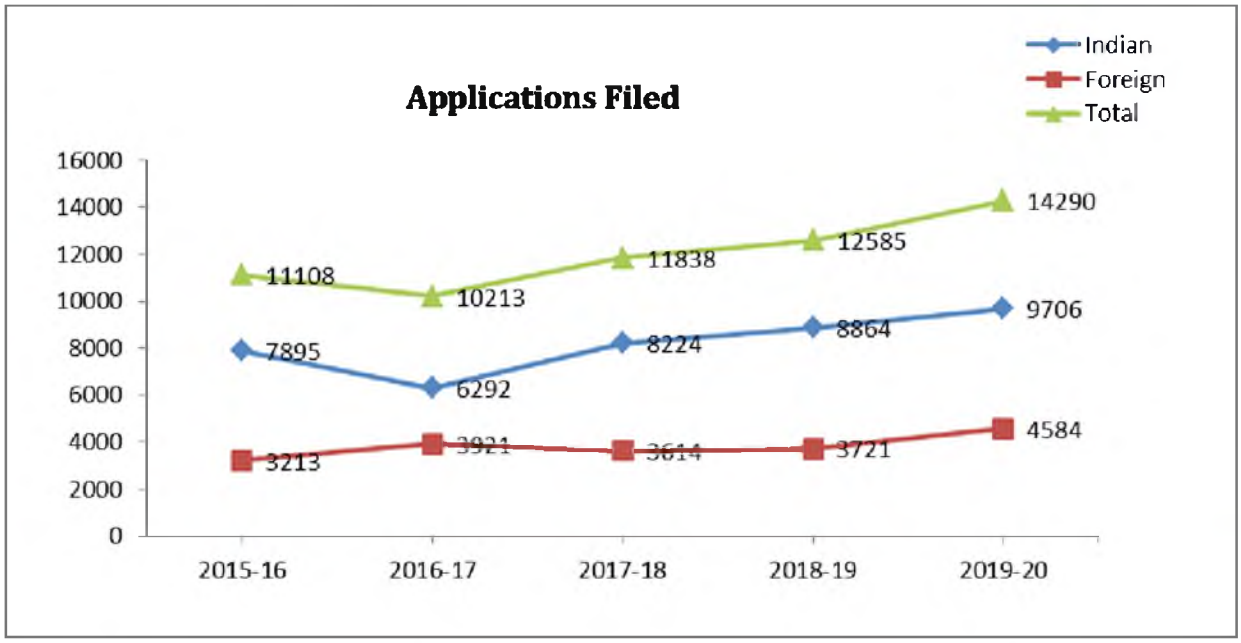
The trend of filing of design applications and registrations are shown as follows (Also Appendix B):



1.1. Applications from Indian and Foreign Origin:

The number of applications originated from India was 9706, while number of design applications from foreign origin was 4584 during the reporting year. The number of applications originating from India was about 68% of total filing.

The filing trends of the Indian and foreign applications are shown as follows (Also Appendix C):

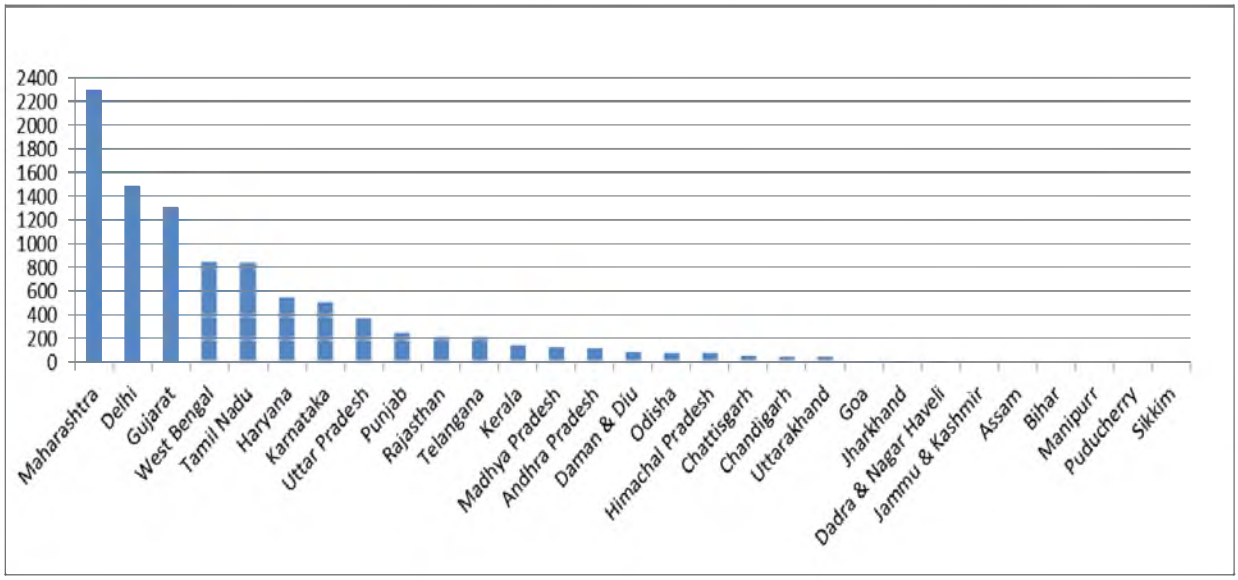


1. 2. Applications filed by Indian Applicants:

Out of the total number of applications filed by Indian applicants during the year, Maharashtra continued to occupy the first position with 2298 applications. Delhi occupied the second position with 1484 applications, while Gujarat took the third position with 1305 applications. The State/Union Territory wise break up is given in **Appendix D.**

The graphical representation of the filing of applications by States/Union Territories is depicted below.

Applications filed by Indian Applicants (State/Union Territory-Wise)



Some of the leading Indian applicants were Sabyasachi Couture (571), Relaxo Footwears Limited (216), Siddhi Vinayak Knots & Prints Pvt. Ltd. (210), Biba Apparels Private Limited (204), Hero MotoCorp Limited (167), etc.

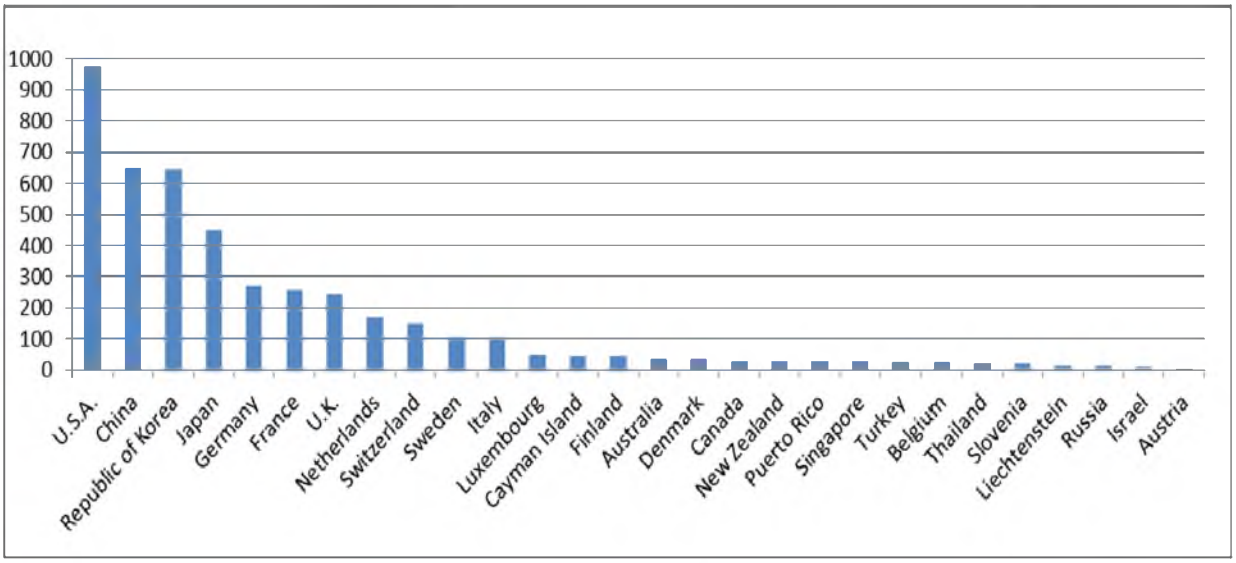
1.3. Applications filed by Foreign Applicants:

With respect to applications originating from abroad, U.S.A. leads with the maximum number of applications (974) followed by China (650), Republic of Korea (646), Japan (448), Germany (274), France (258), and United Kingdom (U.K.) (246). There were 4584 applications claiming priority under the reciprocal arrangements under Section 44 of the Designs Act, 2000.

The country/region-wise break up is shown in **Appendix E.**

The graphical representation of foreign origin filing of 4581 applications by various countries/region is depicted below.

Applications filed by Foreign Applicants

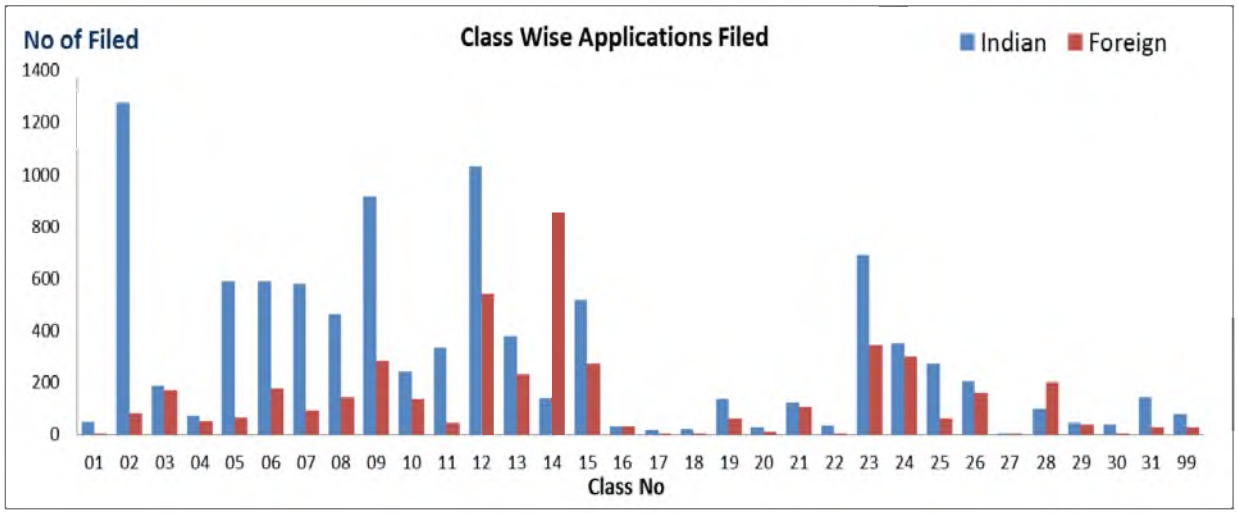


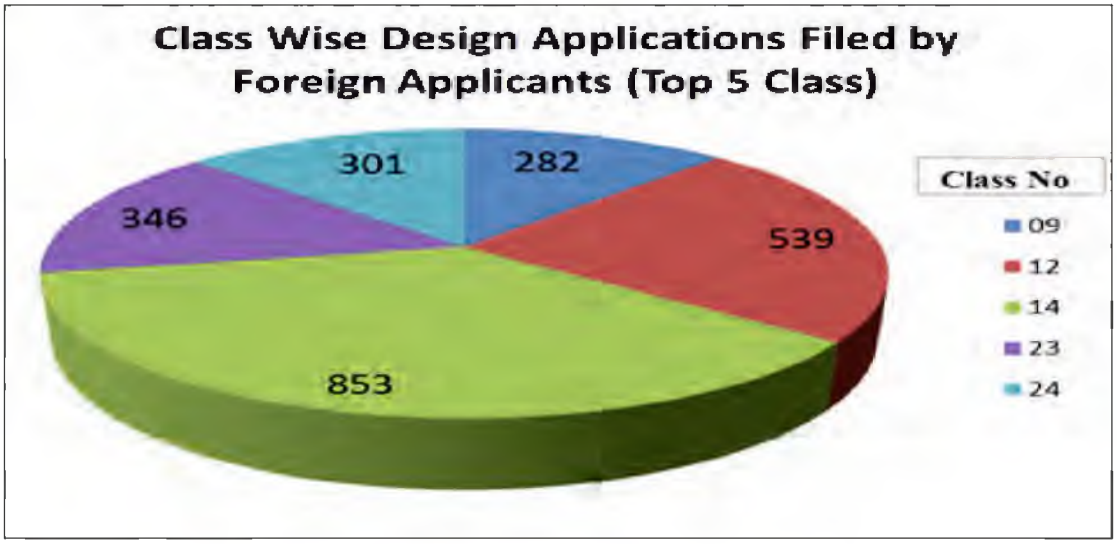
The leading foreign applicants filing design applications were Samsung Electronics Co. Ltd. (399), Renault S.A.S (184), Beijing Xiaomi Mobile Software Co., Ltd. (148), Koninklijke Philips N.V. (121), etc.

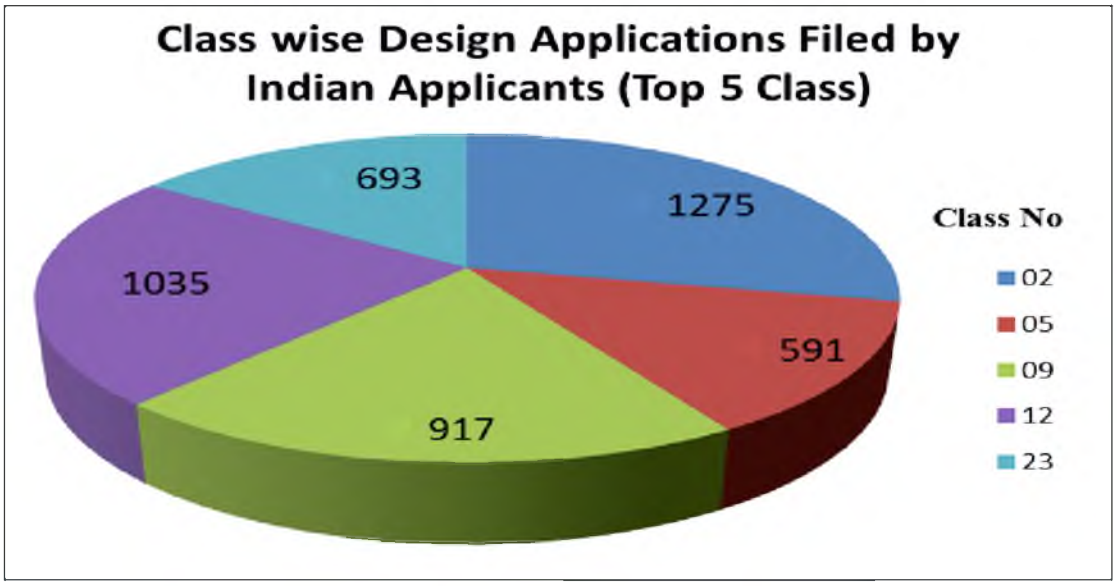
1.4. Design applications filed according to classification:

Among the applications originating from India, 1275 applications were filed under Class 02 (Articles of clothing & haberdashery) followed by 1035 under Class 12 (Means of Transport or Hoisting), 917 under Class 09 (Packages & Containers). On the other hand, the class-wise trend of applications originating from foreign countries during the reporting year were 853 applications under Class 14 (Recording, communication or information retrieval equipment), 539 under Class 12 (Means for transport or hoisting), 346 under Class 23 (Fluid Distribution Equipment), 301 under Class 24 (Fluid distribution equipment, etc.), and 282 under Class 09 (Packages and containers). The remaining applications were filed in other classes.

The detailed class wise filing trend for Indian as well as foreign applications is presented below-


No of Filed
Class Wise Applications Filed
Indian
Foreign
1400
1200
1000
800
600
400
200
0
01 02 03 04 05 06 07 08 09 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24 25 26 27 28 29 30 31 99
Class No


Class Wise Design Applications Filed by Foreign Applicants (Top 5 Class)
301
282
346
539
853
Class No
09
12
14
23
24

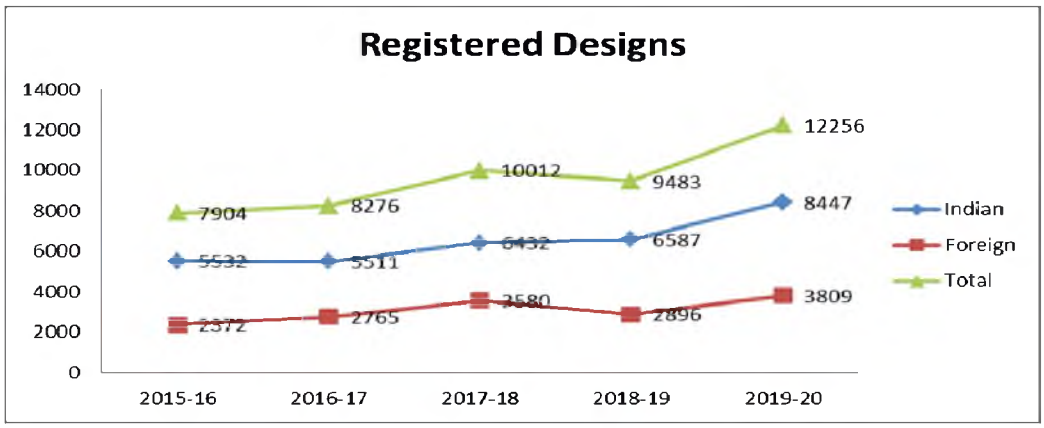

Class wise Design Applications Filed by Indian Applicants (Top 5 Class)
693
1275
1035
591
917
Class No
02
05
09
12
23

2. Design Applications Registered:

2.1. Design Registration from Indian and Foreign origin:

Out of total of 12256 designs registered, 8447 registered designs were originated from India and 3809 were of foreign origin.

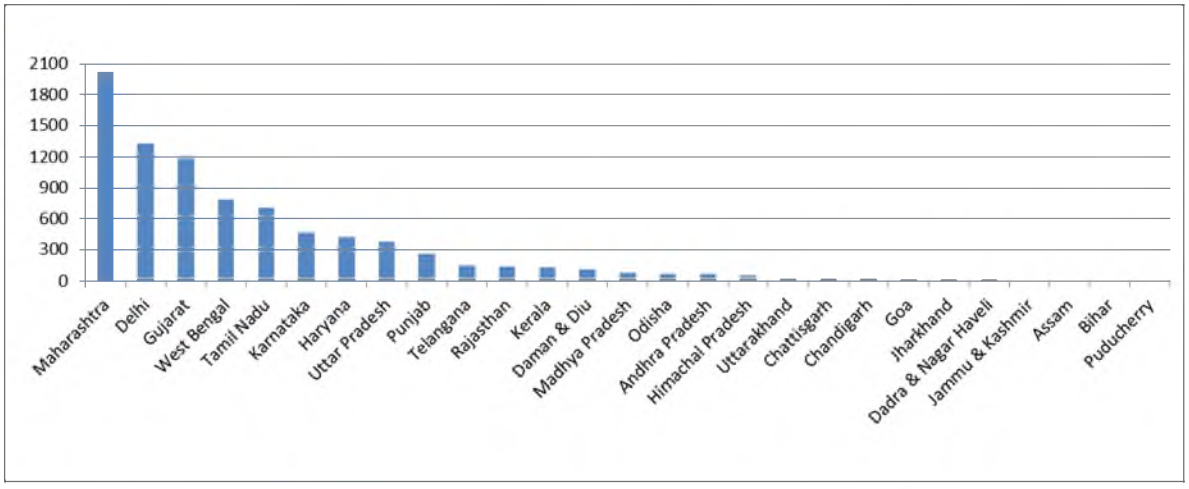
The registration trends of Indian and Foreign origin Designs are shown as follows:



Out of total number of applications registered by Indian applicants during the year, Maharashtra continued to occupy the first position with 2018 registrations. Delhi occupied the second position with 1334 registrations, while Gujarat took the third position with 1180 registrations. The State/Union Territory wise break up is shown in **Appendix F**. The graphical representation of the applications originating from States/Union Territories is depicted below.

2.2. Design Registration from Indian Origin:

Registered Designs – State/Union Territory-Wise

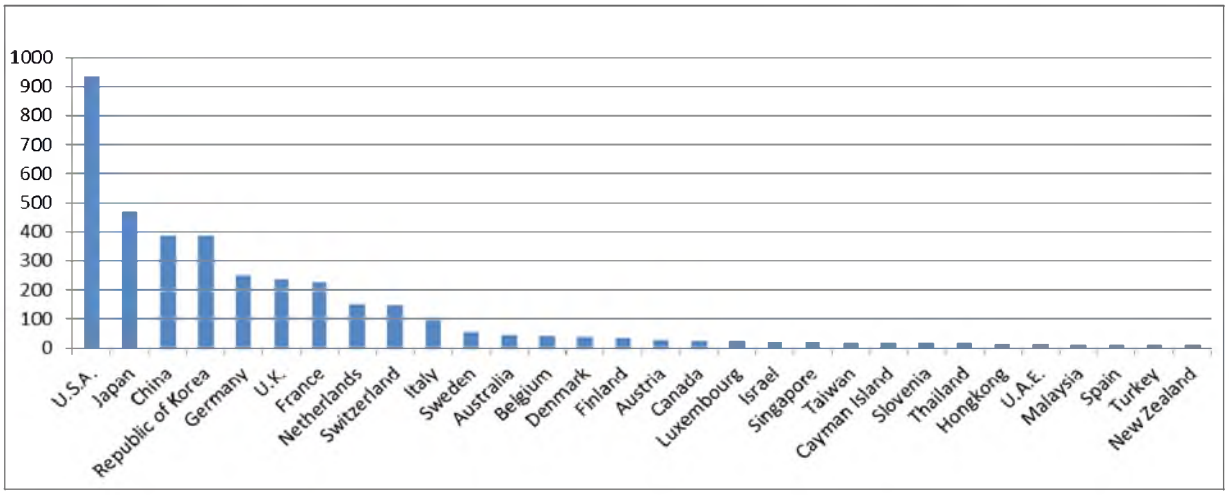


Further, leading Indian applicants having design registrations were in the name of Sabyasachi Couture (499), Siddhi Vinayak Knots & Prints Pvt. Ltd. (263), Relaxo Footwear Limited (181), Godrej & Boyce Mfg. Co. Ltd., (179), etc.

2.3 Design Registration from Foreign Origin:

In the sector of registered designs originating from abroad, U.S.A. leads with the maximum number of registrations (937) followed by Japan (468), Republic of Korea (388) and China (388). The graphic representation of various countries/regions with registered designs out of 3809 registrations of foreign origin is depicted below. The country/region-wise break up is shown in **Appendix G.**

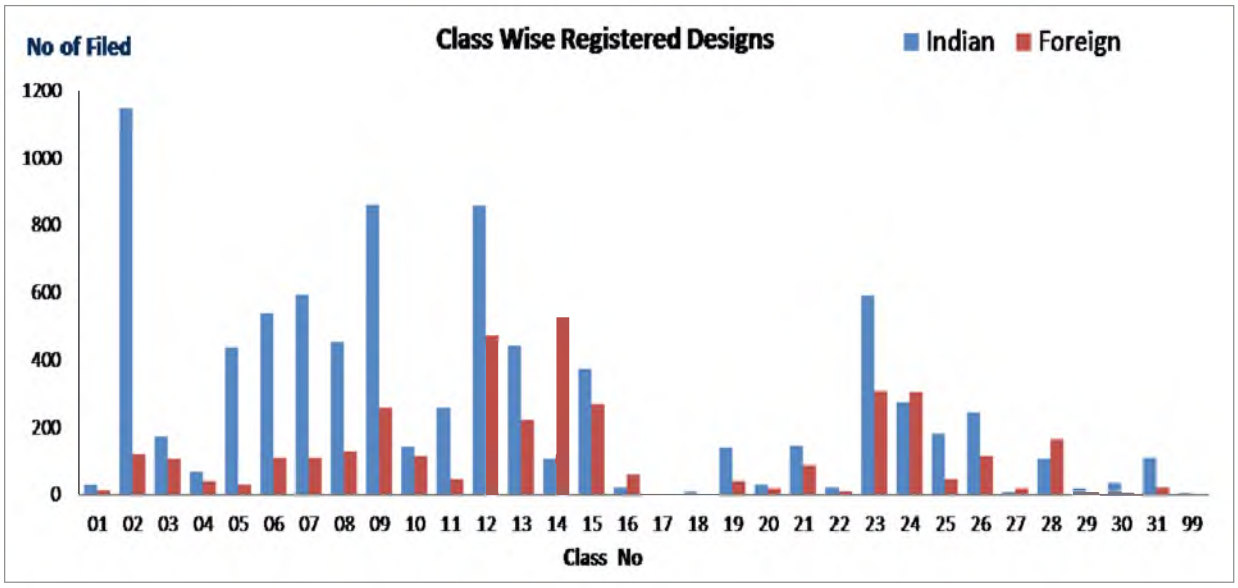
Registered Designs – Country/Region wise

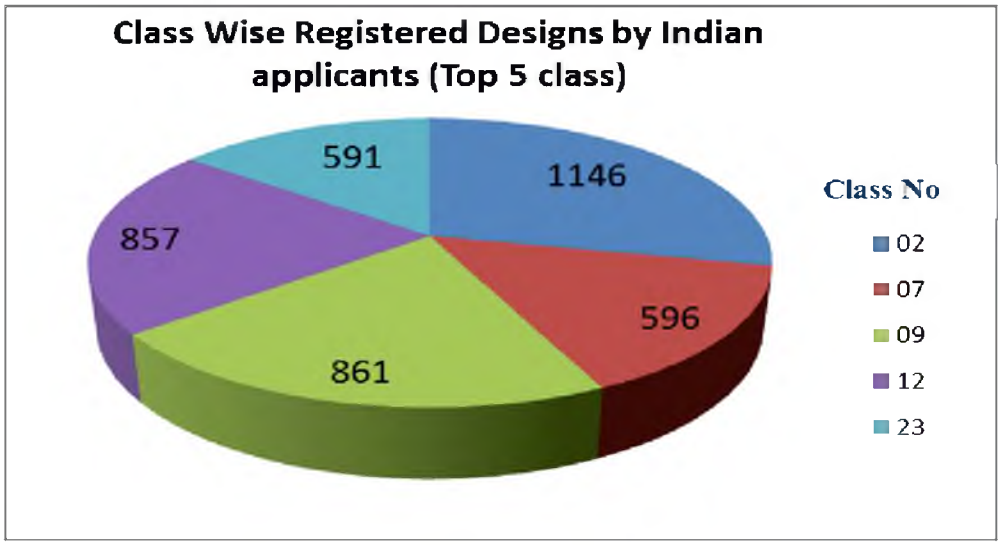


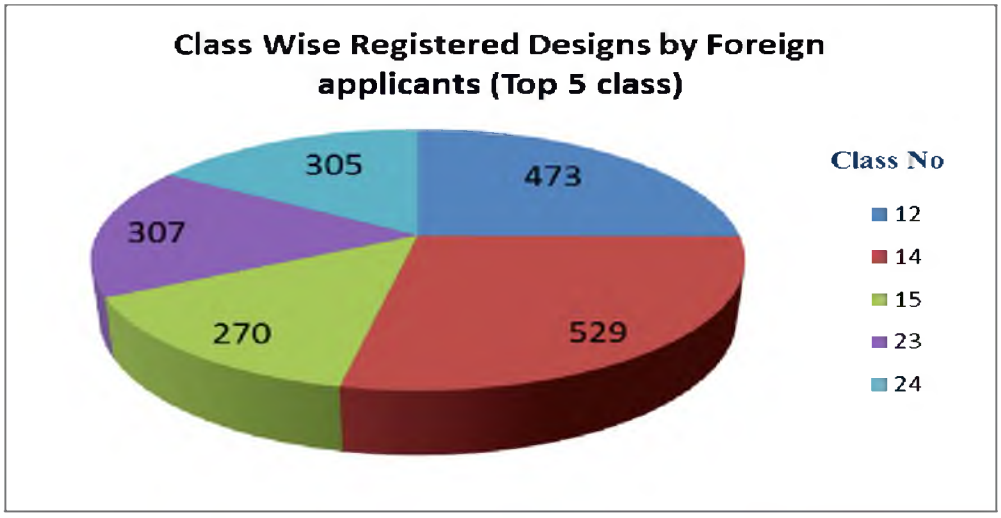
The leading foreign applicants having design registrations were Samsung Electronics Co. Ltd. (218), Renault S.A.S (123) and Koninkilijke Philips N.V. (95).

3. Design applications registered according to classification:

The class wise distribution of registered designs of Indian origin mainly comprises 1146 under Class 02 (Articles of clothing & haberdashery), 861 under Class 09 (Packages and containers for the transport or handling of goods) and 857 under Class 12 (Means for transport or hoisting). Whereas, the distribution of registered designs in respect of foreign origins mainly comprises 529 under Class 14 (Recording, Communication or Information Retrieval Equipment), 473 under Class 12 (Means for transport or hoisting), 307 under Class 23 (Fluid distribution equipment) and 305 under Class 24 (Medical and Laboratory Equipment). The detailed class-wise registration for Indian as well as foreign applications is presented below:


Class Wise Registered Designs
Indian
Foreign
No of Filed
1200
1000
800
600
400
200
0
01 02 03 04 05 06 07 08 09 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24 25 26 27 28 29 30 31 99
Class No


Class Wise Registered Designs by Indian applicants (Top 5 class)
1146
596
861
857
591
Class No
02
07
09
12
23


Class Wise Registered Designs by Foreign applicants (Top 5 class)
473
529
270
307
305
Class No
12
14
15
23
24

4. Examination of Design Applications:

Total 13642 applications for registration of designs were examined during the reporting period, out of which First Examination Reports (FER) were required to be communicated for 10599 applications. The number of designs registered during the year was 12256. Apart from registration, 1806 applications were refused and 621 applications were abandoned.

5. Extension of Copyright [Under Section 11(2)]:

During the reporting year, 1779 applications were received for extension of copyright of registered designs. 1400 registered designs were renewed for further term of 5 years during the reporting year. Action has been initiated for rest of the cases. 80 applications for restoration of designs were filed during the year and 56 applications were restored.

6. Miscellaneous Proceedings:

a. **Cancellation of registered designs [Under Section 19]:** During the year, 102 applications for the cancellation of registered designs were filed. 105 decisions were issued, out of which for 32 cases, petitions were allowed and for 73 cases, petitions were dismissed.

b. **Public Inspection [Under Rule 38]: 96** petitions were received for inspection of registered design applications.

c. **Alteration of names and address, etc. [Under Rule 31]:** 1059 requests for alteration of name, address and address for service were received during the year, out of which 872 were disposed and orders issued. Action was initiated for the rest of the cases.

d. **Assignment under Section 30:** During the year under report, 883 assignment applications were field, out of which 632 were disposed and orders issued. Action was initiated for the rest of the cases.

e. **Search Information [under Section 18]:** During the year under report, 199 cases under Section 18 were field and all were disposed.

f. **Correction of clerical error [under Section 29]:** During the reporting year 54 requests for correction of clerical errors were received and all were disposed.

g. **Certified copies under rule 41 and Section 17(2):** During the year, 636 requests were filed and all of them were disposed.

7. Designs in Force:

The numbers of registered designs in force at the end of the reporting year were 88152.

8. Revenue:

The total revenue generated during the year towards fees in respect of design applications and other proceedings under the Designs Act, 2000 and the Rules was Rs. **69000400 (APPENDIX A):**

APPENDIX A

Revenue generated during the Year 2019-20

Revenue generated on Designs during 2019-20			
Description of Document*	**No.**	**Fees (Rs.)**	**Amount (Rs.)**
Applications for registration of designs under section 5 & 44 of The Designs Act, 2000 (including the applications received in Delhi, Mumbai & Chennai Patent Offices).	14290	1000, 2000, 4000	44024000
Applications to extend copyright under Section 11(2)	1779	2000, 4000, 8000	13966800
Restoration of lapsed design under Section 12(2)	80	1000, 2000, 4000	487000
Assignment under Section 30 and 31	883	500,200 1000,400 2000,800	948600
Cancellation of Design under Section 19	102	1500 3000, 6000	427500
Certified copy under Section 26 and 17(2)	636	500, 1000, 2000	1294,000
Miscellaneous other fees received under the Designs Act, 2000 & Design Rules, 2001 including Delhi, Mumbai & Chennai Patent Offices.		As per First Schedule	7852500
GRAND TOTAL			**69000400**

APPENDIX-B

TREND OF APPLICATIONS FILED AND REGISTERED

Year	Filed	Registered
2015-16	11108	7904
2016-17	10213	8276
2017-18	11838	10012
2018-19	12585	9483
2019-20	**14290**	**12256**

APPENDIX-C

TREND OF APPLICATIONS FILED AND REGISTERED BY ORIGIN

Year	Filed		Registered	
	Indian	Foreign	Indian	Foreign
2015-16	7895	3213	5532	2372
2016-17	6292	3921	5511	2765
2017-18	8224	3614	6432	3580
2018-19	8864	3721	6587	2896
2019-20	**9706**	**4584**	**8447**	**3809**

APPENDIX – D

FILING OF DESIGN APPLICATIONS - STATE/UNION TERRITORY (UT) - WISE

State/UT	No of Applications
Andhra Pradesh	119
Assam	4
Bihar	4
Chandigarh	51
Chattisgarh	58
Dadra & Nagar Haveli	16
Daman & Diu	83
Delhi	1484
Goa	21
Gujarat	1305
Haryana	545
Himachal Pradesh	74
Jammu & Kashmir	8
Jharkhand	19
Karnataka	507
Kerala	145
Madhya Pradesh	127
Maharashtra	2298
Manipur	4

Odisha	80
Puducherry	3
Punjab	244
Rajasthan	208
Sikkim	2
Tamil Nadu	836
Telangana	204
Uttar Pradesh	367
Uttarakhand	43
West Bengal	847
Total	**9706**

APPENDIX – E

FILING OF FOREIGN DESIGN APPLICATIONS – COUNTRY/REGION WISE

Country/Region	No. of Applications
Afghanistan	1
Australia	38
Austria	10
Bangladesh	1
Barbados	4
Belgium	24
Belorussia	2
Brazil	1
British isles	2
Canada	29
Cayman Island	45
China	650
Czech Republic	2
Denmark	36
Estonia	1
Finland	44
France	258
Germany	274
Greece	4
Guernsey	6
Hong kong	7
Hungary	1
Ireland	4
Isle of Man	6
Israel	14
Italy	96
Jamica	1
Japan	448
Liechtenstein	18
Luxembourg	48
Malaysia	9

Mexico	7
Monaco	1
Myanmar	1
Netherlands	170
New Zealand	28
Norway	3
Peru	1
Phillipines	1
Poland	3
Portugal	1
Puerto Rico	28
Republic of Korea	646
Russia	15
Singapore	28
Slovenia	19
South Africa	4
Spain	6
Sri Lanka	2
Sweden	113
Switzerland	150
Taiwan	4
Thailand	22
Turkey	25
U.A.E.	1
Ukraine	1
United Kingdom	246
U.S.A.	974
TOTAL	**4584**

APPENDIX – F

REGISTRATION OF DESIGNS - STATE/UNION TERRITORY (UT) - WISE

State/UT	No of Applications
Andhra Pradesh	67
Assam	6
Bihar	5
Chandigarh	20
Chattisgarh	24
Dadra & Nagar Haveli	12
Daman & Diu	109
Delhi	1334
Goa	17
Gujarat	1180
Haryana	414
Himachal Pradesh	46
Jammu & Kashmir	8
Jharkhand	13
Karnataka	463
Kerala	131
Madhya Pradesh	80
Maharashtra	2018
Odisha	70
Puduchery	2
Punjab	253
Rajasthan	139
Tamil Nadu	708
Telangana	145
Uttar Pradesh	374
Uttarakhand	28
West Bengal	781
Total	**8447**

APPENDIX – G

REGISTRATION OF DESIGNS – COUNTRY/REGION WISE

Country/Region	No. of Registrations
Afghanistan	2
Australia	45
Austria	29
Bahrain	1
Belgium	40
Brazil	1
British Virginia	4
Canada	25
Cayman Island	16
China	388
Denmark	37
Finland	36
France	225
Germany	249
Greece	1
Hongkong	15
Hungary	1
Ireland	1
Isle of Man	4
Israel	22
Italy	99
Japan	468
Lebanon	1
Lithuania	1
Luxembourg	25
Malaysia	11
Netherlands	152
New Zealand	10
Norway	4
Poland	2
Portugal	2
Qatar	2
Republic of Korea	388
Romania	1
Russia	3
Singapore	21
Slovakia	3
Slovenia	16

South Africa	5
Spain	11
Sri Lanka	3
Sweden	55
Switzerland	147
Taiwan	17
Thailand	16
Turkey	11
U.A.E.	14
Ukraine	1
United Kingdom	237
U.S.A.	937
Vietnam	4
TOTAL	**3809**

CHAPTER-VI

TRADE MARKS

This chapter presents the 61st Annual Report under section 149 of the Trade Marks Act, 1999 about the activities performed by Trade Marks Registry.

The purpose of trademarks legislation is to provide registration and better protection of trade marks for goods and services for prevention of use of fraudulent marks on merchandise in the country. The trademark confers statutory rights on the Registered Proprietor, which enables him to take legal action for infringement of the trademark. This is in addition to the right under common law to sue for passing off.

The Trade Marks Act, 1999 and the Trade Marks Rules, 2002 came into force on September 15, 2003. The Trade Marks Rules, 2002 has been replaced by the Trade Marks Rules, 2017 since March 6, 2017.

Head Office of the Trade Mark Registry is located at Mumbai and branch offices are at Delhi, Kolkata, Chennai and Ahmedabad.

With the growing awareness about IPRs in general and trade marks in particular in the country, the functions and responsibilities of Trade Marks Registry (TMR) have been progressively increasing. This role has further expanded with introduction of protection of service marks, well known marks, collective marks, provision for multi-class filing, etc. under the Trade Marks Act, 1999 and with provision of international registration of trademarks after India's accession to the Madrid Protocol.

1. TREND OF ACTIVITIES DURING 2019-20:

Various activities performed by the TMR during the year 2019-20 are provided in following Table. The filing trend of applications indicates that the number of applications filed during this year increased from 323798 to 334805, but the registration of trademark decreased from 316798 to 294172 as the TMR functions in March got affected by Covid-19 pandemic. Details of the activities in respect of number of applications filed, examined and registered are given in **Appendix I**.

Sl. No.	Activities	2015-16	2016-17	2017-18	2018-19	2019-20
1.	No. of Applications filed for Registration	283060	278170	272974	323798	**334805**
2.	No. of Applications advertised in the Trade Marks Journal	117408	333673	423030	396063	**378147**
3.	No. of Trade Marks Registered	65045	250070	300913	316798	**294172**
4.	No. of post examined applications disposed by otherwise than registration (i.e. refusal, abandonment, and withdrawal)	51122	40374	254864	202387	**125394**
5.	No. of marks in respect of which registration was renewed	58160	56270	64661	62497	**70583**
6.	No. of requests for recordal of post registration changes in registered trademarks (including assignments) disposed.	11075	13094	73764	47251	**32596**
7.	Certificates issued under section 45(1) of the Copyright Act, 1957	8185	9169	1605	2760	**7362**

2. TREND OF FILING OF TRADEMARK APPLICATIONS:

The trend of applications filed for registration of trade marks in India has shown remarkable increase during 2019-20. The number of applications received by TMR has increased from 323798 in 2018-19 to **334805** in 2019-20 and number of applications from foreign applicants has also increased from 13682 in 2018-19 to 13865 in 2019-20.

Further, during the year 2019-20, **14001** international registrations of foreign applicants under the Madrid System were designated to India for the protection of trademarks. These international registrations were examined and further processed as national applications.

i. Trend of applications filed from 2015-16 to 2019-20:

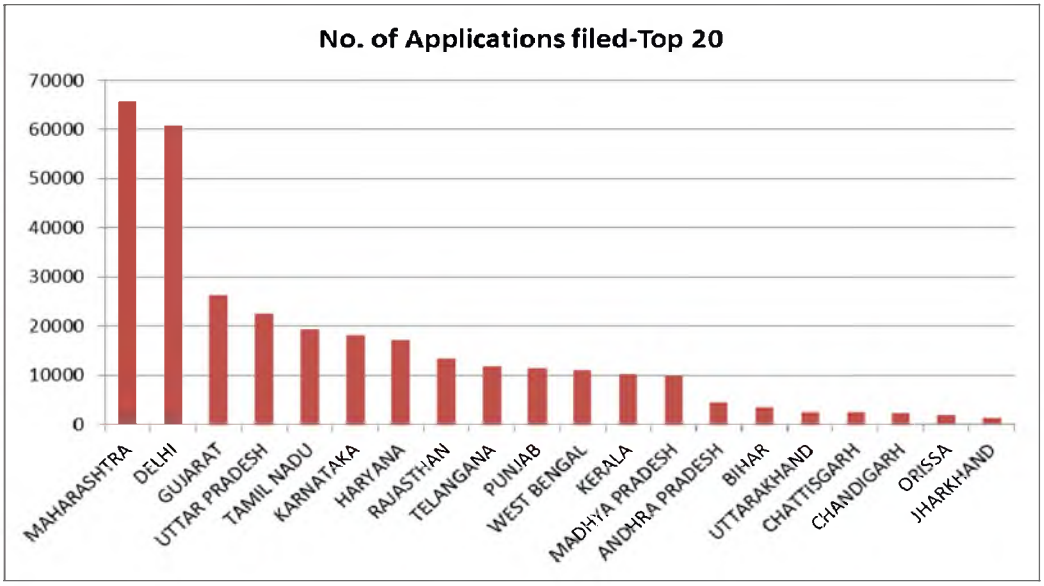
Year	Indian Applicants	Foreign Applicants	Total
2015-16	267390	15670	283060
2016-17	266730	11440	278170
2017-18	247734	25240	272974
2018-19	310116	13682	323798
2019-20	**320940**	**13865**	**334805**

ii. Trademark applications filed by Indians (State-wise):

Out of total number of 320940 applications filed by Indian applicants during the year, Maharashtra occupied the first position with 68750 applications. Delhi with 62720 applications is at second position, while the third position is occupied by Gujarat with 30032 applications. The number of applications received from the applicants of various States/Union Territories along with its graphical representation is as shown below:

State/ Union Territory	No. of Applications filed
ANDAMAN & NICOBAR	31
ANDHRA PRADESH	4386
ARUNACHAL PRADESH	26
ASSAM	1312
BIHAR	3539
CHANDIGARH	2175
CHATTISGARH	2382
DADRA & NAGAR HAVELI	93
DAMAN & DIU	111
DELHI	60720
GOA	726
GUJARAT	26167
HARYANA	17170
HIMACHAL PRADESH	1330
JAMMU AND KASHMIR	1269
JHARKHAND	1363
KARNATAKA	18063
KERALA	10205
LAKSHADWEEP	1
MADHYA PRADESH	9727
MAHARASHTRA	65750
MANIPUR	117
MEGHALAYA	56

MIZORAM	41
NAGALAND	28
ORISSA	1873
PONDICHERRY	230
PUNJAB	11440
RAJASTHAN	13328
SIKKIM	68
STATE NOT SPECIFIED	65
TAMIL NADU	19276
TELANGANA	11780
TRIPURA	93
UTTAR PRADESH	22506
UTTARAKHAND	2494
WEST BENGAL	10999
Total	320940



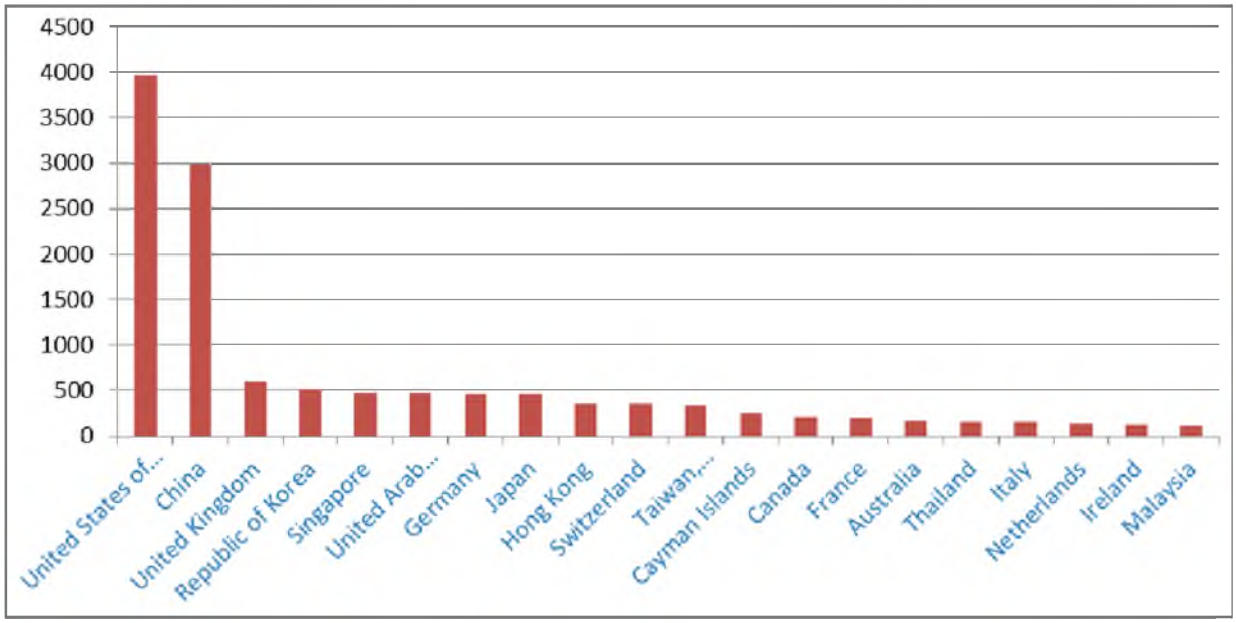
iii. Applications filed by foreign Applicants:

The number of applications filed by foreign applicants during the year was **13865.** Number of applications filed by top 20 foreign countries are provided in the following table as well as represented graphically as below:

Top 20 Foreign countries for filing of applications

Name of the Country	No. of applications filed
United States of America	3968
China	2984
United Kingdom	598
Republic of Korea	512
Singapore	469

United Arab Emirates	467
Germany	457
Japan	453
Hong Kong	365
Switzerland	359
Taiwan, Province of China	334
Cayman Islands	255
Canada	207
France	200
Australia	173
Thailand	159
Italy	155
Netherlands	143
Ireland	124
Malaysia	109
Total	12491



iv. Class-wise filing trend:

The table below provides details of class-wise trend of trademarks applications filed during the year 2019-20. As in the previous year, this year also, the largest number of applications received was in respect of goods in Class 5 (Pharmaceuticals, Veterinary and Sanitary Substances, etc.).

The detail of classes in which applications were filed along with % share is given as below:

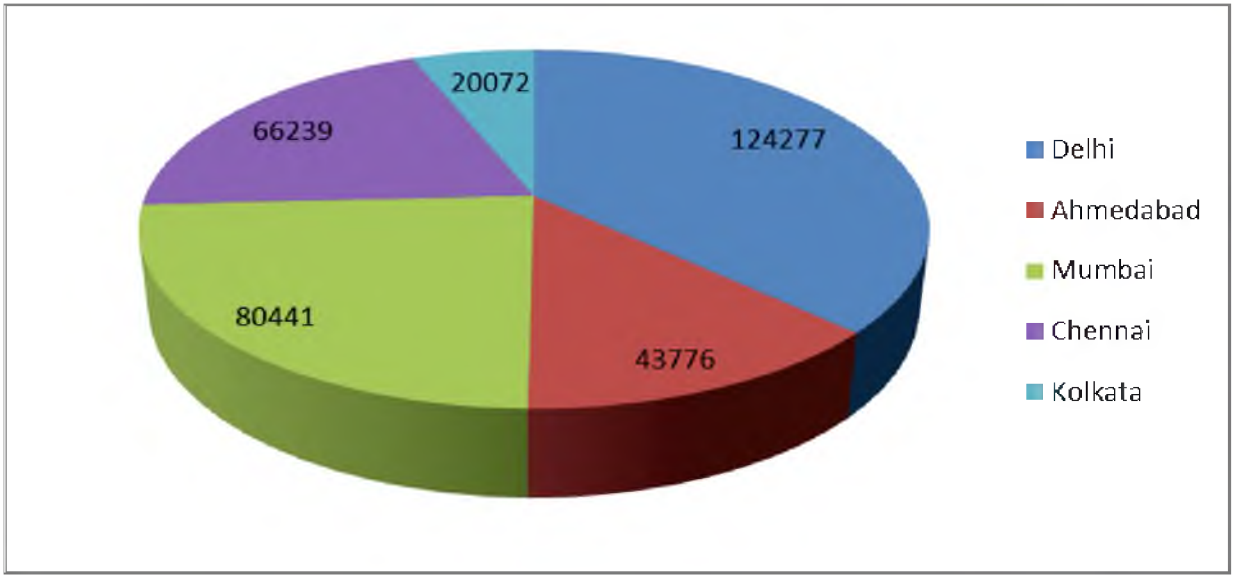
Class	Description of goods/services	No. of Applications	% Share
1	Chemical products used in industry, science, photography, agriculture, horticulture, forestry, manures, etc.	4840	1.39
2	Paints and Varnishes	1699	0.49
3	Perfumery, cosmetics, etc.	15322	4.41
4	Industrial Oil and Greases (Other than edible oil), etc.	1767	0.51
5	Medicinal, Pharmaceuticals, Veterinary and Sanitary substances, etc.	52495	15.12
6	Un-Wrought and partly-wrought common metal and their alloys, etc.	4667	1.34
7	Machines and Mechanic Tools, Motors, etc.	7287	2.10
8	Hand Tools and Instruments, etc.	1564	0.45
9	Scientific, Nautical, Surveying and Electrical apparatus, etc.	21353	6.15
10	Surgical, Medical, Dental and Veterinary Instruments, apparatus, etc.	3533	1.02
11	Installation for Lighting, Heating, etc.	8594	2.48
12	Vehicles and their parts, apparatus, Locomotion by land, air and water	3842	1.11
13	Fire arms, ammunition and projectiles, etc.	258	0.07
14	Precious metals and their alloys, etc.	4479	1.29
15	Musical instruments (other than talking machines and wireless apparatus)	311	0.09
16	Paper and Paper Articles, Stationery, Printed Matters, etc.	6395	1.84
17	Gutta Percha, India Rubber, etc.	3009	0.87
18	Leather and Imitation of Leather, etc.	3851	1.11
19	Building materials, etc.	5440	1.57
20	Furniture, Mirrors, etc.	4933	1.42
21	Small Domestic Utensils, etc.	5240	1.51
22	Ropes, Strings, etc.	743	0.21
23	Yarns and threads	498	0.14
24	Tissues (Piece goods), etc.	4154	1.20
25	Clothing including Boots, Shoes and Slippers	24458	7.05
26	Laces and embroidery, Ribbons and braids, etc.	886	0.26
27	Carpets, rugs, mats, etc.	781	0.23
28	Games and Playthings, etc.	2962	0.85
29	Meat, Fish, Poultry, etc.	9483	2.73
30	Coffee, Tea, Cocoa, etc.	17721	5.11
31	Agricultural, Horticultural and Forestry Products and Grains not included in other classes	5170	1.49

32	Beer, Ale and Port, Mineral and Aerated Waters and Other Non-Alcoholic drinks not included in other classes	**5421**	1.56
33	Wines, Spirits and Liqueurs	**1678**	0.48
34	Tobacco, Raw or Manufactured, Smokers Articles, Matches	**2715**	0.78
35	Advertising, business management, business administration, office functions	**35324**	10.18
36	Insurance, financial affairs, monetary affairs real estate affairs	**5842**	1.68
37	Building construction repairs installation services	**4898**	1.41
38	Telecommunications	**3819**	1.10
39	Transport, packaging and storage of goods travels arrangement	**4492**	1.29
40	Treatment of materials	**1526**	0.44
41	Education; providing of training, entertainment; sporting and cultural activities	**19549**	5.63
42	Scientific and technological services and research and design relating thereto, industrial analysis and research services; design and development of computer hardware and software	**11215**	3.23
43	Services for providing food and drink; temporary accommodation	**12761**	3.68
44	Medical services; veterinary services; hygienic and beauty care for human beings or animals; agriculture, horticulture and forestry services	**6339**	1.83
45	Legal services; security services for the protection of property and individuals; personal and social services rendered by others to meet the needs of individuals	**3787**	1.09

Note: *There is a provision for filing multiclass applications as such goods and services of more than one class may be mentioned in a single application. For the purpose of above information regarding class-wise application, every class in multi-class applications is considered separately.*

v. Branch-wise filing trend:

During the year 2019-20, maximum numbers of applications were filed at Delhi branch of the Registry (**124277**), followed by the branches at Mumbai (**80441**), Chennai (**66239**), Ahmedabad (**43776**) and Kolkata (**20072**).



3. REGISTRATION OF TRADE MARKS AND OTHER ACTIVITIES:

During the year 2019-20, number of trademarks registered was 294172. The total number of registered trademarks as of March 31, 2020 was **2070738.**

Other activities during the year are as under:

- **70583** registered trademarks were renewed,
- **32005** requests for post registration changes in respect of trademarks (including their assignments to other persons) were received and **32596** requests were disposed,
- **10769** certificates were issued on request for use in legal proceedings or for obtaining registration abroad,
- **7362** certificates were issued under Section 45(1) of the Copyright Act, 1957 for registration of artistic work as copyright.

This year the Registry advertised 378147 applications for registration of trademarks in the Trade Marks Journal as compared to 396063 applications advertised during the preceding year. The trend of trademarks published in the Trade Marks Journal in the preceding five years is given in **Appendix II**.

The Registry also dealt with quasi-judicial proceedings, which were primarily opposition and rectification proceedings under the Trade Marks Act and Rules. 59150 notices of opposition and 2229 applications for rectification of the Register of Trade Marks by

cancelling or varying registration of trademarks were filed during the year 2019-20 and 47250 such cases were finally disposed. Details of such cases filed and disposed are given in **Appendix III.**

4. CLASS-WISE STATEMENT OF THE NUMBER OF TRADE MARKS REGISTERED:

The following table provides the class-wise statement of number of trademarks registered during the year 2019-20. It is observed that the highest numbers of 41351 trademarks were registered under Class 5, which is 13.34% of the total registrations, followed by Class 35 which is 10.56%.

Class	No. of Applications	% Share
1	**4826**	1.56
2	**1726**	0.56
3	**11724**	3.78
4	**1550**	0.50
5	**41351**	13.34
6	**4338**	1.40
7	**6966**	2.25
8	**1576**	0.51
9	**19935**	6.43
10	**3045**	0.98
11	**8075**	2.61
12	**3877**	1.25
13	**271**	0.09
14	**4219**	1.36
15	**317**	0.10
16	**7689**	2.48
17	**2816**	0.91
18	**3768**	1.22
19	**5383**	1.74
20	**4188**	1.35
21	**4393**	1.42
22	**776**	0.25
23	**604**	0.19
24	**4191**	1.35
25	**21338**	6.88
26	**975**	0.31
27	**758**	0.24
28	**2797**	0.90
29	**8015**	2.59
30	**14585**	4.71
31	**5029**	1.62
32	**4584**	1.48
33	**1483**	0.48

34	**2182**	0.70
35	**32737**	10.56
36	**5459**	1.76
37	**5195**	1.68
38	**3689**	1.19
39	**3960**	1.28
40	**1575**	0.51
41	**17755**	5.73
42	**11225**	3.62
43	**9887**	3.19
44	**5818**	1.88
45	**3283**	1.06

Note: *There is a provision for filing multiclass applications (i.e. a single application in respect of goods or services falling in more than one class) and accordingly, a single registration certificate is issued in respect of all classes of goods or services. For the purpose of above information regarding class-wise registration, every class in multi-class applications is considered separately.*

5. REVENUE

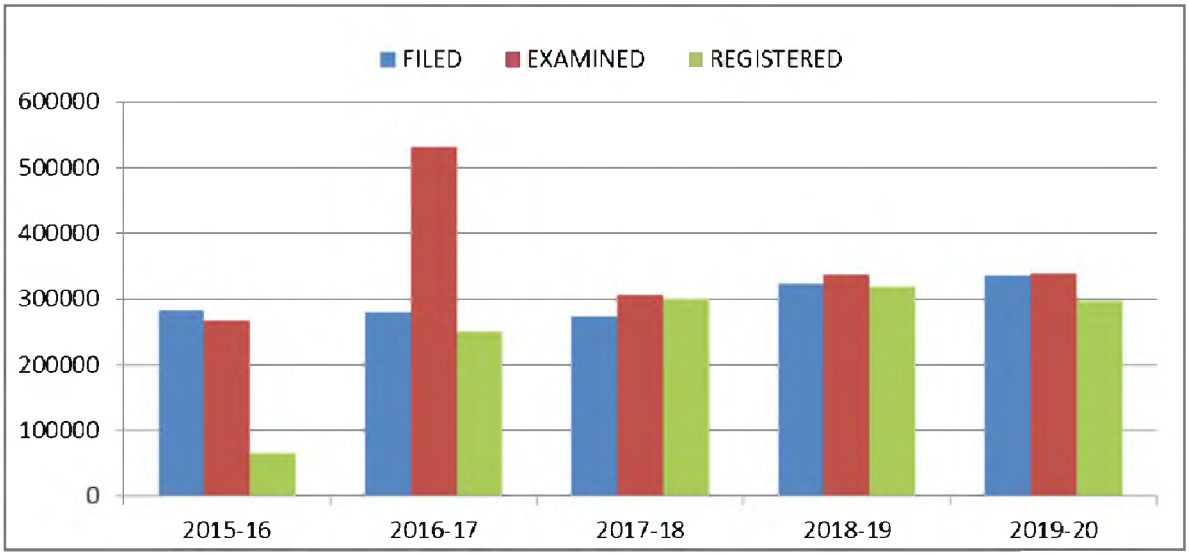
During the year 2019-20, the TMR generated revenue of Rs. 352.30 Crores (including Rs. 31.66 Crores received from IB as fee for international registration under the Madrid System) as compared to that of the previous year of Rs. 340.12 Crores.

APPENDIX I

TRENDS IN TRADE MARKS APPLICATIONS FOR LAST 5 YEARS

	2015-16	**2016-17**	**2017-18**	**2018-19**	**2019-20**
FILED	283060	278170	272974	323978	**334805**
EXAMINED	267861	532230	306259	337541	**338551**
REGISTERED	65045	250070	300913	316798	**294172**

GRAPHICAL REPRESENTATION OF TRENDS IN TRADE MARKS APPLICATION FOR LAST 5 YEARS

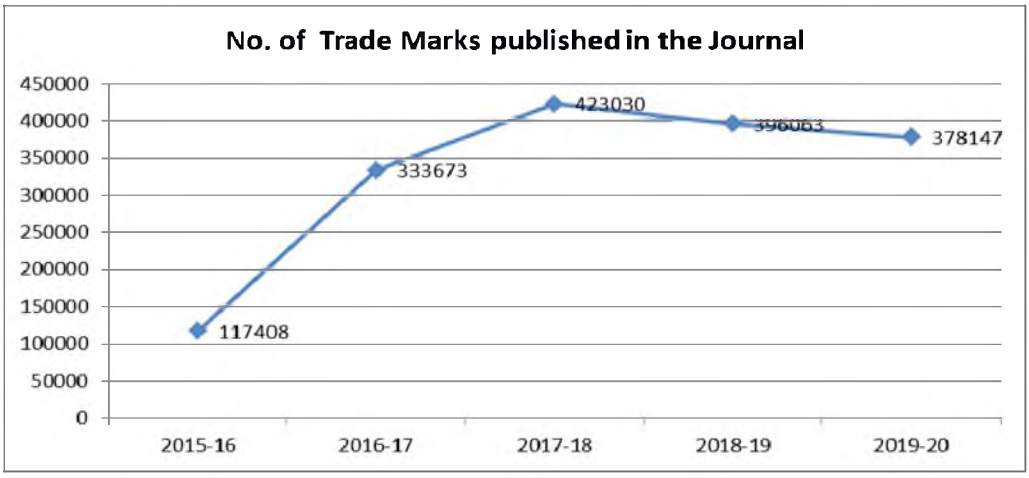


APPENDIX II

NUMBER OF TRADE MARKS PUBLISHED DURING LAST FIVE YEARS

Sl. No.	Year	No. of Trade Marks published in the Journal
1	2015-16	117408
2	2016-17	333673
3	2017-18	423030
4	2018-19	396063
5	2019-20	378147

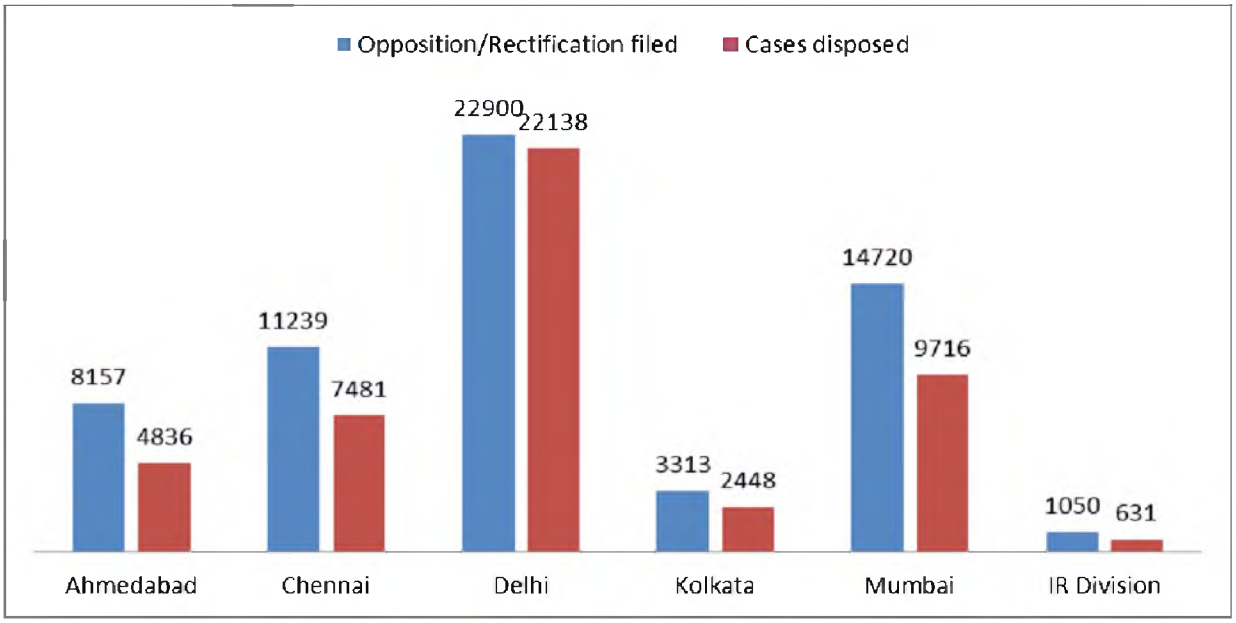
GRAPHICAL REPRESENTATION OF NUMBER OF TRADE MARKS PUBLISHED DURING LAST 5 YEARS



APPENDIX III

DETAILS OF OPPOSITION/RECTIFICATION APPLICATIONS FILED AT VARIOUS OFFICES FROM APRIL 1, 2019 TO MARCH 31, 2020 AND DISPOSAL THEREOF

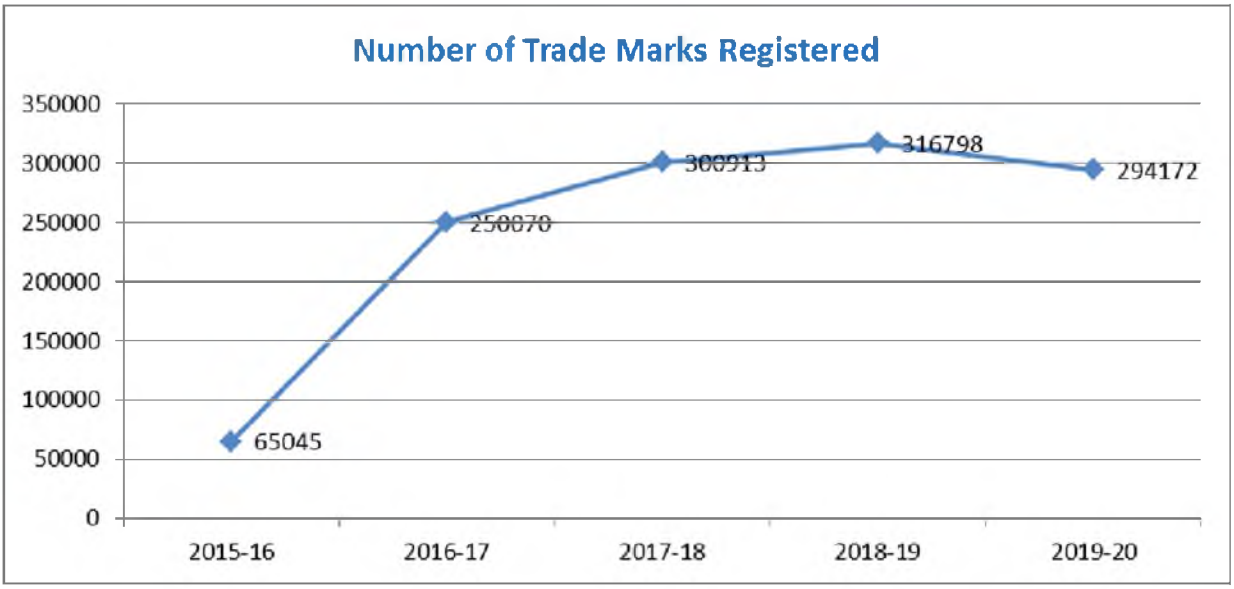
TM Office	Opposition/Rectification filed	Cases disposed
Ahmedabad	8157	4836
Chennai	11239	7481
Delhi	22900	22138
Kolkata	3313	2448
Mumbai	14720	9716
IR Division	1141	631



TRADE MARKS REGISTERED DURING LAST FIVE YEARS

Sl. No.	Year	Number of Trade Marks Registered
1	2015-16	65045
2	2016-17	250070
3	2017-18	300913
4	2018-19	316798
5	**2019-20**	**294172**

GRAPHICAL REPRESENTATION OF TRADE MARKS REGISTERED DURING LAST 5 YEARS



CHAPTER-VII

MADRID SYSTEM FOR INTERNATIONAL REGISTRATION OF MARKS

INTRODUCTION

The Madrid system provides one single procedure for the registration of trademarks in several countries. It is governed by two treaties, 'the Madrid Agreement concerning the international registration of marks' (briefly known as Madrid Agreement) and the 'Protocol relating to the Madrid Agreement' (briefly known as Madrid Protocol).

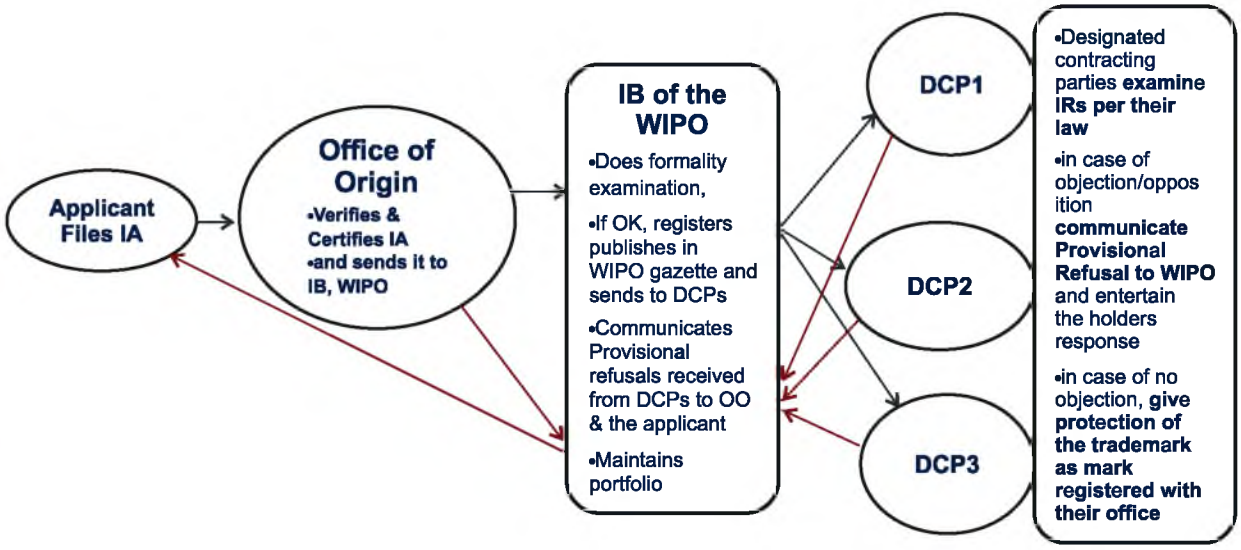
These treaties are administered by the International Bureau (IB) of the World Intellectual Property Organisation (WIPO) in Geneva, Switzerland.

1. BACKGROUND OF INDIA'S ACCESSION TO THE MADRID PROTOCOL:

- On February 8, 2007, the Union Cabinet gave its approval to the India's accession to the Madrid Protocol concerning the International Registration of Marks.
- On September 21, 2010, the Trade Marks Act, 1999 was amended, wherein 'Special provisions relating to protection of trademarks through international registration under the Madrid Protocol' was inserted in the Act.
- The Trade Marks (Amendment) Rules, 2013 was published in the Gazette on January 14, 2013 to bring it in force.
- The provisions of the Madrid Protocol came into force in India since July 8, 2013.

The process of international registration of marks under the Madrid System (more particularly under the Madrid Protocol) is described as follows:

Procedure for international registration under the Madrid Protocol



2. IMPLEMENTATION OF THE MADRID SYSTEM IN INDIA:

2.1. International Registration wing:

The International Registration wing is set up at the Head Office of Trade Marks Registry at Mumbai. This wing mainly discharges its responsibilities as the "Office of Origin" under the Madrid System in respect of applications for international registration received from Indian entrepreneurs and as the "Office of the designating Contracting Party" under the Madrid System in respect of international registrations of the foreign applicants, where India has been designated for protection of the mark.

As Office of Origin, the International Registration wing carries out following functions through an electronic System:

- Receiving international applications on Form MM2 from Indian entrepreneurs, communicating with them regarding such applications on-line and receiving applicants' response through comprehensive e-filing services of TMR,
- Verifying and certifying such International Applications and transmitting the same to the WIPO,

- In case of irregularities, if communicated by the WIPO in respect of international applications forwarded by Indian Office, contacting the applicants concerned and responding to WIPO about the irregularities,
- Communicating the ceasing of effect of international registrations to WIPO in case the trademark application or registration in India on the basis of which the international application was filed extinguishes,
- Making all correspondence with the WIPO in respect of international applications originating from India as well as in respect of International Registrations designating India, through the FTP server on weekly basis.

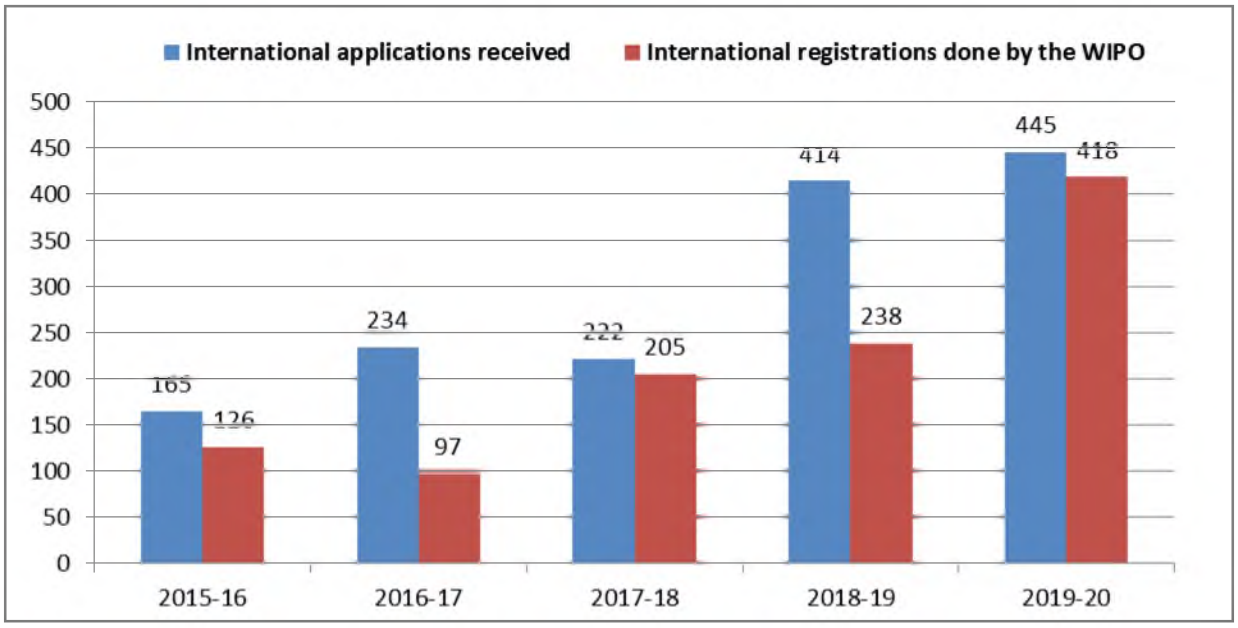
2.2. International registration of trademarks under the Madrid System- Indian applications:

Till the end of year 2019-20, the Indian Trade Mark Office had received **1664** applications for international registration of trademarks under the Madrid System, out of which 1566 applications were verified , certified and transmitted to the WIPO and out of these applications **1218** marks were registered at the level of the WIPO.

The number of international applications of Indian entrepreneurs received and transmitted to the WIPO by Indian Office and their registrations with the WIPO under the Madrid System for last 5 years as follows:

Year	International applications received	International registrations done by the WIPO
2015-16	165	126
2016-17	234	97
2017-18	222	205
2018-19	414	238
2019-20	445	418

Trend of International applications of Indian Entrepreneurs received during last 5 years



2.3. As an Office of Designated Contracting Party, the International Registration wing carries out following functions through an electronic System:

- Migrating into the TMR database, the details of International registrations notified by WIPO to Indian Office and creating a mirror record in the form of an IRDI and similar to the national application,
- Updating TMR records in accordance with further WIPO notifications regarding such international registrations, like changes in name or address of holder, restricting of goods/services under the international registration, renunciation, etc.,
- Examining international registrations as per relevant provisions of the Trade Marks Act, 1999 and the Rules made thereunder and in case protection of the mark cannot be given in India as per the Act, sending provisional refusals to the WIPO,
- Attending to response against the provisional refusals submitted on behalf of the holders of such international registrations, as per our national laws and scheduling show cause hearing, if required,

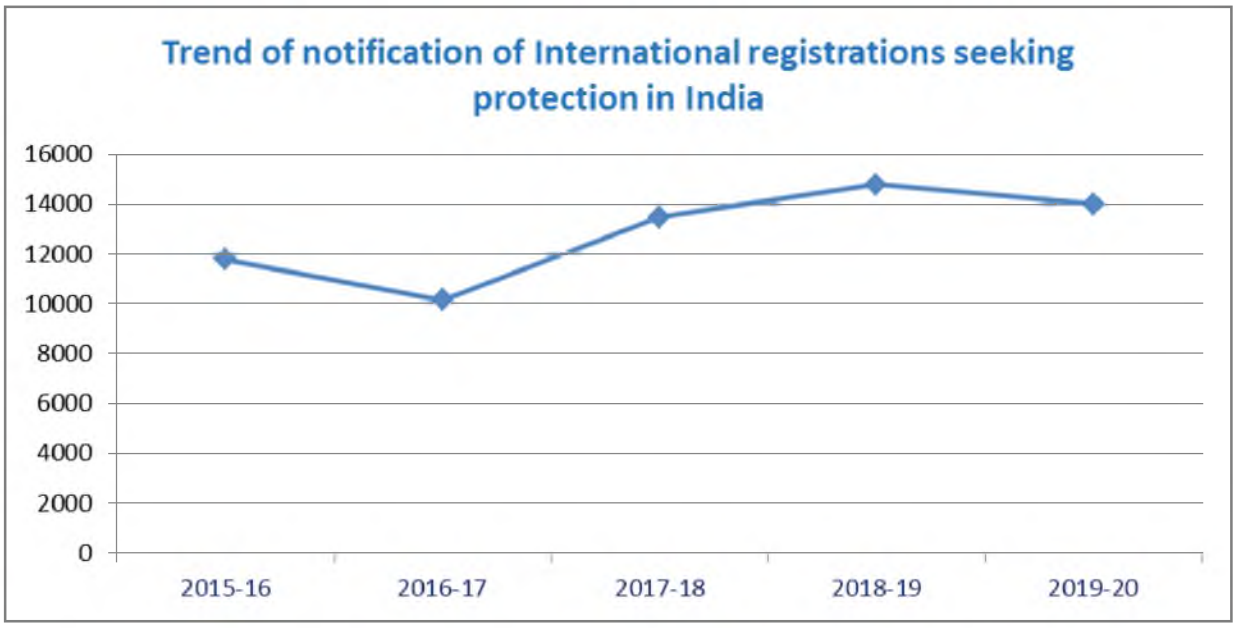
- Publishing accepted cases in our national trademarks journal,
- Receiving oppositions, if any, against international designations so published and sending provisional refusals based on opposition to WIPO, receiving Counter Statements on behalf of holder of international registration and conducting opposition proceedings as per law,
- Representing the office in case of Appeals/Writ Petitions filed against the orders of the Registrar in respect of such international registrations,
- Communicating final (as well as further decisions, if any) in respect of such international registrations to WIPO.

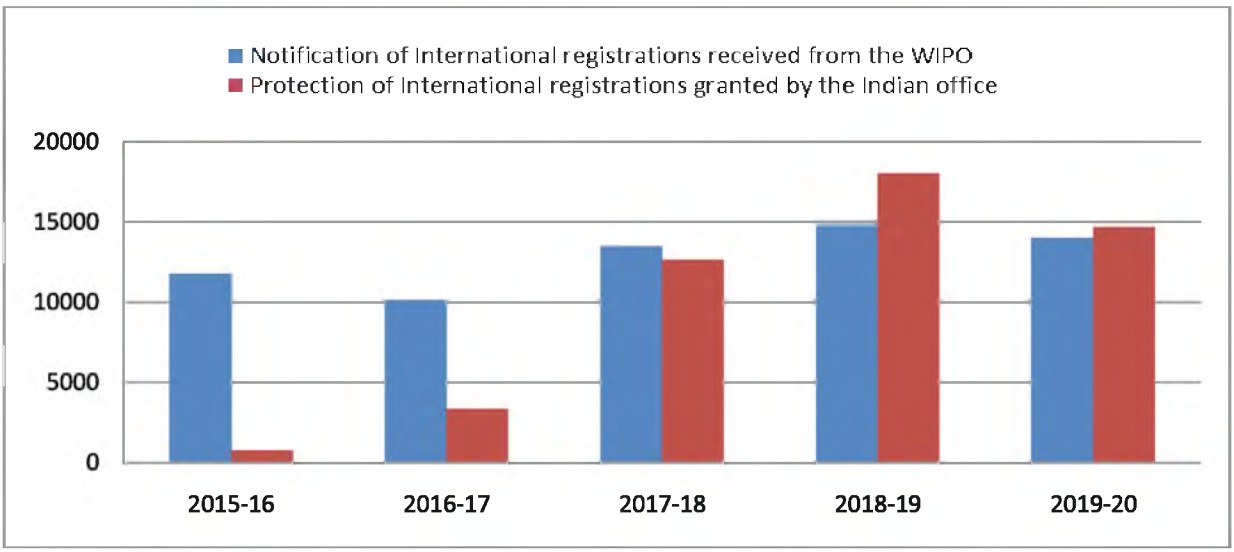
2.4. Activities During the year 2019-20- International Registration:

- The WIPO had notified to Indian Office **14001** international registrations seeking protection of trademarks in India,
- A mirror record of all these international registrations was created in the form of IRDI and **14294** IRDIs were examined,
- In respect of **4484** cases provisional refusals based on examination were communicated to the WIPO,
- **939** provisional refusals, based on third party oppositions received pursuant to publication in the trademarks journal, were communicated to the WIPO,
- **631** oppositions were finally disposed,
- The Grant of Protection in case of **14699** international registrations were sent to the WIPO after completing all the procedures under the Trade Marks Act; in respect of **10570** international registrations out of 14699, the applicants were not even required to approach this office and marks under such international registrations were granted protection in India,
- **10019** international registrations were refused protection of mark in India.

The number of international registrations notified by WIPO and grant of protection of marks under such international registrations sent to WIPO within last 5 years after completing all the procedures is as follows:

Year	Notification of International registrations received from the WIPO	Protection of International registrations granted by the Indian office
2015-16	11780	767
2016-17	10156	3359
2017-18	13475	12642
2018-19	14778	18038
2019-20	**14001**	**14699**





3. REVENUE

The Indian office gets revenue from the WIPO in respect of the applications for international registration under the Madrid System where protection of the mark is sought in India and also in respect of renewal of such international registrations. During the year 2019-20, the Indian Office had received Rs. 31.66 Crores as fee for international registrations designating India for protection of the mark.

CHAPTER-VIII

GEOGRAPHICAL INDICATIONS

INTRODUCTION

The Geographical Indications Registry (GIR) is set up for the administration of the Geographical Indications of Goods (Registration and Protection) Act, 1999 with an objective to provide registration and better protection of Geographical Indications (GIs) relating to goods. The GIR is situated at Chennai.

The GIR has started receiving GI applications for registration since September 15, 2003. The GIR started receiving GI Authorised User applications from May 2009.

The GIR has been organizing Awareness Programmes throughout India to promote registration of Indian GIs. The sectors being focused on are tea, coffee, spices, agriculture & horticulture products, handloom products, handicrafts, textiles, processed food items, dairy products, natural goods, spirits and wines.

1. Performance highlights:

- The GIR has received a total number of 687 (Six Hundred & Eighty Seven) GI applications as on March 31, 2020.
- The GIR has received 6858 (Six Thousand Eight Hundred and Fifty Eight) GI Authorised User Applications as on March 31, 2020.
- A total of 365 (Three Hundred and Sixty Five) GIs have been registered since September 15, 2003.
- A total number of 4380 (Four Thousand Three Hundred and Eighty) GI Authorised User certificates have been issued.
- From April 1, 2019 to March 31, 2020, the Office has received 42 GI applications and 1476 GI Authorised User Applications. 22 GIs and 773 GI Authorised Users have been registered during the said period.

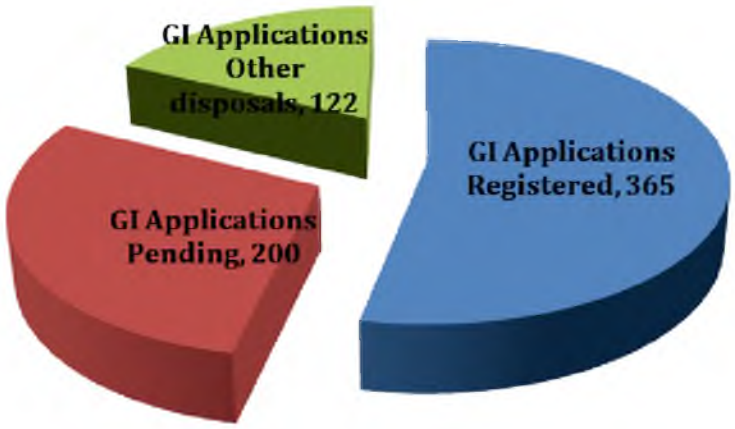
Detailed status of GI Applications as on March 31, 2020

Total Number of GI Applications Filed	687
Total Number of GI Applications Advertised	391
Total Number of GI Applications Registered	365

Status wise breakup of GI Applications Received till March 31, 2020

GI Applications Registered	365
GI Applications in process	200
GI Applications Other disposals	122

Status wise breakup of GI Applications Received as on March 31, 2020



Year-wise breakup of GI Applications filed as on March 31, 2020

Year	No. of Applications
2003-04	6
2004-05	29
2005-06	16
2006-07	33
2007-08	37
2008-09	44
2009-10	40
2010-11	27
2011-12	148

2012-13	24
2013-14	75
2014-15	47
2015-16	17
2016-17	32
2017-18	38
2018-19	32
2019-20	**42**
Total	**687**

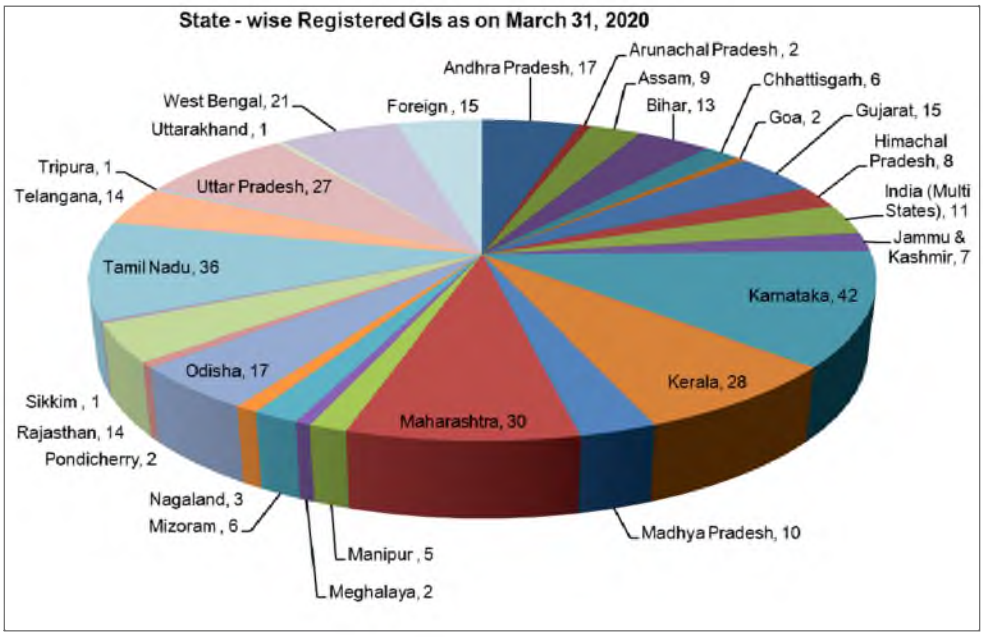
Goods wise break up of GI Applications as per Sec. 2 (f) of the GI Act, 1999 filed as on March 31, 2020

Goods as per sec. 2(f) GI Act,1999	No. GI Applications Received	No. GI Applications Registered
Handicraft (including Textiles)	317	210
Agricultural	173	111
Manufactured	146	22
Foodstuff	44	20
Natural	7	2
Total	**687**	**365**

State-wise Registered GIs as on March 31, 2020

State/Entity	No. of Registered GI
Andhra Pradesh	17
Arunachal Pradesh	2
Assam	9
Bihar	13
Chhattisgarh	6
Goa	2
Gujarat	15
Himachal Pradesh	8
India (Multi States) - (Karnataka & Maharashtra)	1
India (Kerala & Tamilnadu)	1
India (Kerala, Karnataka & Tamilnadu)	1
India - (Maharashtra & Madhya Pradesh)	1
India - (Maharashtra, Gujarat, Dadara & Nagar Haveli, Daman Diu)	1
India (Punjab / Haryana / Himachal Pradesh / Delhi / Uttarkhand / Uttar Pradesh / Jammu & Kashmir)	1
India (Punjab, Haryana & Rajasthan)	1
India (Andhra Pradesh & Odisha)	1
India (Karnataka & Kerala)	2
India (Telangana & Andhra Pradesh)	1
Jammu & Kashmir	7

Karnataka	42
Kerala	28
Madhya Pradesh	10
Maharashtra	30
Manipur	5
Meghalaya	2
Mizoram	6
Nagaland	3
Odisha	17
Pondicherry	2
Rajasthan	14
Sikkim	1
Tamil Nadu	36
Telangana	14
Tripura	1
Uttar Pradesh	27
Uttarakhand	1
West Bengal	21
Foreign	15
Total	**365**

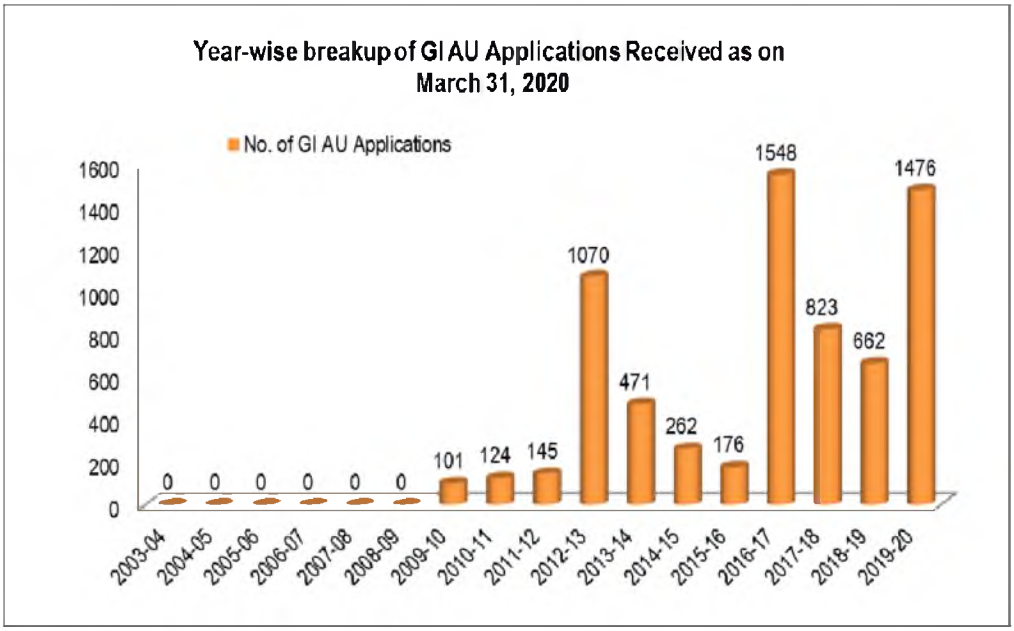


2. Authorised User Applications:

Year-wise breakup of GI Authorised User Applications filed as on March 31, 2020

Year	No. of Applications
2003-04	0
2004-05	0
2005-06	0

2006-07	0
2007-08	0
2008-09	0
2009-10	101
2010-11	124
2011-12	145
2012-13	1070
2013-14	471
2014-15	262
2015-16	176
2016-17	1548
2017-18	823
2018-19	662
2019-20	**1476**
Total	**6858**

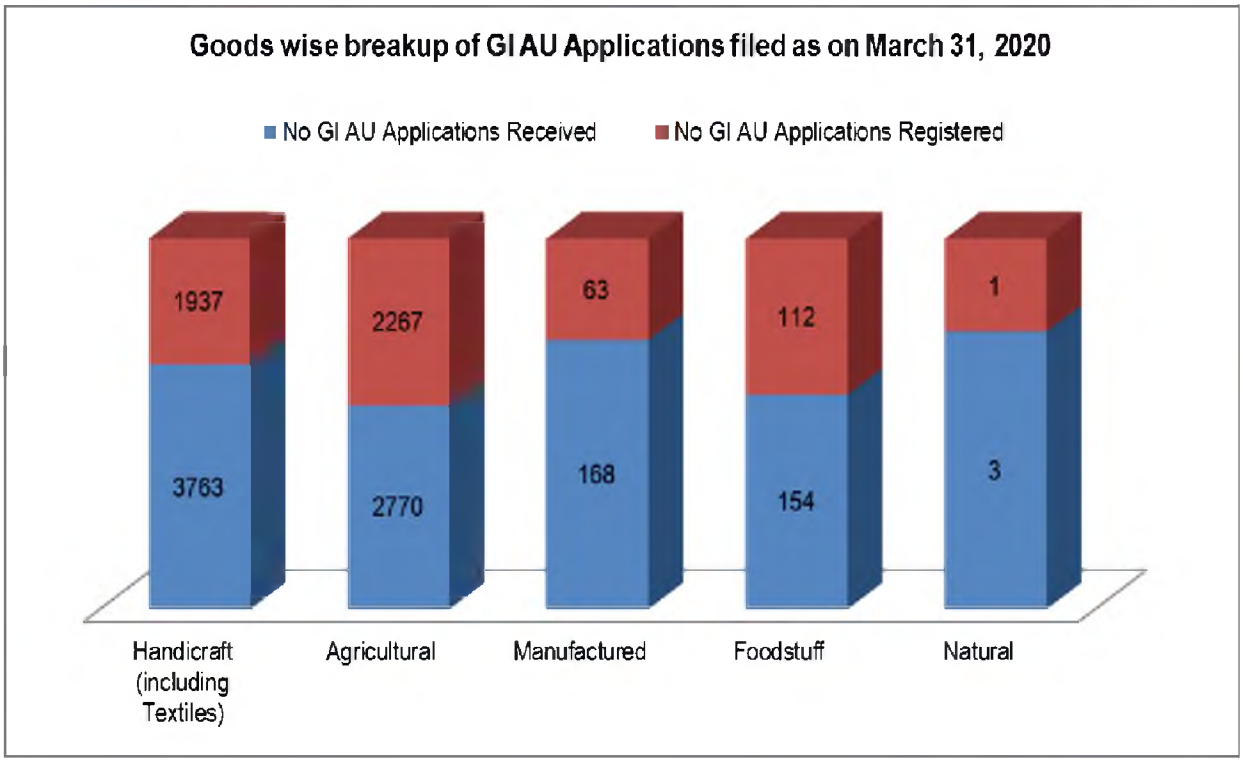


GI Authorised User Application Status as on March 31, 2020

Number of GI Authorised User Applications Registered	4380
Number of GI Authorised User Applications under Examination	1702
Number of GI Authorised User Applications Pre – Examination	265
Number of GI Authorised User Applications Advertised	505
Number of GI Authorised User Applications under Opposition	1
Number of GI Authorised User Applications Merged	5
Total Number of GI Authorised User Applications	**6858**

Goods wise breakup of GI AU Applications as on March 31, 2020

Goods as per sec. 2(f) GI Act,1999	No GI AU Applications Received	No GI AU Applications Registered
Handicraft (including Textiles)	3763	1937
Agricultural	2770	2267
Manufactured	168	63
Foodstuff	154	112
Natural	3	1
Total	**6858**	**4380**



CHAPTER-IX

COPYRIGHTS

INTRODUCTION

The Copyright is the right of an owner of a work to control the uses of work and financially benefit from its exploitation. Such work is a creation of human intellect in the form of literary (including compilation and software), dramatic, musical, artistic, cinematograph films and sound recording.

The copyrights are administered under provisions of the Copyright Act, 1957, which has been amended from time to time to make the law consistent with the rapid developments.

1. Copyright Office:

The Copyright Office was established in 1958 under Section 9(1) of the Copyright Act, 1957. The main function of the Copyright Office is to undertake Registration of Copyrights. The Register of Copyrights maintained by the Copyright Office provides information regarding works registered under the Copyright Act, 1957 to the general public. In addition to it, facilities like inspection of the Register of Copyrights, change in particulars, taking extracts thereof, administration of Copyright Societies, etc. are also within the domain of the Copyright Office.

As provided under Section 13 of the Copyright Act, 1957, the copyright subsists in the following classes of works:

(i) Original literary, dramatic, musical and artistic works;

(ii) Cinematographic films; and

(iii) Sound Recording.

The Copyright comes into existence as soon as a work is created and no formality is required to be completed for acquiring the copyright. However, as per Section 48 of the Copyright Act, a certificate of registration of copyright and entries made therein serve as *prima facie* evidence in a Court of Law with reference to dispute relating to ownership of the copyright.

Details regarding registration procedure including application form and fee structure, relevant extracts of the Copyright Rules, 2013 are available on copyright official website, i.e. http://copyright.gov.in

2. Ownership of Copyright:

Rights conferred by the copyright law are exclusive albeit for a limited period. Any use of work without authorization/permission of the owner of work may amount to infringement of the copyright (certain limitations and exceptions are provided under the Copyright Act). The law also ensures that once a period of holding exclusive rights is over, the general public should have free access to the work.

3. The Copyright Societies:

Following are the Copyright Societies registered in India:

- Indian Performing Rights Society (IPRS) - For musical and literary works associated with such musical work.
- Indian Reprographic Rights Organization (IRRO) - For photocopy works.
- Indian Singers Rights Association (ISRA) - For Performers Rights of singers and other activities ancillary thereto.

4. International Conventions/Treaty/Agreements:

To secure protection to Indian work in foreign countries, India became a member to the following International Conventions on the Copyright and Neighbouring (related) Rights:

- Berne Convention for the Protection of Literary and Artistic works,
- Universal Copyright Convention,
- Trade Related Aspects of Intellectual Property Rights (TRIPS) Agreement,
- Marrakesh Treaty to Facilitate Access to Published Works by Visually Impaired Persons (VIPs) & Persons with Print Disabilities,
- WIPO Copyright Treaty (WCT),
- WIPO Performances and Phonograms Treaty (WPPT).

5. Recent developments:

- **The Copyright Office** has taken various steps to reduce the pendency of applications and accordingly, the pendency has been reduced to less than one month excluding the mandatory waiting period of one month. In order to increase transparency and stakeholder's participation, the Copyright Office has started displaying the applications received on its website on a monthly basis. The applicants can also track the status of their applications online.

- Further, the Discrepancy Letter and the Register of Copyrights (R.O.C) are now transmitted to the Applicant via emails registered on www.copyright.gov.in. The applicants can also upload their response against the discrepancy letter by using their Copyright login account.

- Copyright Office has published the Practice and Procedure Manual for examination of Literary, Artistic, Musical, Sound Recording and Cinematograph Films.

6. Trends in Copyrights:

During the year 2019-20, a total number of 21905 applications were received and 29670 applications were examined. During the examination, the discrepancies observed were communicated to applicants for rectification. The number of Register of Certificates (R.O.C) generated in 2019-20 was 16029. The statistical data from 2016-17 to 2019-20 is given in the following table:

Year	Total applications received	Total application examined	Register Of Copyright (ROC) generated	Total Disposal
2016-17	16617	16584	3596	5444
2017-18	17841	34388	19997	39799
2018-19	18250	22658	14625	25943
2019-20	**21905**	**29670**	**16029**	**22516**

Category wise Registration of Copyright (ROC) generated during the Year 2019-20

S. No.	Category	ROCs
1	Artistic	4710
2	Cinematograph Film	272
3	Computer Software	1057

4	Literary/ Dramatic	9106
5	Music	47
6	Sound Recording	837
	Total ROCs:	**16029**

7. Accession to International Treaties:

During the year, the Union Cabinet has approved the accession to the WIPO Copyright Treaty and the WIPO Performers and Phonograms Treaty, which extend coverage of the copyright to internet and digital environment. These treaties will help India in the following ways:

- Enable creative right-holders to enjoy the fruit of their labour, through international copyright system that can be used to secure a return on investment made in producing and distributing their creative works,
- Facilitate international protection of domestic rights holder by providing them level-playing field in other countries as India has already extended protection to foreign works through the International Copyright order and these treaties will enable Indian right holders to get the reciprocal protection abroad,
- Instill confidence and distribute creative works in digital environment with return on investments,
- Spur business growth and contribute to the development of a vibrant creative economy and cultural landscape.
- Both the treaties provide framework for creators and right owners to use technical tools to protect their works and safeguard information about their use, i.e. Protection of Technological Protection Measures (TPMs) and Rights Management Information (RMI).

8. Major achievements of Copyright Office:

(i) Improving the public interface & revamp of the website:

- A dashboard has been prepared, which provides status related to applications filed, registration granted, status of copyright application and facility to search registered work.

- The Copyright Office has introduced the provision to upload soft copies of Literary/ Dramatic and Artistic works along with other related documents on its online portal to facilitate seamless registration of works.

(ii) Notification of Draft Copyright (Amendment) Rules:

The daft amendment to the Copyright Rules was notified on May 30, 2019 seeking comments from the stakeholders. The objective of the amendments is to:

- Give effect to the changes introduced by the Finance Act, 2017.
- Adopt electronic means of communication.
- Introduce provisions related to accountability, transparency and smooth functioning of Copyright Societies.
- Ease the process of registration of computer programs.

CHAPTER-X

SEMICONDUCTOR INTEGRATED CIRCUITS LAYOUT DESIGN REGISTRY

INTRODUCTION

This chapter presents the Annual Report about the activities performed by Semiconductor Integrated Circuits Layout Design Registry under section 88 of the Semiconductor Integrated Circuits Layout Design Act, 2000.

The Semiconductor Integrated Circuits Layout Design Act, 2000 (the SICLD Act) provides the protection for semiconductor IC layout designs. The Semiconductor Integrated Circuits are fabricated from a complex series of layers of semiconductors, metals, dielectrics (insulators) and other materials on a substrate. The SICLD Act and Rules refer to three dimensional configurations of these layers as an integrated circuit layout.

The criteria for registration of an integrated circuit layout design are that it should be:-

- Original,
- Distinctive,
- Capable of distinguishing from any other layout design,
- Have not been commercially exploited anywhere in India or in a convention country.

1. Semiconductor Integrated Circuits Layout Design Registry (SICLDR):

The applications on Layout Designs of integrated circuits are filed at the Registry for registration of IPR. The jurisdiction of this Registry extends to the whole of India. The Registry, as per the guidelines laid down in the SICLD Act and the Semiconductor Integrated Circuits Layout Design Rules, 2001 (the SICLD Rules), examines the layout designs of the Integrated Circuits and issues the Registration Certificate to the original layout designs of the Semiconductor Integrated Circuits.

The administration of the SICLD Act and the SICLD Registry was under the Control of Ministry of Electronics & Information Technology (MeitY), but by Notification dated March 17, 2016, the administration of the SlCLD Act, 2000 and the SICLD Registry were transferred to the Ministry of Commerce & Industry, Department of Industrial Policy &

Promotion (DIPP) and brought under the control of Office of Controller General of Patents, Designs & Trade Marks. The SICLD Registry is now functioning from Boudhik Samapada Bhawan, Dwarka, New Delhi.

2. Achievements:

During the reporting year 2019-20, one (1) Semiconductor Integrated Circuit Layout Design application on 'Vikram1601 microprocessor from Indian Space Research Organization, Bangalore has been received for registration and the examination report has been sent to the applicant.

Until now, two (2) Certificates of Registrations have been issued for the layout design: (i) Design No. 1(I)/2013 titled "8 port Micro-controller (BE.80501)" in the name of M/s Bharat Electronics Ltd. (BEL) dated January 20, 2015; and (ii) Design No. 2(I)/2016 titled "50-60 GHz Sub Harmonic IQ Mixer" in the name of M/s. Indian Space Research Organisation (ISRO) dated May 24, 2016.

3. Manpower Structure of SICLD Registry

Following posts have been approved in the SICLD Registry:

Sl. No.	Name of the Post	No. of Post(s)	Pre-Revised Scale of Pay with GP
1.	Registrar	One	PB4+GPRs. 8700
2.	Technical Officer	One	PB2+GP Rs. 5400
3.	Private Secretary	One	PB2+GP Rs. 4600

CHAPTER XI

RAJIV GANDHI NATIONAL INSTITUTE OF INTELLECTUAL PROPERTY MANAGEMENT (RGNIIPM) AND PATENT INFORMATION SYSTEM (PIS)

Introduction

Intellectual Property Right related activities have been on continuous rise in the country for the last several years. Many complex issues are involved in creation, utilization and meaningful exploitation of Intellectual Property Rights (IPRs). Realising the need to have national centre to improve the knowledge in IPRs in the country and upgrading the skills of stakeholders in IPRs, the Government of India has established Rajiv Gandhi National Institute of Intellectual Property Management (RGNIIPM) at Nagpur as a National Centre of excellence for training, management, research and education in the field of IPRs. The RGNIIPM caters to the need of training of Examiners/Officers of Patents & Designs and Trademarks & GI. It also imparts IP training/education and organises IPR awareness programs for various User-Groups.

1. OBJECTIVES:

The RGNIIPM has been established with the objectives to cater the needs of an Intellectual Property regime in the country while at the same time safeguarding national interests. At present, the primary objective of RGNIIPM is to impart training to IP officers and various types of stakeholders and to create awareness on IPRs. Overall objectives are as under:

- To identify and fulfil internal training needs of IP Offices and organize training and refresher courses, and judicial training for the officers of IP Offices,
- To implement the National IPR Policy objectives by creating IP awareness in universities, educational institutions, etc. and conducting the public training programmes to create trained IP manpower,
- To impart training to IP users like IP professionals, IP managers, R&D scientists, officials of Govt. Institutes, Individuals, etc.,
- To conduct short term international training programs on IPRs,

- To promote general awareness and understanding of IP system among users of IP including universities, educational institutions and research organisations,
- To impart basic education to user communities, Government functionaries and stakeholders involved in creation, commercialization and management of IPRs,
- To act as a nodal agency in training and education on IPR in the country for all types of IP stakeholders on its own and in collaboration with prominent organizations in the country.

2. TRAINING PROGRAMMES AT RGNIIPM:

The RGGNIIPM conducts number of training programmes on IPRs, i.e. Patents, Designs, Trade Marks, Geographical Indications and Copyrights, keeping in view the requirements of actual and potential users of patents and other IPR systems. The participants are business professionals, start-ups, law professionals, prospective patent/IPR agents, scientific/technical/R&D organizations engaged in research, managers and technocrats in industries, small and medium entrepreneurs, university professionals, students, Central/State Govt./Public sector undertaking professionals, individual inventors and interested public.

The RGNIIPM conducts comprehensive training program for:

- Newly recruited IP officials (Patent, Trademarks, etc.),
- Refresher programs for IPO officials,
- Judicial Training for IPO officials,
- Short term Public Training programs on IP,
- Workshops/Awareness programs/Seminars for institutions and IPR-related organisations,
- International Training program jointly with the WIPO & other organisation.

3. ACHIEVEMENTS DURING 2019-20:

In this year, departmental training programme for newly recruited Examiners of Patents & Designs on foundation and induction training has been conducted. In addition, 3 International programme in collaboration with WIPO, i.e. WIPO-India Summer School;

WIPO-India Patent Search & Examination for Asian Countries and one National Workshop on Patent Searching and Examination on Centralised Access to Search and Examination in collaboration with WIPO have been conducted for the Examiners of Patents & Designs at RGNIIPM, Nagpur. Further, one training workshop for Examiners in collaboration with ASSOCHAM had been conducted.

Apart from the departmental training programmes, many public training programmes on IPRs have been conducted by the RGNIIPM in the year 2019-20. The RGNIIPM has conducted total 95 programmes of various durations in this year, which include 5 training programmes for Defence officials.

DETAILS OF PUBLIC PROGRAMME CONDUCTED FROM 2015-16 TO 2019-20

Year	Name & Duration of training Programme										Partic ipants	Total no. of programs
	Public Training Programme						Departmental Training		Inter-national Program	Public Seminar/ Workshop/ Awareness		
	1 Day	2 Day	3 Day	5 Day	6 Day	2 Week	6 Week	1-21 Days				
2015-16	7	12	7	5	--	--	--	1	1	20	2293	53
2016-17	31	8	--	8	1	--	4	--	5	42 (3+39)	6177	99
2017-18	24	12	8	9	10	--	1	1	2	27 [26+1]	3021	94
2018-19	16	14	3	4	6	2	-	6	2	39	5763	92
2019-20	14	14	10	3	6	2	1	1	3	41 [31 + 9+1]	5655	95

4. FACULTY MEMBERS:

The Faculties for Training Courses were experts in IPRs from Indian Patent Office, Design wing, Trade Marks Registry and Copyright Office and also, from well-known organizations in the country including leading IP attorneys, IP experts, etc.

5. DETAILS OF PROGRAMME BY RGNIIPM DURING 2019-20:

A. DEPARTMENTAL TRAINING PROGRAMME:

i) Departmental training programmes for newly recruited Examiners of Patents & Designs have been conducted during the year in which 181 new Examiners have undergone

training at RGNIIPM, Nagpur. The training programme was split into two segments, viz., foundation training and induction training. The foundation and induction training programmes were designed in such a way that the Examiners would be able to discharge their duties effectively at their respective offices. All the newly recruited Examiners on completion of training programme are discharging their duties at respective locations of the Patent Office.

ii) Second phase of induction training programme for trainee Examiners of Patents & Designs has been conducted for 4 months during which the expert from IPO's (i.e. Senior Examiners and Controllers of Patents & Designs) have given on job training on examination of patent applications.

iii) In addition, workshop for Examiners of Patents & Designs in collaboration with ASSOCHAM was conducted on December 2, 2019. Mr Hardeep Saini, Sr. Director, Qualconm, Mr Wei Quan, Huawei and Mr Nanjansud Narendra of Ericsson were the Guest speakers for the said programme.

Foundation Training Programme



Induction Training Programmes



B. PUBLIC TRAINING PROGRAMME:

i] One day Training Programme:

Topics covered in 1-day programme include introduction to IPRs, patentability criteria, patent proceedings, patent search information and brief introduction on drafting of patent specification and primary information on IP licencing, assignments, litigation, enforcement, etc.

ii] Two/Three days Training Programme:

During 2/3-days programme, the topics are importance of IPR, patentability criteria, types of patent applications, patent application filling procedure, provisional and complete specification, contents of patent specification, forms & fees, e-filing, PCT procedure. In three days training, special emphasis on patent specification exercise, claims drafting and their interpretation, exercises on filing of patent application and other documents have also been included.

iii] Five/Six days Training Programme:

This programme is being conducted with detail focus on all aspects of patenting system. It is also conducted as a split programme for 1/2/3/5-days as desired, so that if anyone wishes to attend the training programme as per their topic of interest, he/she can choose the days. All major aspects of patent system, i.e. introduction to IPR, IP management, patentability criteria, patent application filling procedure, publication, international scenario & filling procedure, contents of patent specification and claims, drafting of patent specification, opposition, infringement, licensing, patent search, etc. are covered.

iv] 2-weeks Advance Training Programme:

This is a specially designed training programme for professionals who wish to pursue their carrier in the field of IP. This is designed to clear their concepts pertaining to all aspects of IPRs with the help of expert faculty(s). This programme covers all the IPRs such as Patent, Design, Trade Mark, GI and Copyright including filing in India and abroad, processing of PCT international applications, patent specification and claims, opposition, infringement, licensing, commercialising IPRs, IP Management, IP search exercises, etc.

v) Training Programme for Ministry of Defence officials

A series of training programmes for officials of the Ministry of Defence are being conducted at RGNIIPM from last couple of years. The objectives behind conducting training programmes are to make them aware about IP filing and processing and to encourage the organisation for protecting of their IP's. This year also total 5 such programmes have been conducted.





C. INTERNATIONAL TRAININGS - WIPO-INDIA TRAINING PROGRAMME:

The RGNIIPM has organised three training programme in collaboration with the WIPO.

i) WIPO INDIA TWO WEEK SUMER SCHOOL:

WIPO India Two week Summer School at RGNIIPM, Nagpur in collaboration with Maharashtra National Law University, Nagpur, was organised during June 17-28, 2019, wherein total 66 participants including participants from foreign offices have particiapated.

ii) WIPO INDIA PATENT SEARCH PROGRAMME FOR ASIAN COUNTRIES:

One week training programme in association with WIPO was organised during November 4-8, 2019 at IPO Delhi by RGNIIPM for Patent Examiners of Asian countries on the topic "Patent Search & Examination", wherein total 22 participants (12 foreign and 10 Indian Patent Examiners) have participated.

iii) WIPO-India Centralised Acess to Search and Examination (CASE) Workshop:

A workshop was organsied during January 21-22, 2020 at RGNIIPM, Nagpur in collaboration with the WIPO, wherein total of 88 Examiners have participated.

SUMER SCHOOL



PROGRAMME ASIAN EXAMINERS



CASE WORKSHOP



D. WORKSHOP(S) ON IPR:

During the year 2019-20, RGNIIPM has organised 41 workshops at various educational institutions, universities and research organisations for promotion and awareness on IPRs and on patenting procedures. Total of 4350 participants have benefited from such workshops.

E. OTHER PROGRAMMES CONDUCTED AT RGNIIPM

i) World IP-day:

World Intellectual Property Day has been celebrated on April 26, 2019 at RGNIIPM jointly with VIA and R2i Nagpur, wherein students and IP users from industries and educational institutions were present.

ii) IP Innovation Gallery:

IP Innovation Gallery has been organized at RGNIIPM premises. The main objective was to make IP Awareness by displaying/showing IP models/rollup standee, so that the visitors will be benefited by new innovations with the further motto to exhibit the products.

iii) Sponsored Programme at School:

IPR awareness programme on how to protect the inventions/innovations was organised at Somalwar Maa Umiya School, Nagpur on January 18, 2020, where 120 school students have participated. The programme included activities like presentations, quiz, presentations of school projects, etc.

World IP-day



IP Innovation Gallery



School Programme



6. PATENT INFORMATION SYSTEM:

The Patent Information System (PIS) was established at Nagpur in 1980 by the Government of India with the objective to maintain a comprehensive collection of patent specification and patent related literature on worldwide basis in order to meet the need of technological information of various users in R&D establishments, Government organizations, Industries, businesses, Inventors and other users for technological information contained in patents. The PIS provides service of providing copy of the patent documents available in the office to users as per their requirements.

CHAPTER–XII

INTERNATIONAL COOPERATION

INTRODUCTION

The Office of CGPDTM cooperates at the bilateral as well as multilateral level with IP offices of other countries as well as intergovernmental organizations dealing with IPRs in accordance with the approvals received from the Government of India. The Office also actively takes part in the proceedings under the auspices of WIPO. During the reporting year, three new work plans were signed with IP Offices of other countries. The details of the initiatives taken by the Office of CGPDTM during the reporting year are mentioned below.

1. JAPAN PATENT OFFICE:

The Department for Promotion of Industry and Internal Trade (DPIIT) and the Japan Patent Office (JPO) jointly reviewed the progress under the ongoing Memorandum of Cooperation (MoC) on industrial property between India and Japan and the Action Plan between the Office of CGPDTM and the JPO, in the month of November 2019 at New Delhi. During the course of the review meeting, new Action Plan was signed between the Office of CGPDTM and the JPO consequent to the expiry of previous work plan. Alongside, the Offices also signed the Joint Statement of Intent regarding the Japan-India Patent Prosecution Highway (PPH) pilot program. During the reporting year, a number of meetings were held between the experts of both Offices with regard to the cooperation activities under the ongoing Action Plan between the Offices.

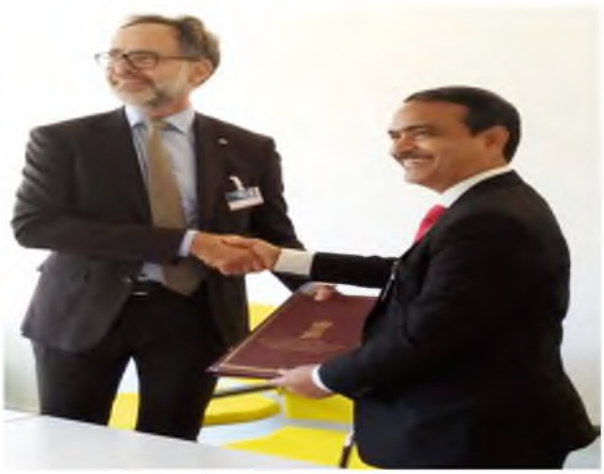


(CGPDTM – JPO, Signing of Action Plan)

2. SWEDISH INTELLECTUAL PROPERTY OFFICE:

In accordance with the provisions of Memorandum of Understanding (MoU) between the Swedish Intellectual Property Office (Swedish IPO) and the DPIIT, a Work Plan was signed between the Office of CGPDTM and the Swedish IPO, on the sidelines of the 51st Session of the WIPO General Assembly to take forward the objectives of the MoU.





(CGPDTM – Swedish PRV, Signing of Work Plan)

3. INTELLECTUAL PROPERTY OFFICE OF THE UNITED KINGDOM:

A new work plan was signed between the Office of CGPDTM and the Intellectual Property Office of the United Kingdom (UKIPO) in the month of December 2019 in accordance with the MoU between the DPIIT and the UKIPO. The Offices engaged in discussions to take forward the activities under the Work Plan.

4. COOPERATION WITH DANISH PATENT AND TRADEMARK OFFICE:

During the reporting year, the Office of CGPDTM and Danish Patent and Trademark Office (DKPTO) engaged actively in discussions on various issues related to IPRs. The delegations from both offices met in India on a number of occasions and the discussions contributed towards a deeper understanding of the IPR systems in each other's jurisdiction. Draft of MoU between DPIIT and DKPTO has been finalised and is in process of approvals by Govt.

5. 51ST SESSION OF THE WIPO GENERAL ASSEMBLY – 2019:

The 51st Session of the WIPO General Assembly was attended by following Indian delegation:

1. Sh. Rajiv Kumar Chander, Ambassador and Permanent Representative, Permanent Mission of India to the United Nations
2. Sh. Puneet Aggarwal, Deputy Chief of the Mission, Permanent Mission of India to the United Nations
3. Sh. Animesh Choudhary, First Secretary, Permanent Mission of India to the United Nations
4. Sh. O. P. Gupta, Controller General of Patents, Designs and Trade Marks
5. Dr. Ashish Kumar, Senior Development Officer, DPIIT
6. Dr. Rajesh Dixit, Deputy Controller of Patents & Designs
7. Sh. Sameer Kumar Swarup, Deputy Controller of Patents & Designs
8. Sh. S. D. Ojha, Deputy Registrar of Trade Marks and Geographical Indications

(Indian delegation during the 51st Session of the WIPO General Assembly - 2019)



6. BILATERAL MEETINGS ON THE SIDELINES OF THE WIPO GENERAL ASSEMBLY:

On the sidelines of the 51st Session of the WIPO General Assembly held during the months of September-October 2019 at the headquarters of the WIPO at Geneva, a number of

bilateral meetings were held with the IP Offices of other countries and were attended by the following Indian delegation:

1. Sh. O. P. Gupta, Controller General of Patents, Designs and Trade Marks
2. Dr. Ashish Kumar, Senior Development Officer, DPIIT
3. Dr. Rajesh Dixit, Deputy Controller of Patents & Designs
4. Sh. Sameer Kumar Swarup, Deputy Controller of Patents & Designs
5. Sh. S. D. Ojha, Deputy Registrar of Trade Marks and GI

Bilateral meetings were held with the following IP Offices:

1. African Intellectual Property Organisation (OAPI)
2. Canada (CIPO)
3. Denmark (DKPTO)
4. EUIPO
5. France (INPI)
6. Japan (JPO)
7. Mexico (IMPI)
8. Republic of Korea (KIPO)
9. Sweden (PRV)
10. United Kingdom (UKIPO)



(OAPI - African Intellectual Property Organisation)



(INPI, France)



(Swedish IP Office)



(JPO, Japan)



(IMPI, Mexico)



(KIPO, Republic of Korea)



(UKIPO)

7. PCT WORKING GROUP:

In the twelfth session of PCT Working Group held at WIPO, Geneva from June 11 to 14, 2019, a proposal was supported to create a legal framework by providing clear basis for transferring fees via the International Bureau, yet allowing the provisions in the Regulations to be flexible to allow updates to the Administrative Instructions as required in the future. The Brazil proposal for PCT fee reductions for university applicants from developing countries and least developed countries was also supported in principle.

A proposal was also tabled by the Indian Patent Office for the consideration of the Working Group to enable all applicants to choose any of the International Searching and Preliminary Examining Authorities (ISA/IPEAs) for search and examination of their international applications. Under the existing system, an applicant from a PCT Contracting State cannot utilize the services offered by all of the International Search Authorities. Under the existing system, each receiving Office (RO) is required to specify the International Searching and Preliminary Examining Authorities competent for the search and examination of international applications filed by its applicants with such Office, which limits the choice available to applicants. The aim of the proposal was to simplify the procedure and make available more choices to the applicant.

8. Standing Committee on the Law of Patents (SCP):

In the thirtieth session of the SCP held from June 24 to 27, 2019 at Geneva, Indian delegation supported the compilation of national and regional patent laws on the important aspects of prior art, novelty, inventive step, disclosure, exclusions and

exceptions and limitations to the rights, provided that such compilation did not insist on harmonization. The Indian delegation also proposed that a further study on Markush claims be conducted at the SCP in greater detail to strengthen the tools of examination of such claims. It was also proposed to conduct a study on opposition systems to help improve the quality of patents. The delegation also stated that the patent system should maintain a balance between public health and accessibility of medicines to the public at affordable prices.

9. Meeting of International Authorities under the Patent Cooperation Treaty:

In the twenty-seventh session of the Meeting of International Authorities (MIA) under the Patent Cooperation Treaty held from February 6 and 7, 2020 at Gatineau, the Indian delegation tabled the proposal for consideration of the MIA, seeking to offer more options to applicants, by enabling all applicants to choose any of the International Searching and Preliminary Examining Authorities (ISA/IPEAs) for search and examination of their international applications. This proposal was also presented to the twelfth session of the PCT Working Group.

10. Standing Committee on the Law of Trademarks, Industrial Designs and Geographical Indications

In the forty-first session of the Standing Committee on the Law of Trademarks, Industrial Designs and Geographical Indications (SCT) held from April 8 to 11, 2019 at Geneva, a survey among Member States, aiming at compiling information regarding the implementation of Article 11 of the Paris Convention and how the term "official or officially recognized international exhibitions" was interpreted, was supported.

11. Standing Committee on Copyright and Related Rights

In the thirty-eighth session of the Standing Committee on Copyright and Related Rights (SCCR), held from April 1 to 5, 2019 at Geneva, the Indian delegation expressed support for the signal-based transmission approach and also supported the early finalization of a balanced treaty for the protection of broadcasting organizations, taking into account concerns and interests of all Member States on the fundamental issues to make the draft text more balanced and acceptable. Further, on the agenda item related to limitations and exceptions for educational and research institutions and for persons with other disabilities, the Indian delegation stated that the right to education and access of information were key elements for advancement in the promotion of culture, science and

education, and that the limitations and exceptions for libraries and archives and for educational and research institutions and for persons with other disabilities were of critical importance for all individuals as well as development of society.

12. BRICS

During the reporting year, National Institute of Industrial Property (INPI) Brazil was the chair of the BRICS HIPO under the "BRICS IPR COOPERATION ROADMAP" programme from April 2019 to March 2020. A BRICS HIPO meeting was held at Geneva, Switzerland in October 2019 on the sidelines of 59th WIPO General Assembly under the Chairmanship of INPI-Brazil and was attended by the Head of IP offices of Brazil, China, Russia and South Africa along with their delegations. Shri O. P. Gupta, Controller General of Patents, Designs, Trade Marks & GI led the Indian delegation in the BRICS HIPO meeting. During the meetings, the BRICS IP offices reviewed the progress of cooperation activities and also discussed topics related to WIPO topical issues. During the WIPO GA, the BRICS countries also made 2 joint statements related in the matter of Programme and Budget committee and Committee on Development of Intellectual Property (CDIP).

INPI-Brazil under its Chairmanship organized first 'BRICS Examiner Training Programme' on Trade Marks at Rio-de-Janeiro in February 2020. The said training programme was attended by Ms. Shikha Dewan and Ms. Sarika Kadam both 'Examiners of Trade Marks' of the 'CGPDTM-India' office along with other Examiners from the IP Offices from Brazil, Russia, China and South Africa. The 'BRICS IP Coordination Group Meeting' was also held in February 2020 in Rio-de-Janeiro Brazil and Shri Subendu Kundu, Deputy Controller of Patents & Designs attended the meeting. As a part of the preparatory meeting for the BRICS HIPO meeting, BRICS IP offices had in-depth discussions on issues of IP strategy of medium, small and micro-sized enterprises, data exchange and information services, management of overstocked patent applications, possible cooperation opportunities in digitalization issues and strengthening of cooperation at international forums. BRICS IP offices also exchanged views on Indian proposal of PCT at WIPO with respect to selection of ISA/IPEA by applicants, WIPO standards and other topical issues with respect to WIPO meetings like SCP etc.

The final 12th BRICS HIPO meeting under the INPI-Brazil Chairmanship was scheduled to be held at Rio-de Janeiro, Brazil on March 2020, but the same was cancelled due to COVID-19 pandemic.

CHAPTER-XIII

TRAINING PROGRAM AND OUTREACH ACTIVITY

INTRODUCTION

The Office of CGPDTM has taken initiatives to conduct awareness and outreach programmes for the public as well as for R&D organizations, universities, industry, start-ups, innovation centres, enforcement agencies, etc. in cooperation with Industry Associations like FICCI, CII, ASSOCHAM, PHDCCI, CWEI, etc. The aim of these programmes is to create a comprehensive understanding of IP-related key issues and concerns, imparting knowledge and increasing awareness about IPR protection and enforcement as well as empowering businesses to leverage IPR. The officers of the IP Offices have been regular resource persons in the awareness programs conducted by Universities, TIFAC, MSME, NRDC and Industry Organisations.

1. Training of IPO Officers:

Training programmes for new Examiners of Patents and refresher/legal trainings for Controllers of Patents were organized by the Office of CGPDTM in order to fulfil the objective of developing skills and expertise among the IP Officials and capacity building of IP offices, thus creating a strong base of human resource.

2. National Awareness Programs by the Office of CGPDTM (2019-20):

During 2019-20, the Office has conducted programmes in collaboration with various industry associations such as FICCI, CII, ASSOCHAM, PHDCCI, CWEI, etc. for following stakeholders:

a. Universities like Law Universities/Technical Institutes/Woman Universities

b. Enforcement Agencies

c. Innovation Centers/Startups/MSME

d. Schools

Total 102 programmes have been conducted during the year as under:

1	Universities	35
2	Innovation Centers & Startups, Industrial Clusters, MSME	14
3	Enforcement Agencies	05
4	Schools	48
5	**Total**	**102**

3. IP- Awareness Activities in 2019-20:

i) With the objective of creating awareness on Intellectual Property and Innovation Management of R&D Institutions and Universities, 54 programmes have been successfully conducted with Industry associations in the year 2019-20. The list of stakeholders where the programmes have been conducted is as follows:

Industry associations	Programs organized			
	University/Technical institutions/Women University	Startups/Innovation centre/MSME/ Industrial clusters	Enforcement Agencies	Total
CII	05	02	00-	07
PHD Chamber	08	03	01	12
CWEI	08	02	01	11
FICCI	02	00	00	02
ASSOCHAM	08	04	01	12
ICC	05	03	01	10
TOTAL	36	14	04	54

ii. The summary of IPR awareness programs organized in Schools by Patent Office is as follows.

Name of Patent Office	Program organized by each Patent office in Schools/Atal Tinkering Labs.
Kolkata	15
Mumbai	15
Chennai	15
New Delhi	02
RGNIIPM	01
Total	48

Therefore, total 102, awareness programs and outreach activities have been organized by the office of CGPDTM in the year 2019-20.

4. Participation of Officials in meeting at International forum and training Programs in India & Abroad

Sl. No.	Training / Seminar / Workshop / Program attended	Country Visited	No. of officials participated
1.	WIPO-NIPO Patent Quality Program Oslo 25th March 2019 – 5th April 2019 (12 Days)	Norway	1
2.	38th session of WIPO's Standing Committee on Copyright and related rights (SCCR) held from 1-5 April 2019	Geneva	1
3.	Informal Brainstorming Meeting on GIs of RCEP Working Group on Intellectual Property from April 8-9, 2019	Singapore	1
4.	East Meets West in Vienna from 11-12 April, 2019	Vienna, ustria	1
5.	11th BRICS HIPO Meeting held at Stellenbosch, South Africa from 14-16 April 2019	South Africa	2
6.	41st Session of WIPO Standing Committee on Law of Trademarks, Industrial Designs and Geographical Indications (SCT) in Geneva from 8th to 11th April, 2019	Geneva	1
7.	"IPO of the Future" –Expert Group Meeting during INTA's Annual Meeting held at Boston, Massachusetts, USA on 19th and 20th May 2019	Boston, USA	1
8.	5th Inter- Sessional meeting of RCEP and related meetings at Bangkok, Thailand from 25-29 May, 2019	Bangkok, Thailand	1
9.	To represent Government of India and to attend the "20th BRICS CGETI Meeting". Negotiations from 29-30 May 2019 at Brazil.	BRASILIA , BRAZIL	1
10.	12th Session of the PCT Working Group held in Geneva at the Headquarters of WIPO from 11th to 14th June, 2019	Geneva, Switzerland	1
11.	30th Session of the Standing Committee on the Law of Patents (SCP) from 24-27 June 2019 at WIPO, Geneva	Geneva	1
12.	To attend Summer School CEIPI, Strasbourg, 2019 held from 01.07.2019 to 12.07.2019 France	Strasbourg, France	1
13.	7th Session of the Committee on WIPO Standards (CWS) held in Geneva from 1st to 5th July, 2019	Geneva, Switzerland	1
14.	to attend the 17th session of Working Group on the Legal Development at Geneva from 22-26 July, 2019	Geneva	1

15.	JPO/IPR Training course for Public Awareness 2019 from 05/08/2019 to 09/08/2019	Japan, Tokyo	2
16.	JPO/IPR Training Course on Academia-Industry Collaboration and Technology Transfer from August 20-29, 2019	Japan, Tokyo	2
17.	To participate in WIPO ASPEC Heads of IP Office Conference (HIPOC) and GFIP from 26 to 29 August 2019	Singapore	1
18.	To attend 21st Meeting of BRICS Contact Group on Economic and Trade Issues (CGETI) in Brasilia, Brazil on 27-30 August 2019	Brasilia, Brazil	1
19.	WIPO Interregional Meeting on Integrating TISCs into National and Institutional Strategic Frameworks - Beijing (September 2 and 3, 2019)	Beijing, China	1
20.	PCT Regional Seminar for ASEAN & SAARC Member States Enhanced use of the PCT System & Forum for Exchange WIPO Singapore Office, September 3 to 5, 2019	Singapore	1
21.	to attend the Training and Promotion Program organized by Korean Intellectual Property Office, in South Korea from 2nd September to 6th September 2019.	South Korea	5
22.	Intellectual Property Seminar at Tokyo, Japan from September 9 to 13, 2019	Tokyo, Japan	2
23.	Regional Workshop on Access to Medicines and Intellectual Property Rights - Jakarta, 18-19 September 2019 -	Jakarta, Indonesia	1
24.	JPO/IPR Operational Patent Examination Training Program (OPET) from September 18 to November 8, 2019.	Japan, Tokyo	2
25.	JPO/IPR Training Course on Patent Examination management from 19th Sept. to 26th Sept. 2019" at Tokyo, JPO - regarding	Japan, Tokyo	2
26.	59th Series of WIPO General Assemblies, BRICs HIPO Meeting and Bilateral Meetings held in Geneva from 30th September 2019 to 4th October 2019	Geneva	2
27.	59th Series of the Assemblies of the Member States of WIPO Session of the Patent Co-operation Treaty PCT Union Assembly) held in Geneva from 30th Sept. to 9th October, 2019 - regarding	Geneva	1
28.	Fifty-Ninth Series of Meetings of the Assemblies of the Member States of WIPO including the Session of the Madrid Union Assembly held in Geneva, from 30-09-2019 to 9-10-2019	Geneva	1
29.	JPO/IPR Training Course on Establishing Patent Examination Guidelines held from October-3-9, 2019 *at Tokyo, JPO*	Japan, Tokyo	2

30.	22nd Meeting of BRICS Contact Group on Economic and Trade Issues (CGETI) in Brasilia, Brazil on 22-23 October 2019.	Brasilia, Brazil	1
31.	JPO/IPR Training Course on Information Technology held from 06.11.2019 to 12.11.2019" at Tokyo, JPO under the program JPO/IPR Training Program FY 2019 (for India)	Japan, Tokyo	1
32.	Twenty-Fourth Session of the Committee on Development and Intellectual Property (CDIP) held in Geneva, at the headquarters of WIPO from 18th to 22nd November, 2019.	Geneva	1
33.	JPO/IPR training course on substantive Examination of Trademarks scheduled held from November 21 to December 3, 2019 at JPO, Tokyo, Japan.	Tokyo, Japan	1
34.	Regional workshop on strategies to promote the Use of Domestic and International Intellectual Property (IP) Registration system held from 2nd to 3rd December, 2019	Singapore	2
35.	MIA Quality subgroup on February 3 & 5, 2020 and the 27th session of the Meeting of International Authorities under the PCT (PCT/MIA) on February 6 & 7, 2020	Gatineau, Canada	1
36.	5th IP BRICS Examiner Training held from February 10 to 14, 2020 and 2020 IP BRICS Coordination Group Meeting from 13-14 February, 2020	Brazil	3

CHAPTER-XIV

HUMAN RESOURCES

INTRODUCTION

The Patent Office, Trademark Registry, Geographical Indications Registry, Patent Information System (PIS)/Rajiv Gandhi National Institute of Intellectual Property Management (RGNIIPM) perform their functions under the superintendence and administrative control of the Controller General of Patents, Designs and Trade Marks.

Over the last few years, steps have been taken by the Government of India for recruitment of additional manpower in the Patent Office and Trade Marks Registry (Examiners and Controllers/Registrars) to reduce the backlog in examination and disposal of applications.

During the 12th Plan under the Scheme "Modernisation and Strengthening of Intellectual Property Offices" (MSIPO), Department of Expenditure, Ministry of Finance had approved creation of 481 posts (373 for Patent Office and 108 for Trade Mark Registry) in the Office of CGPDTM, which included 252 posts of Patent Examiners, 76 posts of Controllers (supervisory officers) and 62 posts of Trademarks Examiners. Pursuant to this, the Office of CGPDTM entered into an agreement with National Productivity Council (NPC) to recruit the Examiners of Patents & Designs and accordingly, recruitment of 459 patent examiners, including earlier vacant posts carried forward, was completed through competitive examination process in February 2016. Out of the selected candidates, 458 candidates had joined as Examiners in Patent Office.

As on March 31, 2018, the working strength of technical officers in Patent office was 572 Examiners and 134 Controllers. As a result of promotion of Examiners as Assistant Controllers of Patents & Designs, the working strength of Examiners in the Patent Office was reduced to 449 and that of Controllers increased to 246 as on March 31, 2019.

The Government of India further sanctioned 362 posts (219 for Patent Office and 143 for Trade Mark Registry) in the Office of CGPDTM for more efficient delivery of services. This included 84 posts of Patent Examiners and 38 posts of Trademarks Examiners.

Pursuant to agreement for recruitment of Examiners in Patent Office, the NPC conducted examinations on all India basis and selected candidates for 220 advertised posts of Examiners of Patents & Designs, out of which 181 candidates joined the office during the year 2019-20.

There was augmentation of manpower in Trade Marks Registry also. The manpower strength in Trade Marks Registry on March 31, 2020 included 68 Examiners, 36 Senior Examiners and 19 Registrars.

Manpower position in the Patents and Trademarks is shown in Annexures given below.

Human resources at various IP Offices:

1. **The Office of the CGPDTM at Mumbai:**

DETAILS OF SANCTIONED AND WORKING STRENGTH OF THE OFIICE OF CGPDTM AS ON MARCH 31, 2020:

Sl. No.	Name of the post	Sanctioned Strength	Working Strength
1	Controller General	1	1
2	Private Secretary	1	1
3	Receptionist	1	1
4	Staff Car Driver	1	1
5	Multi-Tasking Staff	1	0
	Total	5	4

2. **Human resources in Patent Office:**

The human resources in the Patent Office are shown in the **Appendix A,** which indicates the sanctioned as well as working strength as on March 31, 2020 in respect of all the four Patent Offices.

3. **Human resources in Trade Marks Registry:**

The details of officials of Trade Marks Registry are shown in the **Appendix B,** which indicates the sanctioned as well as working strength at all the five locations of TMR office as on March 31, 2020.

4. **Human resources in Geographical Indications Registry:**

The **Appendix C** indicates the sanctioned as well as working strength as on March 31, 2020 of Geographical Indications Registry.

5. **Human resources in PIS/RGNIIPM:**

The sanctioned strength as well as working strength as on March 31, 2020 in respect of PIS/RGNIIPM is given in **Appendix D.**

APPENDIX - A

DETAILS OF OFFICERS AND STAFF STRENGTH OF PATENT OFFICE AS ON MARCH 31, 2020

Sl. No.	Name of Post	Category	Sanctioned Strength					Working Strength				
			Kolkata	Mumbai	Chennai	Delhi	Total	Kolkata	Mumbai	Chennai	Delhi	Total
1	Senior Joint Controller of Patents & Designs	Group A	1	1	1	2	5	0	0	0	0	0
2	Joint Controller of Patents & Designs	Group A	3	2	3	3	11	0	2	1	2	5
3	Director	Group A	0	1	0	0	1	0	1	0	0	1
4	Deputy Secretary	Group A	0	1	0	0	1	0	0	0	0	0
5	Deputy Controller of Patents & Designs	Group A	14	8	14	15	51	14	6	14	13	47*
6	Principal System Analyst	Group A	0	0	0	1	1	0	0	0	0	0
7	Assistant Controller of Patents & Designs	Group A	35	25	49	87	196	35	25	49	86	195
8	Senior System Analyst	Group A	0	0	0	2	2	0	0	0	0	0
9	Senior Administrative Officer	Group A	0	1	0	0	1	0	0	0	0	0
10	Examiner of Patents & Designs	Group A	154	37	128	292	673^	154	37	128	292	611*
11	Assistant Director (OL)	Group A	1	0	0	0	1	1	0	0	0	1
12	Senior Finance & Accounts Officer	Group A	0	1	0	0	1	0	0	0	0	0
13	Administrative Officer	Group A	1	1	1	1	4	0	1	0	0	1
14	System Analyst cum Computer Programmer	Group A	0	0	0	5	5	0	0	0	0	0
	Total		**209**	**78**	**196**	**408**	**953**	**204**	**72**	**192**	**393**	**861**
1	Assistant Administrative Officer	Group B (Gaz)	1	2	1	2	6	1	1	1	1	4
2	Assistant Library & Information Officer	Group B (Gaz)	1	1	0	0	2	1	1	0	0	2

3	Private Secretary	Group B (Gaz)	1	1	1	1	4	1	0	1	0	2
4	Finance Officer	Group B (Gaz)	0	1	0	0	1	0	0	0	0	0
5	Store Officer	Group B (Gaz)	1	1	1	2	5	0	0	0	0	0
6	Senior Translator	Group B (Gaz)	0	0	0	1	1	0	0	0	0	0
	Total		**4**	**6**	**3**	**6**	**19**	**3**	**2**	**2**	**1**	**8**
1	Office Superintendent	Group B (NG)	26	14	14	22	76	25	12	10	11	58
2	Library & Information Assistant	Group B (NG)	1	1	1	2	5	0	0	0	1	1
3	Junior Translator	Group B (NG)	0	1	1	1	3	0	0	1	1	2
4	Stenographer Grade I	Group B (NG)	4	2	2	2	10	1	1	1	0	3
5	Accountant	Group B (NG)	0	1	0	0	1	0	0	0	0	0
6	Legal Assistant	Group B (NG)	1	1	1	1	4	0	0	0	0	0
	Total		**32**	**20**	**19**	**28**	**99**	**26**	**13**	**12**	**13**	**64**
1	Photography Assistant	Group C	1	1	1	1	4	1	1	1	1	4
2	Upper Division Clerk	Group C	20	14	14	19	67	19	0	10	13	42
3	Stenographer Grade II	Group C	0	0	0	2	2	0	0	0	2	2
4	Data Entry Operator	Group C	1	4	0	5	10	1	3	0	5	9
5	Receptionist	Group C	0	1	0	0	1	0	1	0	0	1
6	Lower Division Clerk	Group C	9	13	10	12	44	6	9	5	10	30
7	Multi-Tasking Staff	Group C	31	5	10	14	60	20	4	9	10	43
	Total		**62**	**38**	**35**	**53**	**188**	**47**	**18**	**25**	**41**	**131**

* 1 Deputy Controller and 1 Examiner posted at RGNIIPM, Nagpur

^ Distribution to be made at a later stage

APPENDIX - B

DETAILS OF OFFICERS AND STAFF STRENGTH OF TRADE MARKS REGISTRY AS ON MARCH 31, 2020

Sl No.	Name of post Group 'A'	Sanctioned Strength						Working Strength					
		Mumbai	Kolkata	Chennai	Delhi	Ahmedabad	Total	Mumbai	Kolkata	Chennai	Delhi	Ahmedabad	Total
1	Senior Joint Registrar of Trade Marks & GI	1	0	0	0	0	1	0	0	0	0	0	0
2	Joint Registrar of Trade Marks & GI	2	1	1	1	0	5	1	0	0	0	0	1
3	Deputy Registrar of Trade Marks & GI	6	2	2	4	1	15	3	2	1	2	1	9
4	Assistant Registrar of Trade Marks & GI	10	2	5	10	4	31	3	0	2	1	1	7
5	Senior Examiner of Trade Marks & GI	39	3	9	20	3	74	9	3	8	12	3	35
6	Assistant Director (OL)	0	0	0	1	0	1	0	0	0	1	0	1
7	Accounts Officer	1	0	0	0	0	1	0	0	0	0	0	0
	Total	**59**	**8**	**17**	**36**	**8**	**128**	**16**	**05**	**11**	**16**	**5**	**53**

Sl No	Name of post Group 'B' (Gazetted)	Sanctioned Strength						Working Strength					
		Mumbai	Kolkata	Chennai	Delhi	Ahmedabad	Total	Mumbai	Kolkata	Chennai	Delhi	Ahmedabad	Total
1	Examiner of Trade Marks & GI	98	8	13	29	12	160 100*	39	5	4	12	5	65 80*
2	Assistant Administrative Officer	2	0	0	1	0	3	0	0	0	0	0	0
3	Assistant Library & Information Officer	1	0	0	0	0	1	1	0	0	0	0	1
4	Private Secretary	2	0	1	0	0	3	2	0	1	0	0	3
5	Store Officer	1	1	1	1	1	5	0	0	0	0	0	0
	Total	**104**	**9**	**15**	**31**	**13**	**172 100***	**47**	**3**	**5**	**12**	**5**	**69 80***

*Examiner of Trade Marks on contract basis

Sl. No	Name of post Group 'B' (Non Gazetted)	Sanctioned Strength						Working Strength					
		Mumbai	Kolkata	Chennai	Delhi	Ahmedabad	Total	Mumbai	Kolkata	Chennai	Delhi	Ahmedabad	Total
1	Office Superintendent	8	1	1	2	1	13	2	0	1	0	0	3
2	Library & Information Assistant	1	0	0	0	0	1	1	0	0	0	0	1
3	Stenographer Grade I	3	2	2	2	1	10	2	1	2	1	1	7
4	Asst. Examiner of Trade Marks & GI	14	2	3	7	6	32	3	1	1	2	1	8
5	Junior Translator	1	0	1	1	0	3	0	0	0	0	0	0
6	Accountant	1	1	0	1	0	3	0	0	0	0	0	0
	Total	**28**	**6**	**7**	**13**	**8**	**62**	**8**	**2**	**4**	**3**	**2**	**19**

Sl No	Name of post Group 'C'	Sanctioned Strength						Working Strength					
		Mumbai	Kolkata	Chennai	Delhi	Ahmedabad	Total	Mumbai	Kolkata	Chennai	Delhi	Ahmedabad	Total
1	Assistant Superintendent	7	1	1	1	1	11	3	1	1	1	1	7
2	Cashier	1	1	1	1	0	4	0	0	0	0	0	0
3	Upper Division Clerk	25	5	6	5	3	44	21	3	3	1	0	28
4	Stenographer Grade II	2	2	0	7	0	11	2	1	0	7	0	10
5	Lower Division Clerk	20	3	7	5	3	38	7	2	4	4	1	18
6	Data Entry Operator	0	2	1	4	2	9	0	2	0	3	1	6
7	Multi-Tasking Staff	25	4	7	9	4	49	11	2	5	4	3	25
	Total	**80**	**18**	**23**	**32**	**13**	**166**	**44**	**11**	**13**	**20**	**6**	**94**

APPENDIX - C

DETAILS OF STAFF STRENGTH OF GEOGRAPHICAL INDICATIONS REGISTRY AS ON 31st MARCH 2020

Sl. No.	Designation	Sanctioned Strength	Working Strength
1.	Senior Joint Registrar of Trade Marks & GI	1	0
2.	Assistant Registrar of Trade Marks & GI	1	0
3.	Senior Examiner of Trade Marks & GI	1	1
4.	Stenographer Grade - II	1	1
5.	Multi-Tasking Staff	1	1
	Total	**5**	**3**

APPENDIX- D

DETAILS OF OFFICERS AND STAFF STRENGTH AS ON MARCH 31, 2020 OF PATENT INFORMATION SYSTEM AND RGNIIPM

Sl. No.	Name of post	Sanctioned Strength	Working Strength
1	Senior Documentation Officer	1	0
2	Office Superintendent	1	0
3	Senior Documentation Assistant	1	0
4	Junior Translator	1	1
5	Stenographer Grade I	1	1
6	Store Assistant	1	1
7	Junior Reprography Assistant	3	3
8	Assistant Superintendent	1	1
9	Shelf Assistant	1	1
10	Upper Division Clerk	3	3
11	Data Entry Operator	2	2
12	Lower Division Clerk	3	3
13	Hindi Typist	1	1
14	Multi-Tasking Staff	4	3
	Total	24	20